This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

JUNE 17, 2025

>> MAYOR A. ISHII: HELLO. GOOD EVENING, EVERYONE. IF YOU COULD PLEASE TAKE YOUR SEATS. MR. CLERK, JUST LET US KNOW WHEN YOU'RE READY.

>> CITY CLERK: OKAY. WE ARE READY.

>> MAYOR A. ISHII: OKAY. I AM CALLING TO ORDER THE TUESDAY, JUNE 17, 2025 --

>> RECORDING IN PROGRESS.

>> MAYOR A. ISHII: CLERK, COULD YOU PLEASE TAKE THE ROLL?

>> CITY CLERK: OKAY. COUNCILMEMBER KESARWANI IS CURRENTLY ABSENT. COUNCILMEMBER TAPLIN.

>> T. TAPLIN: PRESENT.

>> CITY CLERK: IS PRESENT. BARTLETT, COUNCILMEMBER BARTLETT IS CURRENTLY ABSENT. COUNCILMEMBER TREGUB.

>> I. TREGUB: PRESENT.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: PRESENT.

>> CITY CLERK: BLACKABY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> B. BLACKABY: HERE.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: PRESENT.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: HERE.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: HERE. LET'S MOVE ON TO CITY MANAGER COMMENTS. FOLKS, CAN I ASK IF FOLKS BE QUIET IF YOU'RE OUT THERE? THANK YOU. OKAY. DID YOU HAVE ANY COMMENTS?

>> CITY MANAGER: NOT TONIGHT. THANK YOU, MADAM MAYOR.

>> MAYOR A. ISHII: OKAY. THANK YOU VERY MUCH. MOVING ON TO PUBLIC COMMENT ON NON-AGENDA MATTERS.

>> CITY CLERK: OKAY, SO WE WILL --

>> MAYOR A. ISHII: FOLKS, THIS IS FOR PUBLIC COMMENT ON NON-AGENDA MATTERS, MEANING IT'S AN ITEM THAT IS NOT ON TONIGHT'S AGENDA.

>> CITY CLERK: OKAY.

>> MAYOR A. ISHII: SO -- OKAY. I'M SORRY, UNFORTUNATELY YOU SHOULDN'T BE ADDRESSING THE COUNCIL IN THAT WAY, BUT YOU'RE WELCOME TO SPEAK TO THE CITY CLERK IF YOU HAVE ANY QUESTIONS.

>> CITY CLERK: THE AGENDA FOR TONIGHT'S MEETING ARE, OF COURSE, ON THE WEBSITE AND THE BACK TABLE THERE AS YOU COME IN. SO WE WILL PICK FIVE NAMES FOR PEOPLE IN PERSON AND THEN WE WILL GO TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE FIRST FIVE HANDS THAT ARE RAISED ON THE ZOOM FOR NON-AGENDA AND SPEAKERS WILL HAVE ONE MINUTE EACH. YES, THAT'S ON THE AGENDA. OKAY. SO THE FIVE IN PERSON NON-AGENDA SPEAKERS ARE GINA REAGER, [LISTING NAMES] AND DAVID RICHER AND SUSAN. SO IF YOU LINE UP ON THE SIDE HERE, YOU CAN COME UP IN ANY ORDER.

>> MAYOR A. ISHII: OKAY. AND, FOLKS, JUST AS A REMINDER THESE ARE ITEMS NOT ON TONIGHT'S AGENDA. GO AHEAD AND START WHENEVER YOU'RE READY.

>> PUBLIC SPEAKER: OKAY. MY NAME IS GINA REAGER. COUNCIL PUBLIC HEARINGS MARKET DUE PROCESS AND PARTICIPATORY DEMOCRACY. AFTER FIRST READING OF A NEW ORDINANCE OR AMENDMENT IN WHICH ONLY THE COUNCIL'S PROPONENTS SPEAK, YOU ALLOW AN INDIVIDUAL STAKEHOLDER ONE MINUTE TO ADDRESS YOU ON ISSUES OF GREAT IMPORTANCE TO THEM. THERE IS NO DIALOGUE, BUT THERE SHOULD BE. WE ARE NO DISCUSSION AMONG YOU REGARDING THE MERITS OF WHAT THE PUBLIC HAS SAID. THEN YOU PROCEED TO VOTE. I'M HERE TO ASK YOU TO AMEND YOUR HEARING PROCESS. PUBLIC HEARINGS MUST PROVIDE A MEANINGFUL OPPORTUNITY FOR PUBLIC COMMENT. ALLOW US TIME TO PRESENT INFORMATION AND BE HEARD. WE BELIEVE YOU AFFORD STAFF AND CONSULTANTS GREATER REGARD AND DEFERENCE THAN YOUR WELL-INFORMED STEAK HOLDING CONSTITUENTS. WE DON'T WANT PRESIDENTIAL ORDERS HERE IN BERKELEY. WE WANT A VOICE. I ASK YOU TO AMEND YOUR HEARING PROCESS.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: THANK YOU. [CLAPPING].

>> PUBLIC SPEAKER: HELLO, I HAVE LIVED ON OHLONE PARK SINCE 2008. JUST FINISHED MY SEVENTH YEAR TEACHING AT BERKELEY HIGH SCHOOL. I LIVE ON THE WEST END OF THE PARK BY THE SOFTBALL FIELD, WHICH IS NOW ACROSS FROM THE NEW RESTROOM SOLUTION FROM THE PARK WHICH IS NOW TWO PORTA POTTY'S ON A RESIDENTIAL STREET. LAST MONDAY AT NOON I WENT OUTSIDE WITH MY 12-YEAR-OLD SON BECAUSE HE WANTED TO PLAY SOCCER AT OHLONE PARK, SOMETHING WE'VE DONE HIS ENTIRE LIFE. THE FIRST BENCH WE WALKED BY, THERE WERE TWO PEOPLE ACTIVELY SHOOTING INTRAVENOUS DRUGS. WE KEPT WALKING. THE SECOND BENCH WE WALKED BY THERE WAS A MAN COMATOSE ON THE BENCH, FRESH AIR AND ON THE PAVEMENT. WE WALKED ACROSS THE PAVEMENT. WE WALKED TO THE NEXT BLOCK BEFORE DECIDING THAT TODAY WAS NOT A SAFE DAY TO PLAY ON OHLONE PARK ON A MONDAY AT NOON. THE FACT THAT THIS COUNCIL HAS ALLOWED US TO GET TO THIS STATE WAS ABSOLUTELY RIDICULOUS. YOU SHOULD BE ASHAMED OF YOURSELF FOR NOT STOPPING THIS SOONER AND NOT KEEPING OUR PUBLIC SPACES CLEAN AND SAFE. THANK YOU. [APPLAUSE]

>> MAYOR A. ISHII: FOLKS, PLEASE -- IT'S NOT YOUR TIME TO SPEAK.

>> [INDISCERNIBLE]

>> MAYOR A. ISHII: FOLKS. COULD YOU -- IF YOU HAVE A QUESTION, YOU CAN SPEAK TO THIS GENTLEMAN OVER HERE.

>> I JUST [INDISCERNIBLE]

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: GO AHEAD AND SPEAK TO THIS TENEMENT OVER HERE BECAUSE WE HAVE GOT NON-AGENDA PUBLIC COMMENT. CAN THE NEXT SPEAKER COME UP, PLEASE? THANK YOU.

>> PUBLIC SPEAKER: HELLO. MY NAME IS LUCIUS HAMMOND AND I WILL BE BRIEF BECAUSE THERE IS NOT MUCH TO SAY. THE GENTLEMAN BEFORE ME SAID SHAME ON YOU. I CONCUR. SHAME ON YOU FOR YOUR NEGLIGENCE OR LACK OF CARE OR WHATEVER ELSE I DON'T WANT TO MENTION. NOW WE HAVE OHLONE PARK, BUT WE HAVE DISTRICT 1 PLAGUED BY THE MAYHEM OF UNIVERSITY AVENUE OF OHLONE PARK NOW OF SAN PABLO, BASICALLY WHAT WAS NOT TOP-NOTCH DWELLINGS, BUT LIVABLE PLEASANT. NOW THEY ARE DISGUSTING, FILLED WITH DANGER. PEOPLE POOPING IN FRONT OF YOU AS YOU WALK. PEOPLE SHOOTING UP IN OHLONE PARK. OHLONE PARK WAS CLEAN. NOW IT'S FILTHY AGAIN. THIS IS NOT JUST BY NEGLECT. THERE HAS GOT TO BE SOME MEETING AGENDA THAT I DON'T KNOW YOU, BUT I REALLY WISH THAT WILL MAKE WHOEVER RUNS DISTRICT 1 AND THE CITY OF BERKELEY TUMBLE. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. [APPLAUSE]

>> PUBLIC SPEAKER: HI. I'M HERE THROUGHOUT THE EVENING TONIGHT, BUT I WOULD LIKE TO ASK THE COUNCIL TO CONSIDER A LETTER THAT WE SENT IN OVER THE WEEKEND ASKING FOR A SPECIAL MEETING TO CONSIDER THE ZONE ZERO PROPOSAL. DUE TO THE LEVEL OF INTEREST, WE FEEL LIKE IT DESERVES --

>> MAYOR A. ISHII: SO THIS IS SOMETHING THAT'S ON THE AGENDA.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHAT YOU'RE TALKING ABOUT.

>> PUBLIC SPEAKER: I'M NOT TALKING TO THE PART THAT'S ON THE AGENDA. I'M TALKING TO ASK YOU TO HAVE A VOTE TO PUT IT AS A SPECIAL –

>> MAYOR A. ISHII: I FEEL LIKE IT'S A WORKAROUND BECAUSE IT SOUNDS LIKE YOU ARE SAYING AN ITEM THAT IS ON THE AGENDA TONIGHT. I DISAGREE WITH --

>> PUBLIC SPEAKER: CAN I ASK A QUESTION THEN? WHAT IS THE PROCEDURE TO REQUEST A SPECIAL HEARING?

>> MAYOR A. ISHII: I KNOW THAT YOU HAVE REQUESTED A SPECIAL HEARING BY WRITING A LETTER, AND WE ARE HEARING THESE ITEMS TONIGHT. SO YOU'VE REQUESTED IT [MULTIPLE SPEAKERS]. AND WE ARE GOING TO HAVE IT TONIGHT.

>> PUBLIC SPEAKER: OKAY.

>> MAYOR A. ISHII: WE ARE GOING TO HAVE A TONIGHT. THANK YOU. THERE WILL BE ENOUGH TIME. I WILL ALLOW FOLKS TO SPEAK. THANK YOU.

>> CITY CLERK: LAST CALL FOR SUSAN.

>> [INDISCERNIBLE]

>> PUBLIC SPEAKER: I AM JUST CONCERNED ABOUT ALL THE TOPICS ON THIS AGENDA THAT I'M REALLY INTERESTED IN, HAVE INVESTMENT IN SEVERAL, NOT FINANCIAL, AND AM CONCERNED ABOUT OUR NEW MAYOR AND NEW COUNCILMEMBERS BRAND-NEW THIS YEAR, HOW YOU HAVE TIME FOR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

YOU TO SETTLE INTO EACH OF THESE TOPICS AND REALLY IMMERSE IN IT AND HOW WE CAN HAVE TIME TO BE WITH YOU ON SOME OF THAT, HERE IT, AND LEARN IN THE PROCESS. SO I JUST WOULD HOPE THAT WE COULD HAVE ESPECIALLY A COUPLE OF THESE ARE HEAVY-DUTY ITEMS THAT SEEM LIKE TONIGHT ISN'T GOING TO AFFORD ENOUGH TIME.

>> MAYOR A. ISHII: THANK YOU. [CLAPPING]

>> CITY CLERK: OKAY. SO NOW IF YOU ARE ATTENDING ON RESUME AND YOU WOULD LIKE TO GIVE PUBLIC COMMENT ON AN ITEM THAT IS NOT ON THE AGENDA, NOW IS THE TIME TO RAISE YOUR HAND. OKAY. SO WE HAVE TWO CURRENTLY ON THE ZOOM. FIRST IS MADELEINE ROBERTS RICH.

>> PUBLIC SPEAKER: HI THERE, IT'S MADELEINE CALLING AGAIN. A LOT OF TOPICS FROM PUBLIC COMMENT BEFORE ME ABOUT MATTERS PERTAINING TO OHLONE PARK IN DOWNTOWN BERKELEY. I FOR ONE AM EXTREMELY PASSIONATE ABOUT MAKING SURE THAT CIVIC PART GETS REOPENED WITH A SENSIBLE MAN HOMELESSNESS ENCAMPMENT MANAGEMENT POLICY BECAUSE THAT PARK IS EXTREMELY CRITICAL FOR BERKELEY HIGH STUDENTS AND HAVING ACCESS TO THAT PART IS EXTERNALLY IMPORTANT. SO THE FACT THAT IT'S BEEN STUFF NEEDS TO CHANGE AND I'M ANTICIPATING THAT WILL BE DONE THIS JULY. BUT I'M CALLING AGAIN FOR USUAL JUST TO CALL ATTENTION TO THE FACT THAT I'M VERY DISAPPOINTED IN HOW YOU HANDLED THE GRANTING THE CEQA EXEMPTION AND DEMOLISHING THE UNITED ARTISTS THEATER. THIS WAS VERY MUCH AGAINST THE LAW BECAUSE CALIFORNIA STATE LAW, WHICH THE NEW HOUSING LAWS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DEFERRED TO BECOME A BY THE WAY, SAY THAT CATEGORICAL EXEMPTIONS SHALL NOT BE GRANTED TO HISTORICAL RESOURCES THAT ARE ON THE CALIFORNIA REGISTER OF HISTORIC RESOURCES.

>> MAYOR A. ISHII: THANK YOU. I'M SORRY, YOUR TIME IS UP. THANK YOU.

>> CITY CLERK: OKAY. NEXT IS ARKIN TILT ARCHITECTS.

>> PUBLIC SPEAKER: YES, HI. GOOD EVENING. MY NAME IS DAVID TRANSACTING. I'M A BUSINESS OWNER AT 11018 STREET. FOR THE PAST 22 YEARS, WITHOUT OUR BUSINESS IN THIS LOCATION ADJACENT TO THE CREEK. I WILL AIM TO KEEP THIS BRIEF. PRIOR TO THE PANDEMIC, THERE WERE A HANDFUL OF PEOPLE LACKING HOUSING THAT FREQUENTLY CAMP NEAR OUR OFFICE FOUR BLOCKS FROM THE HARRISON SHELTER. ONE INDIVIDUAL IN PARTICULAR WAS AN ONGOING NUISANCE. HE ASSAULTED SOME WORKERS AT ANOTHER BUSINESS IN OUR BUILDING, BROKE OUR FRONT WINDOWS TWICE, AND CAUSED THE BUILDING OWNERS TO PUT UP FENCES AND HIGHER SECURITY. INITIALLY, WE TRIED TO HELP THIS INDIVIDUAL AND OTHERS, BUT AFTER THESE SORTS OF EPISODES KIND OF RESIGNED OURSELVES TO ACCEPTANCE AND PATIENT'S UNDERSTANDING THAT THERE ARE LARGER STRUCTURAL ISSUES CAUSING THE INCREASE IN HOMELESSNESS HERE AND NATIONWIDE. SO SINCE THEN, THE CAMPING HAS BECOME QUITE ENTRENCHED ESPECIALLY AT EIGHTH AND HARRISON. AND I KNOW THE CITY HAS TAKEN STEPS ON OCCASION TO CLEAN UP -- [INAUDIBLE] [NO AUDIO] [NO AUDIO]

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: TYPICALLY, WE DON'T RESPOND DURING PUBLIC COMMENT, BUT I WILL JUST SAY YOU CAN REACH OUT TO OUR PUBLIC OFFICES.

>> PUBLIC SPEAKER: OKAY. THANK YOU.

>> PUBLIC SPEAKER: I'LL BE SPEAKING A LITTLE BIT LATER ON THE PRIDE ITEM, BUT I JUST WANTED TO SAY THANK YOU TO THE CITY COUNCIL AND TO THE CITY OF BERKELEY IN GENERAL FOR THE AMAZING SUPPORT YOU HAVE BEEN GIVING PACIFIC CENTER LATELY AND THE ASSAULT THAT WAS EXPERIENCED AND THE ONSLAUGHT THAT WE'VE BEEN EXPERIENCING. IT'S AMAZING TO HAVE PUBLIC COMMITMENT TO OUR CAUSE AND OUR COMMUNITY AND WE COULDN'T BE MORE HAPPY AND STRENGTHENED BY YOUR COURAGEOUS SUPPORT, SO THANK YOU. [NO AUDIO] [NO AUDIO] [NO AUDIO] [NO AUDIO]

>> RECORDING STOPPED.

>> CITY CLERK: SO COUNCILMEMBERS TAPLIN AND O'KEEFE, CAN YOU HEAR US OKAY NOW?

>> S. O'KEEFE: YEAH.

>> CITY CLERK: OKAY. MAYOR, WHY DON'T WE PROCEED?

>> RECORDING IN PROGRESS.

>> MAYOR A. ISHII: OKAY. OF COURSE I JUST TOOK A GIANT BITE OF THIS.

>> CITY CLERK: COUNCILMEMBERS, JUST TEXT ME IN CASE THERE'S ANY AUDIO PROBLEMS.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: OKAY, FOLKS. WE'RE GOING TO GET BACK TO THE MEETING. THANKS FOR YOUR PATIENCE, BUT WE ARE CONSTANTLY HAVING TECH ISSUES HERE. I DON'T THINK IT'S ANYONE'S FAULT, JUST YOU KNOW, HAPPENS. SO I WANT TO MAKE AN ANNOUNCEMENT ON THE FEE HEARINGS WE HAVE TONIGHT. THERE ARE FOUR PUBLIC HEARINGS FOR CITY FEES THAT WILL NOT BE HEARD THIS EVENING. THESE FOUR PUBLIC HEARINGS WILL TAKE PLACE ON TUESDAY, JUNE 24, AT 4:00 P.M. HERE IN THE BOARDROOM. AGAIN, IF YOU MISSED IT, THE COUNCIL WILL NOT TAKE ACTION ON THESE ITEMS TONIGHT THEREWITH ITEMS WILL BE RESCHEDULED TO JUNE 24 AT 4:00 P.M. THE FOUR HEARINGS THAT ARE GOING TO BE CONTINUED ARE ITEM 33, WHICH IS THE FIRE PERMIT AND INSPECTION FEE SCHEDULE. ITEM 37, WHICH IS THE SELECTED MARINA FEE INCREASES. ITEM 40, WHICH IS THE NEW FEE SCHEDULE FOR CARRY CONCEALED WEAPON PERMITS. ITEM 41, CHANGES TO SELECT PUBLIC WORKS TRANSPORTATION FEES. SINCE THESE ITEMS APPEARS ON THE AGENDA TONIGHT, THE COUNCIL WAS YOUR COMMENTS FROM PUBLIC SPEAKERS WHO WISH TO SPEAK. TONIGHT, BE ADVISED THAT THE COUNCIL WILL HEAR COMMENTS ON THE CONTINUED FEE -- AFTER THE FIRE CODE ITEMS ARE ACCEPTED. I THINK THERE WAS A GENTLEMAN IN THE FRONT WHO MAY BE HERE FOR THE MARINA ITEM. YOU ARE WELCOME TO WAIT TO GIVE PUBLIC COMMENT, BUT IT WILL BE AFTER THE FIRE HEARING, WHICH IS WHAT ALL THESE FOLKS ARE HERE FOR. I WOULD RECOMMEND IF YOU WANT TO NOT WAIT, YOU ARE WELCOME TO COME BACK ON THE 24TH

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHEN WE WILL BE DISCUSSING THIS ITEM. SO AT THIS TIME I MOVED OVER THE PUBLIC -- WHAT I'M GOING TO DO THOUGH IS GOING TO NEED TO OPEN THE PUBLIC ITEMS AND TAKE ACTION ON THEM AT THE NEXT MEETING. I'M GOING TO OPEN PUBLIC ITEMS ON 37 -- TUESDAY, JUNE 24 AT 4:00 P.M. IN THE BOARD ROOM AT 1231 ADDISON STREET, WHICH IS RIGHT HERE. IS THERE A SECOND?

>> I. TREGUB: SECOND.

>> MAYOR A. ISHII: WE GOT FOLKS ONLINE. CAN WE TAKE THE ROLL PLEASE, CLERK?

>> CITY CLERK: NUMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: YES.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: THOSE ITEMS ARE MOVED TO NEXT WEEK.

>> MAYOR A. ISHII: THANK YOU VERY MUCH. MOVING ON TO THE ACTION CALENDAR. LET ME JUST CHECK SOMETHING. DO FOLKS HAVE ANY COMMENTS? OH, YES. I'M SORRY. COUNCILMEMBER TREGUB HAD HIS LITTLE, HIS LIGHT ON FIRST. GO AHEAD, COUNCILMEMBER.

>> I. TREGUB: THANK YOU SO MUCH. I WANTED TO THANK MY FELLOW CO-CONSPIRATORS OR COSPONSORS. ON ITEMS 29, RELINQUISHING OF COUNCIL OFFICE BUDGET FUNDS FOR THE DOWNTOWN BERKELEY ASSOCIATION SIXTH ANNUAL PRIDE ON THE PLAZA VARIETY SHOW AS WELL AS ITEM 31, RELINQUISHMENT OF THE SAME FIRM BERKELEY'S FIRST PRIDE FAIR HOSTED BY THE PACIFIC CENTER FOR HUMAN GROWTH. VERY EXCITED TO HOST BOTH OF THESE EVENTS IN DOWNTOWN BERKELEY. WANTED TO INVITE ANY OF MY COLLEAGUES WHO HAVE SOME SURPLUS FUNDING AVAILABLE IN THEIR OFFICE BUDGETS TO CONTRIBUTE UP TO $500 FOR EACH OF THESE. I ALSO WANTED TO NOTE ON ITEM 30, WHICH IS A REAL AGREEMENT OF COUNCIL BUDGET FUNDS FOR THE HISTORICAL PLAQUE PROJECT OF THE BERKELEY HISTORICAL SOCIETY AND MUSEUM. I WANTED TO JUST NOTE THAT SINCE WE AUTHORED THIS ITEM IT WAS BROUGHT TO OUR ATTENTION ACTUALLY YESTERDAY WHEN WE WERE COMMEMORATING THE 10 YEAR ANNIVERSARY OF THE TRAGIC INCIDENT THAT LED TO -- WELL, IT WAS A BALCONY COLLAPSE IN DOWNTOWN BERKELEY THAT LED TO THE TRAGIC PASSING OF SEVEN YOUNG PEOPLE AND THE IRISH CONSUL GENERAL WAS IN ATTENDANCE. SOME OF THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PARENTS WERE IN ATTENDANCE AND IT WAS BROUGHT TO OUR ATTENTION THAT ONE OF THE PLAQUES DOES NEED TO BE CHANGED TO INCLUDE THE NAME OF SOMEONE THAT PASSED ON SADLY AS A RESULT OF INJURIES INCURRED IN THE COLLAPSE, BUT FOLLOWING THE ISSUANCE OF THE ORIGINAL PLAQUE. AND SO I WANTED TO JUST ASK MY COLLEAGUES IF THEY DO HAVE ADDITIONAL SURPLUS FUNDING AVAILABLE TO ALSO CONSIDER GIVING SOME AMOUNT TOWARDS THAT ITEM. THAT IS ITEM NUMBER 30 SO THAT THAT PLAQUE CAN BE REHABBED IN ADDITION TO THE OTHERS. THANK YOU. OH, AND I WOULD LIKE TO GIVE $500 TO ITEM 25. THANK YOU.

>> MAYOR A. ISHII: OKAY. THANK YOU. COUNCILMEMBER HUMBERT.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I HAVE GOT A FEW COMMENTS. AS TO ITEMS 23A AND 23B, I WOULD LIKE TO ABSTAIN ON 23A AND SUPPORT 23B, AND WHAT I WANT TO UNDERSTAND I THINK FROM THE CITY MANAGER IS THAT THESE ITEMS ARE ON CONSENT FOR PURPOSES OF TAKING NO ACTION ON 23B, IS THAT CORRECT?

>> CITY CLERK: THAT'S CORRECT, COUNCILMEMBER.

>> M. HUMBERT: THANK YOU. I REALLY APPRECIATE THE WATERFRONT WORK ON THIS. IT IS VISIONARY, FRANKLY, AND I HAVE HAD A NUMBER OF CONVERSATIONS ABOUT IT. BUT THE UNFORTUNATE REALITY IS THAT OUR BUDGET SITUATION IS DIRE OVERALL AND EVEN MORE DIRE FOR THE MARINA GIVEN THE POTENTIAL COST AND CONTINUES TO BE OF GREAT OF THE PROCESS AND THE FACT THAT WE HAVE NO FUNDING TO ACTUALLY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

REALIZE ANY RESULTING PLAN, I THINK WE HAVE TO DEFER THIS TO NOW AND WHICH I'M VERY SAD ABOUT. AND THEN ITEM --

>> CITY CLERK: COUNCILMEMBER, IF I COULD, JUST TO CLARIFY I THINK WE WERE SAYING THE SAME THING, BUT MY RECOMMENDATION HERE IS TO ADOPT 23B AND NOT TAKE ACTION ON 23A.

>> M. HUMBERT: I MAY HAVE MISSPOKEN, BUT THAT'S WHAT I MEANT. ITEM 25, WHICH IS RELINQUISHMENT OF COUNCIL OFFICE BUDGET FUNDS. AND GENERAL FUNDS FOR THE POET LAUREATE PROGRAM FOR FISCAL YEAR 2026. AS I'M MARRIED TO A POET, I THINK I'M OBLIGATED TO CONTRIBUTE $250 TO THIS POET LAUREATE PROGRAM AND I WOULD LIKE THE RECORD TO REFLECT THAT. NUMBER 26, WHICH IS A RESOLUTION REAFFIRMING OUR COMMITMENT TO VISION ZERO AND I'M REALLY HAPPY TO SUPPORT THIS ITEM. I WANT TO ALSO RECOGNIZE THAT MY PREDECESSOR, COUNCILMEMBER DROSTE, I WANT TO RECOGNIZE HER FOR HER EFFORTS TO RECOGNIZE VISION ZERO IN BERKELEY, INCLUDING HER UNANIMOUSLY PASSED 28 ITEM 2 ADOPT A VISION ZERO FRAMEWORK. SHE WAS A PIONEER ON THIS HERE. SHE WAS SPURRED INTO ACTION AFTER MEETING THE FATHER OF ZACHARY CRUZ WHO TRAGICALLY DIED AT THE INTERSECTION OF -- IN 2007. THAT INTERSECTION WILL FINALLY BE REDESIGNED AND RECONSTRUCTED WITH LONG-RANGE DEVELOPMENT PLAN SETTLEMENT MONEY CONTRIBUTED BY THE UNIVERSITY AND I'M REALLY HAPPY ABOUT THAT. I'M GLAD WE HAVE THIS OPPORTUNITY TO RECOMMIT TO VISION ZERO. I HOPE THAT OUR TRAFFIC ENGINEERING PRACTICES

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WILL REFLECT THIS GOING FORWARD. I'M GOING TO BE MONITORING THEM TO MAKE SURE THAT'S THE CASE. I ALSO WANT TO RECOGNIZE THE BIG BUTTON ITEM. DISSES A PARTICULAR CONCERN OF CERTAIN PEOPLE IN MY OFFICE, WHICH ALSO PASSED UNANIMOUSLY, BUT HAS, UNFORTUNATELY, NEVER BEEN IMPLEMENTED WITH MANY NEW INTERSECTION SIGNALS CONTINUING TO REQUIRE PEDESTRIAN ACTIVATION DESPITE THE LONG-STANDING COUNCIL DIRECTION. NO ACTIVATION BY AUTOMOBILES, BUT PEOPLE ON THEIR FEET. IT'S CRITICAL THAT OUR DECISIONS ON OUR WORK AROUND ROADWAYS AND INTERSECTIONS REFLECT VISION ZERO PRINCIPLES, AND I'M EXCITED TO SUPPORT THIS ITEM FOR THAT REASON. NUMBER 29, WHICH IS RELINQUISHMENT OF COUNCIL OFFICE BUDGET FUNDS FOR THE DOWNTOWN BERKELEY ASSOCIATION'S SIXTH ANNUAL PRIDE ON THE PLAZA VARIETY SHOW. I WANT TO CONTRIBUTE $250 FROM OUR D.A. DISCRETIONARY ACCOUNT. AND 30, WHICH IS A RELINQUISHMENT OF COUNCIL OFFICE BUDGET FUNDS FOR THE HISTORICAL PLAQUE PROJECT I'D LIKE TO CONTRIBUTE $250 AFTER COUNCILMEMBER TREGUB BROUGHT TO MY ATTENTION THE NEED FOR RESTORING THE PLAQUE HONORING THE IRISH STUDENTS WHO SO TRAGICALLY DIED IN THAT TRAGIC INCIDENT SO MANY YEARS AGO. FINALLY, I'D LIKE TO CONTRIBUTE $250 FROM OUR DISCRETIONARY ACCOUNT FOR THE ITEM NUMBER 31, WHICH IS THE BERKELEY'S FIRST PRIDE FAIR HOSTED BY THE CIVIC CENTER FOR HUMAN GROWTH. THANK YOU. THAT'S IT FROM ME.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER BLACKABY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> B. BLACKABY: THANKS, MADAM MAYOR. JUST A FEW ITEMS ON THE CONSENT CALENDAR. FIRST, THANKS TO COUNCILMEMBER TREGUB FOR ADDING ME AS A COSPONSOR IN ITEM 31, WHICH IS BERKELEY'S FIRST PRIDE FAIR, WHICH IS HARD TO BELIEVE IT'S OUR FIRST, BUT HOPEFULLY THE FIRST OF MANY. PROUD TO SPONSOR THAT AND CONTRIBUTE $500. THEN ON ITEMS 25, THE POET LAUREATE PROGRAM, ITEMS 29, THE PRIDE IN THE PLAZA SHOW, AND ITEM 30, THE PLAQUE PROJECT PLEASE WRITE OUR OFFICE DOWN FOR 250 FOR EACH OF THOSE ITEMS. IN IN ITEM 28, JUST WANT TO THANK COUNCILMEMBER TAPLIN FOR AUTHORING THE MEASURE ON THE FIRE FACILITY REVENUE PIECE. I WAS PROUD TO COSPONSOR THAT. THANK YOU.

>> MAYOR A. ISHII: YES. OKAY. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANK YOU. COULD WE CLARIFY NUMBER 23 AGAIN WHICH ONE WE WOULD BE VOTING ON? AFFIRMATIVELY IF WE ADOPT THE CONSENT CALENDAR?

>> CITY CLERK: ADOPTING 23B.

>> C. LUNAPARRA: AND TAKING NO ACTION ON 23A?

>> CITY CLERK: CORRECT.

>> C. LUNAPARRA: THANK YOU. OKAY. THANK YOU. I'D LIKE TO GIVE $250 FROM OUR DISCRETIONARY ACCOUNT FOR ITEM 25, THE POET LAUREATE PROGRAM. WE ARE ALREADY DOWN FOR $200 FOR THE PRIDE ON THE PLAZA ITEM AND THE PACIFIC CENTER PRIDE FAIR. AND I'D LIKE TO APPRECIATE THE MAYOR AND HER STAFF FOR ITEM 26. I'M GLAD WE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ARE REITERATING OUR VISION ZERO PRIORITIES.

>> MAYOR ISHII: CAN I JUST CLARIFY, DID YOU SAY 25, FOR ITEM 25 $250?

>> C. LUNAPARRA: YEAH.

>> MAYOR A. ISHII: BECAUSE YOU ARE DOWN I THINK AS 500 ALREADY.

>> C. LUNAPARRA: CAN I SEE?

>> MAYOR A. ISHII: I JUST WANT TO MAKE SURE.

>> CITY CLERK: WHAT'S IN THE RECOMMENDATION IS AN UP TO AMOUNT.

>> MAYOR A. ISHII: OKAY. APOLOGIES. I MIGHT BE MISREMEMBERING.

>> C. LUNAPARRA: THANK YOU.

>> MAYOR A. ISHII: AND I KNOW THAT COUNCILMEMBER O'KEEFE AND COUNCILMEMBER TAPLIN ALSO WERE TRYING TO BE IN THE QUEUE, SO I'M GOING TO GO COUNCILMEMBER O'KEEFE AND THEN TAPLIN.

>> S. O'KEEFE: THANK YOU, MADAM MAYOR. CAN YOU GUYS HEAR ME?

>> MAYOR A. ISHII: YES, LOUD AND CLEAR.

>> S. O'KEEFE: GREAT. JUST MAKING SURE. SO JUST TWO THINGS. ONE IS I WOULD LIKE TO DONATE FROM MY OFFICE $250 TO ITEMS 25, I'M A COSPONSOR OF THAT ONE, SO ABSOLUTELY HAPPY TO DONATE TO THE POET LAUREATE FOUND. AND ITEMS 29 AND 31, THE TWO PRIDE ITEMS SOUNDS GREAT. I'D BE HAPPY TO DONATE ALSO $250 TO THE ITEM 30, COUNCILMEMBER TREGUB'S ITEM. SO I THINK THAT'S ALL OF THEM. THE ONLY OTHER THING I WANT TO SAY OTHER THAN THAT IS I REALLY WANT TO THANK THE AUTHOR AND COSPONSORS OF ITEM 26. MY DISTRICT,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DISTRICT 5, HAS UNFORTUNATELY LOST TWO PEOPLE TO TRAFFIC VIOLENCE IN THE LAST YEAR. ALICE MUSK AND BEN BROWN. JUST WANTED TO SAY THEIR NAMES. A VERY PERSONAL ISSUE FOR ME. PUBLIC SAFETY IS MY PRIMARY FOCUS AND TRAFFIC SAFETY IS A HUGE PART OF IT. HAPPY TO HAVE A CHANCE TO REAFFIRM OUR COMMITMENT TO THIS. SO THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, AND GOOD EVENING, MADAM MAYOR AND EVERYONE. ON ITEM 25, I WOULD LIKE TO RELINQUISH $500. THANK YOU VERY MUCH.

>> MAYOR A. ISHII: THANK YOU. OKAY. MOVING BACK HERE, COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU, MADAM MAYOR. I WOULD LIKE TO ITEM 200 -- I'M SORRY, $200 FOR THE POET LAUREATE PROGRAM. 29, $200 AS WELL. I LOVE A GOOD VARIETY SHOW. ITEM 30, $200 FOR THE PLAQUE AT THE BALCONY COLLAPSE. THANK YOU FOR REMEMBERING THAT. WE ACTUALLY HAD A CAFÉ INSIDE THAT BUILDING AND SAW THE WATER RAIN DOWN IN THERE EVERY TIME IT RAINED. REALLY UNFORTUNATE LACK OF A SURPRISE. ITEM 31, $200 FOR THE PRIDE FAIR DOWNTOWN, THE PROGRAMMING IN THERE. AND 27 I WANT TO CALL OUT COUNCILMEMBER KESARWANI, COUNCILMEMBER WORKED FOR YEARS ON THIS, YEARS THIS PARKING BENEFIT DISTRICT WHERE IT CAPTURED SOME OF THE PARKING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

REVENUE AND PUTS IT BACK INTO THE LOCAL BUSINESS COMMUNITY. AFTER YEARS OF TRYING TO WORK IT OUT, WE DECIDED WE CAN ACTUALLY JUST TAKE THE MONEY AND HAVE IT TO THE BUSINESS DISTRICT. WANT TO THANK COUNCILMEMBER KESARWANI. THANK YOU.

>> MAYOR A. ISHII: THANKS. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: THANKS VERY MUCH, MADAM MARY. I WANTED TO MAKE DONATIONS TO THE FOUR ITEMS THAT ARE REQUESTING DONATION. ITEM 25 FOR THE POET LAUREATE STIPEND PROGRAM. I'D LIKE TO DONATE $100 FOR THE PRIDE VARIETY SHOW. I'D LIKE TO DONATE $100 FOR THE PLAQUE. I'D LIKE TO DONATE $100; THAT'S ITEM 30. AND THEN ITEM 31, I THINK IT'S THE FIRST PRIDE FAIR I'D LIKE TO BE RECORDED AS DONATING $100. AND I JUST WANT TO ACKNOWLEDGE THAT THIS IS PRIDE MONTH AND AS WE SEE FOR WHATEVER REASON CORPORATE SPONSORS PULL BACK FROM INVESTING AND CELEBRATING THESE PARADES AND CELEBRATING PRIDE, I JUST WANT TO THANK COUNCILMEMBER TREGUB FOR MAKING SURE WE DO OUR PART TO RECOGNIZE HOW IMPORTANT THIS MONTH IS SO MANY IN OUR COMMUNITY. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. JUST A COUPLE OF NOTES FROM ME. ON ITEM 26, I THINK THERE'S A PARAGRAPH THAT IS DUPLICATED. SO JUST WANT TO -- IT'S JUST A TYPO, SO JUST WANT TO NOTE THAT FOR FOLKS. I WANT TO THANK EVERYONE FOR RELINQUISHING THEIR FUNDS FOR THE POET LAUREATE PROGRAM. I WANTED TO MAKE SURE THAT WE HAVE ENOUGH FUNDS TO GIVE TO OUR FUTURE POET LAUREATE. AND I

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WANT TO ADD MYSELF DOWN TO ITEM 29 FOR $500 AS WELL AS 30, ITEM 30 FOR $250. AND THAT IS IT FOR ME. OKAY. THANKS, FOLKS. SO NOW I'D LIKE TO OPEN UP FOR COMMENTS ON THE CONSENT AND ITEM DOCUMENT CONSENT OR INFORMATION ITEMS ONLY, PLEASE. SEE A COUPLE OF FOLKS WALKING UP.

>> PUBLIC SPEAKER: GOOD EVENING, COUNCIL. JOHN KENNER, DOWNTOWN BERKELEY BUSINESS ASSOCIATION. I WANT TO THANK YOU FOR THE CONSENT CALENDAR APPROVAL FOR OUR ANNUAL ASSESSMENTS. WE DO THAT EACH YEAR. ELEANOR IS HERE ALSO. THANK YOU FOR YOUR SUPPORT, ELEANOR. WANT TO THANK YOU FOR YOUR SUPPORT FOR THE PRIDE ON THE PLAZA VARIETY SHOW. I LIVE POSTCARDS IN THE BACK. IS ON SATURDAY. IT'S GOING TO BE REALLY FUN. IT'S FAMILY-FRIENDLY. IT'S IMPORTANT TO GET THE FAMILY OUT. WE NEED TO SUPPORT OUR PRIDE AND OUR JOY AND HAVE FUN. AND I MIGHT JUST HAVE MARK YOUR CALENDAR FOR THE 16TH WAS MENTIONED PACIFIC CENTER, BUT IT'S ON THE 16TH. AND THIS IS A FIRST TIME EVEN FOR THEM. WE'RE PARTNERING WITH THEM AND WE'RE REALLY THRILLED TO HAVE THE PACIFIC CENTER DOWNTOWN AND IT'S A GREAT ORGANIZATION. WE NOW HAVE TWO TWIN PRIDE EVENTS, WHICH IS REALLY MAGNIFICENT. FRAME OUR SUMMER AND THANK YOU ALL VERY MUCH. AND I LIVE POSTCARDS IN THE BACK IF ANYONE WANTS TO PICK THEM UP.

>> MAYOR A. ISHII: THANK YOU. AND JUST TO CLARIFY, IT'S AUGUST. YOU JUST AT THE 16TH, SO I JUST WANTED TO CLARIFY. YEAH.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> PUBLIC SPEAKER: I'M ALYSSA -- CEO FOR PACIFIC GROWTH. I JUST WANT TO THANK YOU ALL FOR YOUR SUPPORT OF PACIFIC CENTER'S FIRST EVER STREET FAIR FOR PRIDE DOWNTOWN BERKELEY. I HOPE TO SEE EVERYONE THERE AND I JUST SAY WE REALLY COULDN'T HAVE GONE TO WHERE WE ARE HONESTLY WITHOUT THE SUPPORT OF COUNCILMEMBER TREGUB, WHO HAS BEEN BY OUR SIDE SINCE THE GATE SINCE DAY ONE AND HAS BEEN A SUPPORT AND SO MANY OF THE CITY COUNCIL AND MAYOR ISHII, THANK YOU FOR SHOWING UP, TOO. IT'S BEEN AMAZING TO HAVE ALL OF YOU ON THE TEAM PRODUCING THIS EVENT. DOWNTOWN BUSINESS ASSOCIATION, DOWNTOWN BERKELEY, WE WOULDN'T BE HERE WITHOUT ALL OF YOUR SUPPORT AND I THINK IT'S GOING TO BE PHENOMENAL. I CAN'T WAIT TO DO THIS WITH THE COMMUNITY FOR THE COMMUNITY. AND IT IS, AS SO MANY HAVE SAID, SO IMPORTANT NOW MORE THAN EVER. OUR THEME IS QUEER JOY, SO WE INVITE YOU TO COME BE JOYFUL WITH US.

>> MAYOR A. ISHII: THANK YOU SO MUCH. [CLAPPING]

>> MAYOR A. ISHII: ANYONE ONLINE?

>> CITY CLERK: THREE SPEAKERS. THESE ARE ITEMS THAT ARE ON THE CONSENT CALENDAR ONLY. FIRST ONE IS MORRY LAST NAME HERMON. MORRY HERMON.

>> PUBLIC SPEAKER: SORRY, I WAS RAISING MY HAND EARLIER WHEN THERE WAS NO SOUND AND WE COULDN'T HEAR YOU. BECAUSE I'M NOT ON-SCREEN I COULDN'T WAVE MY HANDS AND SAY HEY, WE COULDN'T HEAR YOU. I THINK SHOSHANNA COVERED IT FOR AS. THANKS.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: NEXT IS CLAUDIA KAWCZYNSKA.

>> PUBLIC SPEAKER: THANKS. I HAVE A FEW COMMENTS TO SAY ABOUT 23B FOR CESAR CHAVEZ PARK THAT THERE'S BEEN CHANGES MADE IN THAT ITEM, WHICH ACTUALLY PLEASE THE PARK COMMISSION BECAUSE IT CALLS FOR DIVERTING HOPEFULLY SOME OF THE MONEY THAT WAS ASSIGNED TO THE CESAR CHAVEZ PARK VIA THE WATERS SPECIFIC PLAN TO PREPARE THE EAST STOCK, WHICH CAN TELL YOU HOW HAPPY THAT MAKES MANY PEOPLE IN THE MARINA. AT THE PARKS COMMISSION MEETING WHEN THE ITEM CAME UP WHEN THE EAST DOCK WAS CLOSED, WE HAD SO MANY PEOPLE WITH THEIR PADDLES, WITH ALL THEIR GEAR, URGING THE CITY TO FIX IT, SO NOW WE HAVE A WAY OF DOING IT, SO THANK YOU VERY MUCH. AND I HAVE TO SNEAK IN THE FACT THAT FOR THE MARINA FEES ON THE 24TH --

>> MAYOR A. ISHII: I'M SORRY. YOUR TIME IS UP BUT THANK YOU. YOU CAN COME BACK AND SPEAK ABOUT THE MARINA FEES ON THE 24TH.

>> CITY CLERK: NEXT IS ANN HARLOW.

>> PUBLIC SPEAKER: GOOD EVENING. I'M PRESIDENT OF THE BOARD OF THE BERKELEY HISTORICAL SOCIETY AND MUSEUM, AND I CAME TONIGHT TO ENCOURAGE YOU ALL TO SEND A LITTLE MONEY OUR WAY AS PART OF CONSENT AGENDA ITEM 30. I DIDN'T REALIZE YOU'D BE ANNOUNCING YOUR REAL EQUIPMENTS BEFORE I SPOKE, SO NOW I CAN THANK SEVEN OF YOU FOR YOUR GENEROSITY. THE BERKELEY HISTORIC PLAQUES ARE ALL OVER TOWN, PRESUMABLY IN YOUR DISTRICTS. MAYBE SOME MORE CAN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CHIME IN. TAKING OVER THE PROJECT IN 2023 WAS A NATURAL ADDITION TO THE WORK THAT WE DO. EACH PLAQUE COSTS AT LEAST $1000 TO PRODUCE AND THERE ARE TWO THAT CURRENTLY NEED TO BE REPLACED. LUCKILY, NEW PLAQUES GENERALLY HAVE PRIVATE SPONSORS, BUT WE DO APPRECIATE THE SUPPORT FROM THE CITY. WE ALSO SUPPLEMENT THE PHYSICAL PLAQUES FOR THE WEBSITE, BERKELEY PLAQUES.ORG, WHICH INCLUDES ADDITIONAL TEXT AND PICTURES FOR EACH PLAQUE PLUS DOZENS OF WHAT WE CALL E-PLAQUES WHICH ONLY EXIST ON THAT WEBSITE. I HOPE EVERYONE LISTENING WILL VISIT OUR MUSEUM NOW AND THEN AND ALSO OUR WEBSITE BERKELEY DISTRICT --

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: OKAY.

>> MAYOR A. ISHII: THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS CAMERON WOO.

>> PUBLIC SPEAKER: MY NAME IS CAMERON WOO. AS THE CHAIR OF THE BERKELEY CIVIC ARTS COMMISSION, I WISH TO THANK THE CITY COUNCIL FOR THEIR SUPPORT OF THE POET LAUREATE PROGRAM. THE POTENTIAL FUNDING OF THE POET LAUREATE PROGRAM SHOWS A SERIOUS COMMITMENT TO THE LITERARY ARTS BERKELEY, A TRADITION THAT GOES BACK GENERATIONS. THIS POETRY PROGRAM TOUCHES ALL AGES INCLUDING A VIBRANT POETRY PROGRAM IN OUR SCHOOLS PLUS EVENTS THROUGHOUT THE YEAR. THANK YOU ALL. MUCH APPRECIATED.

>> CITY CLERK: THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: THANK YOU.

>> CITY CLERK: LAST SPEAKER IS ALEX KNOX.

>> PUBLIC SPEAKER: HI, MAYOR, CITY COUNCIL. EXECUTIVE DIRECTOR OF -- BUSINESS IMPROVEMENT DISTRICT. JUST HERE TO THANK YOU FOR YOUR SUPPORT AND SPEAKING ON THE TELEGRAPH BUSINESS DISTRICT ANNUAL REPORT AND RENEWAL. JUST WANT TO QUICKLY HIGHLIGHT THE DISTRICT HAS PLAYED AN ACTIVE ROLE IN LIMITING AND ENHANCING CRISIS RESPONSE ON THE SOUTH SIDE, PARTICULARLY THIS YEAR. OUR TELEGRAPH -- MENTAL HEALTH FIRST AID CERTIFIED EXPANDING THEIR DIRECT ASSISTANCE TO THOSE IN CRISIS. I'M ALSO PLEASED TO SUPPORT THAT MANY OF OUR AMBASSADORS HAVE COME TO US THROUGH DIFFERENT REENTRY PROGRAMS AND HAVE ACHIEVED GREAT PERSONAL GROWTH AND ACHIEVEMENT. WE HAVE ALSO EXPERIENCED SOME DIFFICULT BUSINESS CLOSURES SO FAR THIS YEAR DUE TO A RANGE OF DIFFERENT REASONS, BUT OUR DISTRICT ECONOMY IS SHOWING SEVERAL STRENGTHS STILL. THE SUBSTANTIAL NEW FILAMENT PIPELINE WE HAVE WHICH THRIVING RETAIL BUSINESSES ARE A SIGN OF STRENGTH --

>> MAYOR A. ISHII: THANK YOU.

>> PUBLIC SPEAKER: WE THANK YOU FOR YOUR SUPPORT.

>> MAYOR A. ISHII: THANKS. WAS THAT THE FINAL?

>> CITY CLERK: THAT WAS THE FINAL SPEAKER.

>> MAYOR A. ISHII: OKAY. AT THIS TIME I WILL ENTERTAIN A MOTION TO APPROVE THE CONSENT CALENDAR.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> I. TREGUB: SO MOVED.

>> SECOND.

>> MAYOR A. ISHII: ALL RIGHT. CLERKS, CAN YOU PLEASE TAKE THE ROLL?

>> CITY CLERK: TO APPROVE THE CONSENT CALENDAR, COUNCILMAN KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN. SPEAK BACK

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK:

>> I. TREGUB: YES. [ROLL CALL]

>> MAYOR A. ISHII: OKAY. THANK YOU SO MUCH, FOLKS. WE ARE MOVING ON TO THE ACTION CALENDAR. THESE ARE PUBLIC HEARINGS. JUST A REMINDER, FOLKS, ITEMS 33, 37, 41 ARE MOVED TO JOIN -- ITEM 32, WHICH IS THE AMBULANCE TRANSPORT AND FIRST RESPONDER FEE INCREASE. AND, MR. CITY MANAGER, DO YOU WANT TO INTRODUCE?

>> CITY MANAGER: SURE. WE ACTUALLY DON'T HAVE ANY PRESENTATIONS, SO IF ANY COUNCILMEMBER SACHS QUESTIONS, WE'RE HAPPY TO RECEIVE THOSE. CHIEFS BRAG IS HERE ALSO.

>> MAYOR A. ISHII: ACTUALLY, I CAN JUST OPEN THE PUBLIC HEARING FOR ALL OF THESE, MARK, RIGHT? SO LET'S OPEN THE PUBLIC HEARINGS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOR ITEMS 32, 34, 35, 36, 38, 39, AND 42, WHICH ARE THE ONES THAT WE ARE HEARING THIS EVENING. AND I WILL SEE IF THERE ARE ANY QUESTIONS ABOUT THAT FROM ANY OF THE COUNCILMEMBERS. I DO NOT SEE ANY. SO I WILL TAKE PUBLIC COMMENT ON ITEM 32, WHICH IS THE AMBULANCE FIRST RESPONDER FEE INCREASE. ANYBODY ONLINE?

>> CITY CLERK: NO -- ONE JUST RAISED THEIR HAND. LET'S SEE. KEN -- KEN BUKOWSKI. KEN, YOU SHOULD BE ABLE TO UN-

>> PUBLIC SPEAKER: HELLO. CAN YOU HEAR ME?

>> CITY CLERK: YES.

>> PUBLIC SPEAKER: I HAD ONE QUESTION. I THINK THE FEE FOR AN AMBULANCE TRANSPORT IS SOMETHING LIKE $2000. WHAT WOULD THIS INCREASE IN FEE MAKE THAT CHARGE?

>> CITY CLERK: WE DON'T ANSWER QUESTIONS DURING YOUR PUBLIC COMMENT PERIOD, BUT PLEASE CONCLUDE YOUR COMMENTS.

>> PUBLIC SPEAKER: OKAY, I WAS JUST CONCERNED ABOUT THE HIGH COST OF AMBULANCE SERVICES. THAT'S MY COMMENT. THANK YOU.

>> CITY CLERK: THANK YOU.

>> MAYOR A. ISHII: OKAY. ANY OTHER PUBLIC COMMENT ON THIS?

>> MAYOR A. ISHII: THAT IS ALL. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING FOR ITEM 32? OKAY, MOTION BY HUMBERT SECOND BY COUNCILMEMBER BARTLETT.

>> CITY CLERK: OKAY. TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: YES.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES. ANY OTHER COMMENTS FROM FOLKS? OKAY.

>> CITY CLERK: MOTION TO ADOPT --

>> MAYOR A. ISHII: YEAH, I THINK -- SORRY, CLERK.

>> CITY CLERK: YOU SAID MOTION TO ADOPT THE RESOLUTION FOR THE AMBULANCE TRANSPORT FEES IS IN ORDER?

>> I SO MOVE.

>> SECOND.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: CAN YOU TAKE THE ROLL AGAIN, PLEASE?

>> MAYOR A. ISHII: SORRY, FOLKS, YOU'RE GOING TO HAVE TO HEAR THE ROLL LIKE 20 MORE TIMES. [ROLL CALL]

>> MAYOR A. ISHII: OKAY. NOW AGAIN WE'RE SKIPPING 33. WE ARE MOVING TO 34. THAT IS FOR THE PUBLIC HEALTH -- SORRY, FEES, BERKELEY -- AND WE HAVE ALREADY OPENED THE PUBLIC HEARING FOR THIS, SO I WILL SEE IF THERE'S A PRESENTATION.

>> NO PRESENTATION, MADAM MAYOR. DIRECTOR GILMAN IS ON THE LINE IF PEOPLE HAVE QUESTIONS.

>> MAYOR A. ISHII: SURE. DO PEOPLE HAVE QUESTIONS? OKAY. IN THAT CASE, IS THERE ANY PUBLIC COMMENT ON THIS ITEM? ANYONE ONLINE?

>> CITY CLERK: NO ONLINE SPEAKERS.

>> I MOVE WE CLOSE THE PUBLIC HEARING.

>> MAYOR A. ISHII: THANK YOU.

>> SECOND.

>> MAYOR A. ISHII: CLERK?

>> CITY CLERK: TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: TREGUB.

>> I. TREGUB: YES.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES. ARE THERE ANY COMMENTS FROM COUNCIL MEMBERS? YES, COUNCILMEMBER TREGUB, I THINK YOU ARE --

>> I. TREGUB: I HAVE A MOTION.

>> MAYOR A. ISHII: OKAY. NO COMMENTS FROM ANYONE ELSE? OKAY.

>> I. TREGUB: I MOVE THE NEW FEE SCHEDULED AS PROPOSED BY STAFF.

>> SECOND.

>> MAYOR A. ISHII: OKAY. CAN YOU TAKE THE ROLL, PLEASE, CLERK?

>> CITY CLERK: COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: YES.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES. THANKS, FOLKS. WE ARE MOVING ON TO ITEM NUMBER 35. THIS IS THE HOUSING TRUST FUND AND SMALL SITES PROGRAM FEES. WE HAVE ALREADY OPENED THE PUBLIC HEARING FOR THIS. IS THERE A PRESENTATION?

>> THERE IS NO PRESENTATION, BUT HAPPY TO DO QUESTIONS.

>> MAYOR A. ISHII: ANY QUESTIONS? OKAY. ANY COMMENTS FROM THE PUBLIC ON THIS ONE? ANYONE ONLINE?

>> CITY CLERK: NO SPEAKERS ONLINE.

>> MAYOR A. ISHII: OKAY. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> I SO MOVE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> SECOND.

>> CITY CLERK: OKAY COMING TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI? [ROLL CALL]

>> CITY CLERK: PUBLIC HEARING IS CLOSED.

>> MAYOR A. ISHII: YOU WANT TO MAKE A MOTION?

>> I. TREGUB: I ACTUALLY HAVE A COMMENT ON THIS ONE. I JUST WANTED TO JUST IN TRANSPARENCY NOTE WE DID RECEIVE A LETTER OF CONCERN AROUND THIS ITEM FROM TWO MEMBERS YOU KNOW, SORRY, THAT'S THE NEXT ITEM. I WILL MAKE THE MOTION FOR THIS ONE.

>> MAYOR A. ISHII: OKAY THEN.

>> SECOND.

>> CITY CLERK: OKAY. TO APPROVE THE HOUSING TRUST FUND SMALL SITE FEE, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES.

>> CITY CLERK: OKAY, ITEM IS APPROVED.

>> MAYOR A. ISHII: WE'RE MOVING ON TO ITEM 36, THE HOUSING COMPLIANCE FEE. WE ALREADY OPENED THE PUBLIC HEARING FOR THIS MATTER. IS THERE PRESENTATION FROM STAFF?

>> NO.

>> MAYOR A. ISHII: ANY QUESTIONS FROM COUNCIL NUMBERS? OKAY. ANY PUBLIC COMMENT ON THIS ONE? OH, DID YOU HAVE A QUESTION, I'M SORRY. OKAY. IS THERE ANY PUBLIC COMMENT ON THIS ONE?

>> CITY CLERK: LOOKS LIKE WE HAVE ONE HAND RAISED HERE. DANIEL BROWNSON.

>> PUBLIC SPEAKER: THAT REFERS TO THE FEE THAT DEVELOPERS HAVE TO PAY IF THEY DON'T PUT AFFORDABLE HOUSING UNITS IN THEIR NEW CONSTRUCTION JUST TO CONFIRM.

>> MAYOR A. ISHII: WE DON'T USUALLY RESPOND DURING PUBLIC COMMENT.

>> PUBLIC SPEAKER: RIGHT, I'M JUST -- BEFORE I COMMENT, I'M JUST

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TRYING TO -- BECAUSE I DON'T SPEAK LEGALESE I THINK THE FEE CHARGED SHOULD BE HIGHER BECAUSE TOO MANY DEVELOPERS ARE CHOOSING TO JUST PAY THE FEE INSTEAD OF ACTUALLY PUTTING IN THE AFFORDABLE HOUSING, WHICH INDICATES THAT IT NEEDS TO BE HIGHER.

>> MAYOR A. ISHII: THANK YOU. IS THERE ANOTHER COMMENT ONLINE?

>> CITY CLERK: NO, THAT IS ALL.

>> MAYOR A. ISHII: OKAY. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> I SO MOVE.

>> MAYOR A. ISHII: IS THERE A SECOND? OKAY.

>> CITY CLERK: OKAY. TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES.

>> CITY CLERK: OKAY. PUBLIC HEARING IS CLOSED.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER, IS THIS THE ONE YOU WANTED TO COMMENT ON? GO AHEAD, COUNCILMEMBER TREGUB.

>> I. TREGUB: I WANTED TO ACKNOWLEDGE WE DID RECEIVE A LETTER OF CONCERN FROM TWO NONPROFIT HOUSING DEVELOPERS WITH WHOM WE PARTNER. I WANT TO THANK STAFF FOR THEIR PROMPT RESPONSE WHEN I FORWARDED THE QUESTION, AND JUST WANTED TO UPLIFT EVEN THOUGH, YOU KNOW, THE COSTS ARE GOING UP AND THAT'S JUST A REFLECTION OF OUR CHALLENGING FISCAL POSITION AND THAT IT DOES COST INCREASING STAFF TIME TO DO THIS. OF NOW, THE ESTIMATES ARE THAT THESE FEES WILL INCREASE THE BUDGET DEVELOPMENT BY LESS THAN .5% MOST LIKELY BETWEEN .2 AND .3%, WHICH WE DON'T ANTICIPATE WILL JEOPARDIZE THE PROJECT'S VISIBILITY ON AFFORDABLE HOUSING PROJECTS. AND I ALSO WANTED TO HIGHLIGHT THAT SOME OF THESE, THEY ARE NOT REALLY REVENUES, BUT SOME OF THE ADDITIONAL FUNDING WOULD THEN TAKE THE PRESSURE OFF OF FUNDING SOURCES LIKE MEASURE U1, WHICH OF COURSE WOULD MAKE IT MORE FEASIBLE TO FUND ACTUAL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PROJECTS OUT OF SUCH FUNDING SOURCES. I DON'T LOVE TO VOTE FOR FEE INCREASES ON NONPROFIT HOUSING DEVELOPERS, BUT IN THIS CASE I THINK STAFF HAS DONE A GREAT JOB OF BALANCING NEEDS WITH CURRENT REALITIES AND WILL BE SUPPORTING THIS.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. ARE THERE ANY OTHER COUNCILMEMBER COMMENTS ON THIS? THANK YOU. LET'S SEE. IS THERE A MOTION? I'LL ENTERTAIN A MOTION TO APPROVE.

>> MOVE TO ADOPT.

>> SECOND.

>> CITY CLERK: OKAY. TO APPROVE THE FEES, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES.

>> CITY CLERK: OKAY. THAT ITEM IS APPROVED.

>> MAYOR A. ISHII: OKAY. THANK YOU VERY MUCH. ITEM 37 WE ARE SKIPPING THIS EVENING. LIVING ON TO THE 24TH. MOVING ON TO 38, WHICH IS THE FACILITIES AND CAMP PROGRAM FEES. IS THERE A PRESENTATION?

>> THERE IS NOT.

>> MAYOR A. ISHII: GREAT. ANY QUESTIONS FROM COUNCILMEMBERS? YES, COUNCILMEMBER O'KEEFE. THANK YOU.

>> S. O'KEEFE: THANK YOU, MADAM MAYOR. I'M GLAD FOR AN OPPORTUNITY TO SPEAK ABOUT THIS ITEM BECAUSE I HAVE VERY, LOCATED FEELINGS ABOUT IT.

>> MAYOR A. ISHII: SORRY, IS THIS A QUESTION?

>> S. O'KEEFE: OH, WE ARE ONLY DOING QUESTIONS NOW?

>> MAYOR A. ISHII: YES.

>> S. O'KEEFE: I DO HAVE A QUESTION. THANK YOU FOR CORRECTING ME. PARKS DIRECTOR FERRIS, I'M WONDERING IF THERE ARE ANY PLANS YOU CAN SPEAK TO TO INCREASE FREE ACCESS TO ADVENTURE PLAYGROUND?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> PARKS DIRECTOR: WE HAVE BEEN TALKING TO STAFF AND COMMUNITY MEMBERS. WE HAVE BEEN LOOKING AT POTENTIAL ONE DAY A WEEK DURING THE SUMMER. WE ARE HOPING 10 WEEKS DURING THE SUMMER OPEN MONDAY THROUGH SUNDAY, SO WE ARE LOOKING AT ONE WEEK DURING THE SUMMER AND ONE DAY A MONTH. SO WE HAVE YET TO FINISH THAT PROCESS. WE'RE GOING TO DO SOME FOCUS GROUPS IN THE FALL. THAT FEE WON'T BE IMPLEMENTED FOR ADVENTURE PROGRAM UNTIL PROBABLY JANUARY AT THE EARLIEST, SO WE ARE GOING TO DO FOCUS GROUPS IN THE FALL TO SEE WHAT WORKS BEST FOR THE COMMUNITY.

>> S. O'KEEFE: THANK YOU SO MUCH. SO JUST TO CLARIFY, YOU'RE NOT PROMISING, BUT YOU ARE IMAGINING SOMETHING LIKE FREE ON TUESDAYS. IS THAT RIGHT?

>> PARKS DIRECTOR: DURING THE SUMMER, CORRECT. DURING THE SCHOOL YEAR WE ARE OPEN JUST WEEKENDS SATURDAY AND SUNDAY. SO WE WILL FIND ONE DAY A MONTH THAT WORKS FOR EVERYBODY.

>> S. O'KEEFE: GREAT. THANK YOU SO MUCH. APPRECIATE THAT CLARITY.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TAPLIN, YOU HAVE A QUESTION?

>> T. TAPLIN: YES, THANKS. I HAVE TWO OR THREE QUESTIONS. WHAT IS THE ACTUAL COST TO RUN THESE PROGRAMS AND MAINTAIN THESE PUBLIC AMENITIES AT THE MARINA?

>> PARKS DIRECTOR: COUNCILMEMBER TAPLIN, ARE YOU REFERRING TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ADVENTURE PLAYGROUND?

>> T. TAPLIN: YES.

>> PARKS DIRECTOR: SO ADVENTURE PLAYGROUND IS STAFFED EITHER THREE OR FOUR EMPLOYEES AND THERE'S ABOUT $20,000 IN SUPPLIES AND SERVICES THAT GO ALONG WITH IT. DURING THE SCHOOL YEAR, LIKE I SAID, WE'RE OPEN ON WEEKENDS, DURING THE SUMMER, FOR 10 WEEKS. THE TOTAL COST IS SOMEWHERE BETWEEN 140 AND $150,000.

>> T. TAPLIN: THANK YOU. WHAT IS THE FUNDING SOURCE THE CITY USES TO PAY THOSE COSTS?

>> PARKS DIRECTOR: THE MARINA FOUND.

>> T. TAPLIN: AND THAT WOULD BE THE SAME FUND THAT MAINTAINED THE MARINA SECURITY SOUTH THAT WE HAD TO LAY OFF, CORRECT?

>> PARKS DIRECTOR: CORRECT.

>> T. TAPLIN: OKAY. THANK YOU. OH, AND WHAT WAS -- WELL, THIS IS UNRELATED. NEVERMIND. THANKS.

>> MAYOR A. ISHII: THANK YOU. ANY OTHER QUESTIONS FROM COUNCILMEMBERS? OKAY. IS THERE ANY PUBLIC COMMENT ON THIS ITEM? YES, GO AHEAD AND COME UP.

>> PUBLIC SPEAKER: HI, STEVE TRACY. I LIVE ON EUCLID. FOLLOWING TAPLIN, MY QUESTION IS ACTUALLY ABOUT ITEM 37, SO I THINK THAT'S OPEN FOR DISCUSSION.

>> MAYOR A. ISHII: NO, I'M SORRY, WE ARE NOT TALKING ITEM 37 RIGHT NOW. WE ARE TALKING ABOUT ITEM 38 WHICH IS THE CAMP

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PROGRAM FEES.

>> PUBLIC SPEAKER: EARLIER, YOU OPENED THE FEE INCREASES EVEN THOUGH THEY ARE BEING TABLED, YOU OPEN FOR COMMENTS, RIGHT?

>> MAYOR A. ISHII: RIGHT, WHAT WE SAID IS WE WILL MOVE THOSE ITEMS AND TAKE ANY PUBLIC COMMENTS FOR THEM AFTER THE FIRE ITEMS THIS EVENING, SO YOU ARE WELCOME TO COME BACK ON THE 24TH OR YOU CAN WAIT UNTIL AFTER THE FIRE ITEMS ARE HEARD.

>> PUBLIC SPEAKER: GOT IT.

>> MAYOR A. ISHII: THANK YOU. ANY OTHER COMMENTS ON THIS ITEM? ANYONE ONLINE?

>> CITY CLERK: NO.

>> MAYOR A. ISHII: OKAY. VERY GOOD. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> I SO MOVE.

>> SECOND.

>> CITY CLERK: OKAY. TO CLOSE THE PUBLIC HEARING. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES.

>> CITY CLERK: OKAY.

>> MAYOR A. ISHII: ALL RIGHT. ARE THERE ANY COMMENTS ON THIS ONE? OH, MANY COMMENTS. OKAY. I'M GOING TO GO WITH THE TWO FOLKS THAT ARE ONLINE FIRST. NONEXECUTIVE SHORE WHOSE HAND WAS UP FIRST, BUT I'M GOING TO GO WITH COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU VERY MUCH. I JUST WANTED TO SAY THAT I, YOU KNOW, I REALLY FEEL FOR THE PEOPLE WHO HAVE GROWN ACCUSTOMED TO THE FREE PARKING AT THE MARINA AND THE SUBSIDIZED PROGRAMS THAT WE MAINTAIN THERE. THAT'S SOMETHING THAT I HAVE DEFINITELY BENEFITED FROM AND ENJOYED THROUGH ALL MY LIFE, BUT I DO WANT TO UNDER SCORE HELLO REAL, THE BUDGET CRISIS IS. IT'S GREAT THAT WE'VE BEEN ABLE TO PROVIDE ALL THESE THINGS FOR FREE. DOESN'T

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

MEAN THERE'S NO COST TO THE CITY. THE DOUBLETREE -- THE LOSS OF REVENUE FROM THE DOUBLETREE IS ESSENTIALLY WHAT FORCED US TO LAY OFF MARINA STAFF AND CAUSED US TO DEFUND THE WATERFRONT PACIFIC PLAN, WHICH WAS CREATED TO TURN THE FISCAL SITUATION AROUND, AND WE HAD TO DEFUND THAT TO COVER THE COST OF THE REPAIR TO THE EAST SWIM DOCKS, WHICH HAD FALLEN HUNDRED DISREPAIR DUE TO OUR INABILITY TO MAINTAIN MARINA INFRASTRUCTURE OVER TIME. SO I DID JUST WANT TO SHARE THAT WITH THE ROOM AND WITH THE COMMUNITY. I WILL BE SENDING OUT A COMMUNICATION TO MY NEWS LISTSERVE, BUT I DO WANT TO POINT OUT THE VERY REAL MATERIAL COST AND THE MATERIAL IMPACTS OF OUR FISCAL CRISIS, WHICH ISN'T GOING TO GO AWAY UNLESS WE MAKE VERY DIFFICULT DECISIONS, AND FROM THIS POINT FORWARD OUR DECISIONS WILL BECOME NO EASIER. I THINK TONIGHT OR AT THIS POINT OUR DECISIONS ARE BETWEEN CHARGING USER FEES AND CONTINUING TO TRY DEFUND THESE PROGRAMS OVER AGAINST THE DEFICIT. BUT IN THE FUTURE, THE QUESTION BECOMES WHETHER WE EVEN HAVE THESE PROGRAMS OR AMENITIES AT ALL. SO I HOPE THAT WE AS A CITY CAN DO THE HARD WORK TO COURSE CORRECT NOW BEFORE IT'S TOO LATE AND WE ARE OUT OF OPTIONS. THANK YOU.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: THANK YOU. SO AS I STARTED TO SAY BEFORE, I HAVE REALLY MIXED STRONG FEELINGS ABOUT THIS ITEM. I WANT TO START

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

OUT WITH THE POSITIVE, WHICH IS I'M ACTUALLY VERY EXCITED. I THINK IT'S GREAT TO INCREASE THE FEE TO AFTERSCHOOL PROGRAMS BECAUSE A, WE SHOULD ABSENTLY PRESERVE ACCESS AND WE SHOULD BE ABLE TO EXPAND ACCESS TO THOSE PROGRAMS, AND THAT'S SOMETHING I'VE BEEN ASKING FOR, FOR A LONG TIME AND EVEN COSPONSORED AN ITEM WITH COUNCILMEMBER TAPLIN. I HOPE -- ACTUALLY BE ABLE TO EXPAND ACCESS TO APPLICABLE PROGRAMS. HOWEVER, ADVENTURE PROGRAM IS VERY EMOTIONAL TO ME. I WANT TO TAKE THIS OPPORTUNITY TO SAY THAT IT IS, I BELIEVE -- I WAS GOING TO SAY ONE OF, BUT I THINK THE MOST WONDERFUL, MAGICAL, AND PRECIOUS THING IN OUR CITY. I LOVE IT SO MUCH. IT IS SUCH A GIFT AND A BLESSING THAT WE HAVE THIS. THE IDEA THAT ACCESS WOULD BE LIMITED TO IT IN ANY WAY, IT JUST FEELS VERY WRONG TO ME. THAT SAID, I AGREE WITH COUNCILMEMBER TAPLIN AND I APPRECIATE YOU ARTICULATING THE BUDGET CRISIS SO WELL JUST SO I DON'T HAVE TO. I WANT TO SAY NO, NO, ADVENTURE PLAYGROUND FREE FOREVER, BUT I DON'T HAVE AN IDEA TO GET ANOTHER $150,000 TO COVER THE COST, AND I TRIED. I DO SUPPORT THE ITEM. I REALLY APPRECIATE THE COMPROMISE THAT DR. FERRIS IS MOVING TOWARDS MAKING ONE FREE DAY A WEEK. I THINK THAT'S A GOOD COMPROMISE GIVEN THE REALITIES THAT WE'RE WORKING WITH. I HOPE THAT ENDS UP BEING THE POLICY, FREE ONE DAY A MONTH DURING THE SCHOOL YEAR AND ONE DAY A WEEK OVER THE SUMMER. I CAN HAPPILY VOTE FOR THIS ITEM, WHICH I WILL BE DOING.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: YES, TO SAY FOR SOMEONE WHO IS LOOKING FORWARD TO TAKING MY KIDS TO CAMP THIS WEEKEND, PROUD TO MOVE TO ADOPT ITEM 38.

>> SECOND.

>> MAYOR A. ISHII: OKAY.

>> PUSHED THE WRONG BUTTON.

>> MAYOR A. ISHII: I JUST WANT TO MAKE A BRIEF COMMENT TO SAY I FEEL SIMILARLY THAT IT IS SAD THAT WE HAVE TO CHARGE FOR ADVENTURE PLAYGROUND BUT I DO KNOW DIRECTOR FERRIS AND HIS STAFF HAVE BEEN DOING EVERYTHING THEY CAN TO MAKE THIS FEASIBLE. I'M HOPEFUL THAT IF OUR MARINA FUND IS THRIVING IN THE FUTURE AND WE ARE ABLE TO OFFER THIS FOR FREE THAT MAYBE WE WILL BE ABLE TO REMOVE THE FEE. I KNOW THIS IS SUCH A SPECIAL, SPECIAL BERKELEY PLACE AND I KNOW YOU ALL FEEL THE SAME WAY. JUST KNOW, FOLKS, THIS IS A CHALLENGING DECISION FOR US. PRIME EXCITED BY THE INCREASE IN FEES FOR AFTERSCHOOL PROGRAMS. ONE OF THE PARENTS WHO HAD A CHILD AND AFTERSCHOOL PROGRAM SAID I'D LIKE TO INCREASE MORE SLOTS. I'D BE WILLING TO HAVE AN EVEN MORE INCREASE SO THAT MORE PEOPLE CAN JOIN. I THINK THAT'S WHAT WE ARE REALLY DOING HERE BECAUSE, UNFORTUNATELY, IN OUR COUNTRY WE ARE NOT ABLE TO SUPPORT THE KIND OF AFTERSCHOOL PROGRAMS THAT I

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THINK ALL CHILDREN SHOULD HAVE ACCESS TO. I KNOW WE ARE DOING OUR ABSOLUTE BEST IN THE CITY OF BERKELEY TO INCREASE ACCESS FOR AS MANY STUDENTS AS POSSIBLE. I WANT TO SAY THANK YOU TO THE STAFF. I KNOW THIS WAS A TOUGH ONE AS WELL. AND OKAY. WITH THAT, THERE IS A MOTION. COULD YOU TAKE THE ROLL, PLEASE?

>> CITY CLERK: YES. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: OKAY. ITEM IS APPROVED.

>> MAYOR A. ISHII: OKAY. WE ARE MOVING ON TO ITEM 39, CHANGES TO THE PLANNING AND DEVELOPMENT FEE SCHEDULE. AGAIN, WE'VE ALREADY OPENED THE PUBLIC HEARING. IS THERE A PRESENTATION FOR THIS ONE?

>> THERE IS NOT.

>> MAYOR A. ISHII: ARE THERE ANY QUESTIONS FROM COUNCIL? SEEING NONE, I WILL MOVE ON TO PUBLIC COMMENT. IS THERE ANY PUBLIC COMMENT ON THIS ITEM?

>> CITY CLERK: THERE IS ONE ONLINE COMMENTER. DANIEL BROWNSON.

>> PUBLIC SPEAKER: I MEAN, IF YOU'RE HAVING TROUBLE WITH THE BUDGET, YOU COULD JUST CUT THE POLICE DEPARTMENT BUDGET. THAT'S WHERE MOST OF THE CITY MONEY -- WELL, MAYBE NOT MOST, BUT THE BIGGEST PART OF THE CITY'S MONEY GO.

>> MAYOR A. ISHII: ARE YOU GOING TO SPEAK TO ITEM 39? WE ARE TALKING ABOUT THE PLANNING FEE SCHEDULE. OKAY THEN. IS ANYONE ELSE TRYING TO SPEAK TO THIS ITEM?

>> CITY CLERK: NO OTHER HANDS RAISED.

>> MAYOR A. ISHII: OKAY. THANK YOU. IS THERE A MOTION TO CLOSE THE PUBLIC HEARING?

>> SO MOVED.

>> SECOND.

>> MAYOR A. ISHII: CAN YOU TAKE THE ROLL, PLEASE?

>> CITY CLERK: COUNCILMEMBER KESARWANI.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN. TO CLOSE THE PUBLIC HEARING,

COUNCILMEMBER TAPLIN.

>> MAYOR A. ISHII: COUNCILMEMBER TAPLIN? MAYBE HE CAN'T HEAR US.

>> S. O'KEEFE: THE SOUND IS WORKING. I CAN HEAR YOU.

>> CITY CLERK: COUNCILMEMBER TAPLIN, WE ARE TAKING THE ROLL TO

CLOSE THE PUBLIC HEARING ON ITEM 39.

>> MAYOR A. ISHII: CAN WE SKIP HIM AND COME BACK?

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES.

>> CITY CLERK: AND COUNCILMEMBER TAPLIN.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> T. TAPLIN: YES.

>> CITY CLERK: ALL RIGHT.

>> MAYOR A. ISHII: THANK YOU. COUNCIL COMMENTS ON THIS ONE, ITEM 39? OKAY. IS THERE A MOTION?

>> MOVE WE ADOPT ITEM 39.

>> SECOND.

>> MAYOR A. ISHII: CLERK?

>> CITY CLERK: OKAY. COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES. OKAY. SO WE ARE NOT DISCUSSING ITEMS 40, WHICH IS THE NEW FEE SCHEDULE FOR CARRIED WEAPONS PERMIT OR 41 WHICH IS CHANGE TO SELECT PUBLIC WORKS TRANSPORTATION PERMIT FEES, AND I WILL -- LEVY AND COLLECTION OF FISCAL YEAR 2026 STREET LIGHTING ASSESSMENT. OKAY. IS THERE A PRESENTATION?

>> THERE IS NOT, MADAME MAYOR. DIRECTOR DAVIS IS AVAILABLE.

>> MAYOR A. ISHII: OKAY. ARE THERE ANY QUESTIONS FROM FOLKS? OKAY. IN THAT CASE, IS THERE ANY PUBLIC COMMENT ON THIS ITEM? ANYONE ONLINE?

>> CITY CLERK: NO RAISED -- OH, WE HAVE A HAND RAISED. CHERYL DAVILA, FORMER COUNCILMEMBER.

>> PUBLIC SPEAKER: INTERESTING THIS MEETING IS GOING TO END EARLY, LOOKS LIKE. YEAH, I DON'T REALLY HAVE ANYTHING TO SAY BESIDES THAT. BUT ACTUALLY I DO BECAUSE THERE'S A GENOCIDE GOING ON. AND IT'S REALLY SAD THAT YOU ALL DON'T CARE ABOUT THAT. AND THEN I ALSO WANTED TO TALK ABOUT PFAS -- [LOST AUDIO]

>> MAYOR A. ISHII: I THINK THAT PERSON WAS NOT SPEAKING TO ITEM 42. IS THERE ANYONE THAT WANTED TO SPEAK TO ITEM 42, WHICH IS THE LEVY AND COLLECTION OF FISCAL YEAR 2026 STREET LIGHTING ASSESSMENT?

>> I MOVE WE CLOSE THE PUBLIC HEARING.

>> MAYOR A. ISHII: OKAY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> SECOND.

>> CITY CLERK: SECOND, OKAY. CLOSE THE PUBLIC HEARING, CANCEL MEMO KESARWANI.

>> R. KESARWANI: YES.

>>

>> CITY CLERK: TAPLIN. COUNCILMEMBER TAPLIN TO CLOSE THE PUBLIC HEARING ON ITEM 32. OKAY. COUNCILMEMBER BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB IS ABSENT TURCO

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> CITY CLERK: AND THEN COUNCILMEMBER TAPLIN, WE ARE TAKING --

>> T. TAPLIN: YES.

>> CITY CLERK: OKAY.

>> MAYOR A. ISHII: VERY GOOD. ANY COUNCIL COMMENTS ON THIS ITEM? IS THERE A MOTION?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> I SO MOVE.

>> SECOND.

>> MAYOR A. ISHII: VERY GOOD. CAN YOU TAKE THE ROLL PLEASE, CLERK?

>> CITY CLERK: VERY GOOD. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB IS ABSENT.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR A. ISHII: YES. AND JUST TO CLARIFY I MEANT WE ARE FINISHED WITH THE FEES. WE STILL HAVE ANOTHER ITEM COMING UP, BUT WE ARE GOING TO TAKE A BREAK --

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> I. TREGUB: BEFORE WE BREAK I WOULD LIKE TO HAVE MY VOTE RECORDED AS AN AYE.

>> MAYOR A. ISHII: OH, THANK YOU. LET'S GIVE US A 10 MINUTE BREAK. WE ARE GOING TO TAKE A 10 MINUTE BREAK BEFORE ITEM 43 AND WE WILL BE BACK AFTER THAT. THANK YOU.

>> RECORDING STOPPED. [MEETING IS IN RECESS]

>> RECORDING IN PROGRESS.

>> MAYOR A. ISHII: OKAY, FOLKS. WE'RE GOING TO GET STARTED. FOLKS, IF I CAN HAVE YOU TAKE YOUR SEATS AND QUIET DOWN PLEASE WE'RE GOING TO GET STARTED. OKAY. ALL RIGHT. MY COUNCILMEMBERS ARE TRICKLING BACK IN, SO HI, COUNCILMEMBER O'KEEFE. COUNCILMEMBER TAPLIN, IF YOU CAN HEAR US WE'RE GOING TO GET STARTED. SO TO MAKE IT EASIER FOR THE PUBLIC TO COMMENT ON THE DIFFERENT PORTIONS OF ITEM 43, BECAUSE THERE IS NOTICE 43A, B, AND C ON THE AGENDA, WE ARE COMBINING THE PUBLIC COMMENT PERIOD. THIS MEANS YOU MAY SPEAK TO ANY OR ALL ISSUES DURING YOUR TURN THAT WAY YOU DON'T HAVE TO WAIT FOR EACH ITEM TO SPEAK ABOUT IT. YOU CAN TALK ABOUT ALL THREE OF THEM. EACH SPEAKER WILL BE ALLOCATED 1 AND A HALF MINUTES TO ADDRESS THE TOPICS THEY WISH TO SPEAK ON. IF YOU WISH TO CEDE YOUR TIME, ONE PERSON CAN GIVE ANOTHER PERSON TIME WHICH WOULD BE A TOTAL OF SIX MINUTES. YOU CAN FIGURE THAT OUT QUIETLY AMONGST YOURSELVES AND -- LET'S SEE. WHAT I WOULD SAY JUST BECAUSE FOR EASE OF MAKING THIS HAPPEN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BECAUSE IT CAN BE QUITE COMPLEX FROM THE STAFF SIDE OF THINGS, I WOULD LIKE TO ASK THAT IF YOU ARE HERE IN PERSON THAT YOU CAN GIVE YOUR TIME TO SOMEBODY HERE IN PERSON AND SIMILARLY IF YOU ARE ONLINE YOU CAN GIVE YOUR TIME TO SOMEONE WHO IS ONLINE. I HOPE THAT IS CLEAR.

>> CITY CLERK: AND OF COURSE, THE PERSON HAS TO BE PRESENT TO YIELD.

>> MAYOR A. ISHII: RIGHT, THE PERSON HAS TO BE PRESENT. SO YOU HAVE TO IDENTIFY YOURSELF. WHAT I WOULD RECOMMEND IS EITHER YOU CAN BRING YOUR PEOPLE WHO ARE GIVING YOU THEIR TIME UP WITH YOU OR IF THEY CAN JUST GIVE ME A WAVE. I THINK THAT'S PROBABLY THE EASIEST. IF YOU CAN'T STAND FOR LONG PERIODS OF TIME, YOU CAN POINT TO THE PERSON AND -- WE HAVE PRESENTATIONS FOR 43A, B, AND C, AND THAT'S GOING TO HAPPEN FIRST. JUST TO CLARIFY, FOLKS, I KNOW YOU'RE TRYING TO WORK IT OUT, BUT MAYBE WORK IT OUT OUTSIDE BECAUSE WE WANT TO HEAR THE PRESENTATIONS. WE ARE GOING TO OPEN THE PUBLIC HEARING FOR ITEM 43, WHICH IS 43A, 43B, AND 43C. WE ARE GOING TO HEAR FIRST FROM OUR CHIEF. I'M GOING TO PASS IT OVER TO YOU.

>> I'M HERE WITH CHIEF WHITAKER TONIGHT TO PRESENT ON 43A, B, AND C. I LIKE TO READ TWO MINOR CHANGES THAT STAFF HIGHLIGHTED ON THE SCREEN. LAST SENTENCE OF THIS PARAGRAPH STRATEGICALLY STRIKE REMOVING MANAGING VEGETATION NEAR RESIDENCES STRUCTURES

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IN THIS AREA WILL HELP PREVENT OR MITIGATE WILDFIRE EMERGENCIES. AND THE LAST SENTENCE OF THE LAST PARAGRAPH, A NUMBER OF LOCAL AGENCIES HAVE RAPIDLY ADOPTED NEW STRIKE HOME HARDENING INSERT VEGETATION MANAGEMENT ORDINANCES IN RESPONSE TO THIS EMERGENCY. ALL RIGHT. AND FOR PRESENTATION. SO PRESENTING ON EMBER TONIGHT, FIRST FOR THREE A, WHICH ARE MODIFICATIONS TO THE FIRE CODE, ADOPTING FIRE CODE WITH LOCAL AMENDMENTS. BEFORE WE DIVE INTO ZONE ZERO, JUST A LITTLE BIT OF HISTORY. WHERE DID -- WHERE ARE WE GOING AND WHEN IS, WHEN ARE THESE ACTIONS TAKING EFFECT? IF ADOPTED TONIGHT, THE FIRE CODE, THIS SPECIFIC SECTION OF THE FIRE CODE WILL BECOME EFFECTIVE JANUARY 1 OF NEXT YEAR. THAT MEANS INSPECTIONS WILL START ABOUT MAY OF NEXT YEAR AND ANY ENFORCEMENT ACTION, IF THERE IS ANY, WILL START IN THE MONTHS FOLLOWING. THE TWO AREAS THAT WOULD BE IMPACTED BY ZONE ZERO ARE PANORAMIC MITIGATION AREA DOWN HERE ON THE SCREEN IN THE BOTTOM AREA AND GRIZZLY PEAK MITIGATION AREA, WHICH YOU CAN SEE AS OUTLINED BY THE RED LINE ON THE SCREEN. HOW DO WE CHANGE? CAN'T SEE IT.

>> MAYOR A. ISHII: MR. CITY CLERK, CAN WE MOVE WHERE THE COUNCILMEMBERS ARE OR MINIMIZE THEM OR SOMETHING?

>> YOU'LL NOTICE THAT THE GRIZZLY PEAK MITIGATION AREA REPRESENT ABOUT HALF OF THE CAL FIRE VERY HIGH FIRE HAZARD SEVERITY ZONE, WHICH IS THE LIGHTER RED SHADING SURROUNDING IT. NOTE THAT IN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

2029 IF THE STATE ADOPTS ZONE ZERO INTO THE CALIFORNIA FIRE CODE, THE ENTIRE VERY HIGH HAZARD SEVERITY ZONE WILL -- WE WILL BE REQUIRED TO ENFORCE -- I'M GOING TO TURN IT TO CHIEF WHITAKER FOR THE REST OF THIS SECTION.

>> CHIEF WHITAKER: GOOD EVENING, MADAME MAYOR, AND COUNCIL. IT'S WITHIN 5 FEET AROUND STRUCTURE -- A WOODEN DECK AS AN EXAMPLE. OF IS ATTACHED TO THE STRUCTURE, IT'S CONSIDERED A PART OF THE STRUCTURE AND ZONE ZERO WOULD EXTEND AROUND THE STRUCTURE. DOES NOT APPLY TO PROJECTIONS, WHICH IS ANOTHER FIRE TERM, WHICH ARE THINGS THAT EXTEND BEYOND THE HOUSE HIGHER THAN 4 FEET ABOVE THE GROUND. IF YOU HAVE SAY A SECOND STORY DECK OR PORCH ON THE SECOND FLOOR, IF IT'S GREATER THAN 4 FEET THAT WOULD NOT BE THE MEASUREMENT OF WHICH ZONE ZERO BEGINS. THERE'S BEEN A LOT OF DISCUSSION AROUND THAT. 4 FEET ABOVE THE GROUND MEASURED HORIZONTALLY OR THE DISTANCE MEASURED FROM AN APPURTENANCE, WHICH IS AN ATTACHED DECK. WITHIN THAT AREA, THE PROPOSED AMENDMENT TO THE FIRE CODE WOULD PROHIBIT INGROUND VEGETATION OR COMBUSTIBLE MULCH IN THE AREA AROUND THAT HOME. THIS IS ALSO REFERRED TO AS THE HOME IGNITION ZONE. IT WOULD FURTHER REQUIRE THAT ANY COMBUSTIBLE FENCES OR GATES THAT SPECIFIC PORTION OF THE FENCE OR GATE THAT IS ATTACHED THAT MAKES CONTENT WITH THE STRUCTURE WOULD ALSO REQUIRE REPLACEMENT SO THAT IT WOULD ELIMINATE THE CONTINUOUS FUEL PATHWAY THAT A FENCE OR FENCE AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

GATE COMBINATION PROVIDE. OF NOTE, PARALLEL FENCES THAT RUN WITHIN 5 FEET OF THE STRUCTURE BUT DO NOT MAKE CONTACT WITH THE STRUCTURE WOULD BE EXEMPT FROM THIS IN ACCORDANCE WITH THE PENDING REGULATIONS BEFORE THE BOARD OF FORESTRY THAT WILL VERY LIKELY MAKE THEIR WAY INTO THE FINAL STATE REGULATION. FURTHERMORE, NO WOOD OR COMBUSTIBLE ITEMS SUCH AS PATIO FURNITURE OR ANYTHING OF THAT NATURE OR METAL FURNITURE WITH COMBUSTIBLE CUSHIONS COULD BE LEFT WITHIN 5 FEET OF THE STRUCTURE ON HIGH FIRE DANGER DAYS. IT WOULD BE PERMISSIBLE ON OTHER DAYS, BUT THOSE DAYS THEY WOULD NEED TO BE MOVED AND SIMILARLY THERE WOULD BE PROVISIONS FOR POTTED PLANTS IN NONCOMBUSTIBLE POTS THAT CAN BE USED. MAKING COMPROMISE THEY ARE ITEMS THAT REPRESENT A RISK TO THE HOME OR RISK OF IGNITION. HOWEVER, BECAUSE THEY ARE MOVABLE IN NATURE, THEY WOULD BE ALLOWED TO REMAIN THERE ON THOSE DAYS THAT ARE NOT SUBJECT TO HIGH FIRE ZONE OR FIRE DANGER. FURTHER, TREES THAT ARE OUTSIDE THE ZONE, IF THOSE BRANCHES ENCROACH INTO THE AREA, THEY WOULD NEED TO BE TRAINED SO THAT WE ELIMINATE THE MATERIAL THAT COULD BRING FIRE TO THE HOME WITH THE UNDERSTANDING THAT IGNITIONS IN THIS AREA AND FIRE CARRYING INTO ZONE ZERO A VERY SMALL AMOUNT OF FIRE CAN CAUSE THE IGNITION AND SUBSEQUENT DESTRUCTION OF THE HOME BECAUSE OF ITS PROXIMITY. IN THIS CASE, DISTANCE BECOMES SHIELDING SO A VERY SMALL AMOUNT OF FIRE NEXT TO A HOUSE CAN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HAVE A CATASTROPHIC OUTCOME. NEXT SLIDE, PLEASE. THERE'S BEEN A LOT OF DISCUSSION ABOUT MATURE AND/OR SCENIC TREES. VERY SPECIFICALLY, MATURE AND SCENIC TREES ARE NOT SUBJECT TO ANY ZONE ZERO PROHIBITION UNLESS THEY ARE DEAD, DYING, OR HAVE DEAD OR DYING MATERIAL, IN WHICH CASE THE DEAD OR DYING MATERIAL WE NEED TO BE REMOVED, BUT THE TREE WOULD NOT. NOTE THE SECOND REQUIREMENT, DEAD OR DYING MATERIAL, HAS BEEN AN EXISTING STATE LAW FOR DECADES AND IS NOT A PARTICULARLY NEW REQUIREMENT. THE PICTURE TAKEN HERE FROM THE BERKELEY HILLS IS AN EXAMPLE OF A HOME WHERE THE TREES ARE COMPLIANT WITH THE PROPOSED ZONE ZERO AMENDMENT. THE TREES IN THIS CASE BECAUSE OF THE SHADING THEY PROVIDE AND THE FACT THAT THEY INHIBIT THE GROWTH OF GROUND FUELS ARE A FAR BETTER OPTION THAN MANY OF THE ALTERNATIVES THAT WOULD NATURALLY SPRING INTO PLACE WHERE THE TREES TO BE REMOVED. KEEPING AN INTACT TREE CANOPY IN PLACE IS AN EXCELLENT WAY TO REDUCE THE TRANSITION OF THAT AREA TO LIGHTER FLASHIER FUELS THAT WOULD BE MORE LIKELY TO CARRY FIRE. THESE TREES HAVE BEEN LIMBED UP AND BROUGHT THE CANOPY ABOVE THE ROOF LINE OF THE HOUSE SO THAT THE HOUSE IS NOT THREATENED BY THE TREE THAT COULD BECOME IGNITED OR THAT CANOPY TO HAVE HORIZONTAL CONTINUITY TO THE GROUND. AS NOTED THERE, THERE IS NO RECOMMENDATION OF REMOVAL FOR MATURE TREES AND THERE'S A LOT OF REASONS THAT MATURE TREES SHOULD BE MAINTAINED. ONE OF WHICH IS FIRE SAFETY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NEXT SLIDE, PLEASE. TO CLARIFY BECAUSE CERTAINLY THERE'S BEEN EITHER SOME MISUNDERSTANDING OR CONFUSION OR UNCERTAINTY ON THIS TOPIC. SO TO BE CRYSTAL CLEAR, STRUCTURAL CHANGES TO HOMES ARE SUBJECT TO BILLING CODE AND ONLY REQUIRED WHEN A HOME HAS A PERMIT REQUIRE PERMIT -- AT WHICH POINT EXISTING STATE LAW AROUND THE IMPLEMENTATION OF CHAPTER 7 AN INVER RESISTANT CONSTRUCTION FEATURES WOULD REQUIRE A HOME THAT IS BEING RETROFITTED OR REBUILT WOULD HAVE TO INCORPORATE THESE ELEMENTS. HOWEVER, THERE'S NOTHING ABOUT A ZONE ZERO REQUIREMENT THAT WOULD AFFECT HOME HARDENING. THERE ARE A NUMBER OF HOME HARDENING RECOMMENDATIONS THAT ARE NOT REQUIRED THAT COMPLEMENT WORK DONE IN ZONE ZERO AND ZONE ONE WHERE THEY HAVE AN ENSEMBLE APPROACH TO THE PRESENCE OF COMBUSTIBLE VEGETATION OR OTHER MATERIALS AROUND THE HOME AND HOME HARDENING TAKEN TOGETHER A VERY EFFECTIVE. HOWEVER, AS A MATTER OF EXISTING LAW, CHANGES TO HOME CAN ONLY BE REQUIRED AT SUCH TIME THERE'S A PERMIT REQUIRED EVENT. DECKS ARE CONSIDERED PART OF THE STRUCTURE IF THEY ARE APPURTENANCE TO THE STRUCTURE. THE FACT THAT A DECK IS MADE OF WOOD DOES NOT PROHIBIT IT FROM BEING IN THAT SPACE. IT JUST EXAMINES ZONE ZERO AROUND THE DECK. IF THE DECK IS LESS THAN 4 FEET ABOVE THE GROUND WE RECOMMEND BE CLOSED AND -- LESS THAN 4 FEET. NO REMOVAL OF MATURE TREES AS PREVIOUSLY MENTIONED. NO REMOVAL OF EXISTING PARALLEL FENCES AS PREVIOUSLY MENTIONED. AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NO REMOVAL OF TREES BEYOND 5 FEET OF A STRUCTURE. THERE IS SIMPLY NO REQUIREMENT FOR DENUDING OF THE TREES THAT PROVIDE MANY BENEFITS. AS HAS BEEN NOTED, THERE ARE GAPS IN THE CURRENT SCIENCE AND THE CURRENT OBSERVATIONS THAT SUPPORT THE RECOMMENDATIONS THAT ARE DRIVING ZONE ZERO. AS DR. CORALS, WHO HAS SPOKEN TO THIS GROUP RECENTLY, THE RECOMMENDATION FOR ZONE ZERO GOES BACK TO THE EARLY 90S. SPECIFICALLY 1991 WHEN THE UNIVERSITY OF NEVADA RENO REFERRED TO AS ZONE A. DIFFERENT NAME, SAME CONCEPT. COMBUSTIBLE MATERIAL NEXT TO HOMES -- TESTING CONDUCTED BY UNIVERSITY OF CALIFORNIA EXTENSION RESULT IN THE BEST PRACTICE RECOMMENDATION FOR THE REMOVAL OF COMBUSTIBLE MATERIAL. I WOULD NOTE THAT THE OBSERVATION IN THE FIELD STUDIES COME WITH SOME SPECIFIC LIMITATIONS. THOSE SPECIFIC LIMITATIONS HAVE TO DO WITH THE ABSENCE OF PRE-FIRE -- TO SAY WITH CONFIDENCE WHAT WAS THERE BEFORE THE FIRE BEGAN, THING ONE. THING TWO IS WE DO NOT HAVE AN UNBLINKING EYE. SPECIFICALLY LOW EARTH SATELLITES THAT ARE ABLE TO WATCH A FIRE SPREAD ONE STRUCTURE TO THE NEXT IN REAL TIME SO THAT THE EDGE NOTE COMBINATIONS ARE FULLY UNDERSTOOD. WHICH THEN POST FIRE RECONSTRUCTION STUDY WOULD ALLOW A BETTER UNDERSTANDING OF WHAT WAS THERE BEFORE, WHAT WAS --

>> MAYOR A. ISHII: FOLKS, PLEASE DON'T INTERRUPT.

>> CHIEF WHITAKER: WHAT WAS THE MANNER IN WHICH FIRES SPREAD

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BETWEEN THE NOTES AND RECONSTRUCT THAT AFTERWARDS. THE RESULT OF THAT AS ALEX FROM NIST AND OTHERS HAVE POINTED OUT THAT THERE COULD BE SOME CONFOUNDING OUTCOMES WHERE THERE APPEARS TO BE A SERIES OF EVENTS WHICH CAUSED A HOME TO SURVIVE THAT MAY NOT HAVE HAD ANYTHING TO DO WITH THEIR CONDITION. THERE MAY HAVE BEEN A FIREFIGHTER WITH AN ENGINE AND HOSE APPLYING WATER AT THE TIME THAT HOUSE WAS EXPOSED TO FIRE, MEANING IT SURVIVED. BUT THE CONDITIONS LEFT AFTER THE FACT COULD BE MISCONSTRUED TO SAY IT SURVIVED DUE TO PAST MEASURES. SO THERE ARE VERY REAL IMITATIONS BOTH FOR AND AGAINST MEASURE ZERO WITH REGARD TO THE CURRENT OBSERVATIONS BECAUSE OF TECHNICAL LIMITATIONS. I WOULD LIKE TO BE VERY CLEAR ABOUT THAT. AND I'M NOT AWARE OF ANY STUDIES THAT HAVE WORN OUT THE DISCUSSION ABOUT EITHER TREES AS EMBER CAPTURES, VEGETATION, IRRIGATED OR NON-IRRIGATED NEAR HOMES THAT CAN PROTECT THE HOME FROM FIRE. AND SPECIFICALLY WHAT WOULD BE THE THRESHOLD AND COMBINATION OF SPECIES AND IRRITATIONS THAT WOULD ALLOW NEAR HOME PLANTS TO PROTECT A HOME OR WHETHER THEY WOULD CONTRIBUTE TO THE POTENTIAL DAMAGE OR DESTRUCTION. THERE ARE VERY REAL LIMITATIONS TO WHAT WE HAVE DONE NOW. A DISCUSSION ABOUT WHAT CAN BE DONE TO ACHIEVE ZONE ZERO AND TO BALANCE THE MANY NEEDS THAT WE HAVE ON AND AROUND OUR HOMES TO INCLUDE MAKING THEM LIVABLE SPACES THAT WE WANT TO BE IN, BUT ALSO MAKE THEM CAPABLE -- MOVING THE WALKWAYS, THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SITTING AREAS, THE HARDSCAPE THAT MANY YARDS AND SPACES AROUND OUR HOMES ALREADY HAVE. MOVING THEM CLOSER TO THE STRUCTURE AND THEN SHIFTING THE VEGETATION AWAY FROM ZONE 0 INTO ZONE 1 OR ZONE 2 WHERE THERE IS AMPLE OPPORTUNITY TO HAVE A YARD OR SPACE THAT'S FULL OF PLANTINGS AND OTHER FEATURES THAT DON'T PRESENT A RISK TO THE HOME BECAUSE WE HAVE CREATED GREATER SEPARATION. OUR HOMES AND OUR COMMUNITY WERE LAID OUT WITHOUT CONSIDERATION FOR THE NATURAL PHENOMENON OF FIRE. IN A FIRE DEPENDENT LANDSCAPE SUCH AS THE ONE WE ARE IN; LACK OF ADAPTATION MEANS WE CONTINUE TO RELY ON THE INDUSTRIALIZE EXCLUSION OF FIRE FROM THE LANDSCAPE. I THINK THE RESULTS OF THE LAST 10 YEARS OR SO HAVE WORN OUT THAT WE APPEAR TO BE AT THE END OF THE LINE WHICH WE CAN CONTINUE FIRE EXCLUSION TO PROTECT OUR COMMUNITIES AND ADAPTATIONS SO THAT THE HOMES THEMSELVES ARE CAPABLE OF RECEIVING THE INEVITABLE AND BENEFICIAL FIRE THAT IS A FEATURE, NOT A BUG OF OUR LANDSCAPE IS A PRUDENT PATH FORWARD. SO ONE OF THE DISCUSSIONS HERE ABOUT THE -- I'M SORRY, BACK ONE. JUST POINTING OUT HERE THAT WHEN THESE PLANTS AND TREES AND SO FORTH ARE MAINTAINED PROPERLY, THEY NOT ONLY CAN MAINTAIN THE SENSE OF PLACE, BUT THEY CAN CONTRIBUTE TO FIRE RESILIENCY. REALLY, THIS IS ABOUT ADAPTATION AND TAKING THE THINGS THAT WE HAVE NOW AND MODIFYING THEM, ADAPTING THEM SO THAT WE CAN FIT INTO THE NATURAL LANDSCAPE AND WHICH FEATURES FIRE AS A REGULAR AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RECURRING ELEMENT. SO I WOULD JUST SAY THAT WE DON'T KNOW WHAT FUTURE RESEARCH WILL BRING. WE KNOW THAT THERE WILL BE MORE RESEARCH AND AS TECHNICAL NEEDS COME ONLINE FIRST FIRES THAT OBSERVATION PLATFORM WAS LAUNCHED IN APRIL. MORE WILL BE COMING ONLINE. THERE WILL BE MORE DATA IN FUTURE YEARS. THERE WILL BE MORE STUDY. THIS IS A RELATIVELY NEW FIELD WITH REGARD TO URBAN FIRE. SPECIFICALLY STARTED IN 2017 WITH THE STRAIN OF URBAN FIRES WE HAVE SEEN SINCE THEN, ENORMOUS RESOURCES ARE POURING INTO THE SPACE. A GREAT DEAL OF RESEARCH IS BEING POINTED OUT AND IN TIME WE WILL KNOW MORE. HOWEVER, WHAT WE KNOW NOW FROM BOTH RESEARCH, OBSERVATION, AND I WOULD SAY AS A FIREFIGHTER, FIREFIGHTER EXPERIENCING OBSERVATION DURING FIRES IS THAT HOMES THAT HAVE DEFENSIBLE SPACE, AND SPECIFICALLY HOMES THAT HAVE ZONE ZERO ARE MORE LIKELY TO SURVIVE, AND IF ZONE ZERO DEFENSIBLE SPACE IS COUPLED WITH HOME RETROFITTING -- THE VAST MAJORITY OF HOMES IN BERKELEY ALREADY HAVE, RETROFITS THENCE WITH MEMBER RESISTANCE MODELS, GUTTER GUARDS AND NONCOMBUSTIBLE FENCING OR CLASS A FENCING WITHIN THE LAST 5 FEET OF STRUCTURE, THAT COMBINATION, THAT ENSEMBLE OF MITIGATIONS IS HIGHLY EFFECTIVE AT NOT ONLY PROTECTING THE HOME FROM IGNITION, BUT SETTING CONDITIONS FOR FIREFIGHTERS TO BE VERY EFFECTIVE. AND AS OUR FIRE GROWTH CURVE RISES, IT GIVES TIME, BECAUSE FIRES WILL IGNITE MORE SLOWLY WITH THESE MEASURES, IT GIVES TIME FOR THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

REGIONAL FIREFIGHTER RESPONSE TO OUTPACE THE FIRE SPREAD. PUT SIMPLY, MORE FIREFIGHTERS THAN FIRE AT THOSE CRITICAL POINTS EQUALS NO VEGETATIVE TRANSITION TO URBAN FIRE, WHICH IS CERTAINLY THE OUTCOME WE SAW IN LOS ANGELES. IT WAS MORE FIRE THAN FIREFIGHTERS AT A CRITICAL TIME. WE BELIEVE THIS IS THE BEST WAY WE KNOW HOW TO REDUCE THE RISK THE CITY OF BERKELEY POSED AND CERTAINLY HAS EXPERIENCED IN 1923 AND PORTIONS OF THE CITY EXPERIENCED IN 1991; THERE'S NOTHING ABOUT THE CURRENT STATE THAT MAKES IT LESS LIKELY THAT THAT WOULD HAPPEN. WE BELIEVE THIS IS A PRUDENT WAY TO BEND THE CURVE ON OUR RISK WHEN THE INEVITABLE FUTURE FIRE OCCURS.

>> ALL RIGHT. MOVING ON TO 43 -- [CLAPPING] MOVING ON TO 43B. THIS IS AN INDEPENDENT BUT RELATED ITEM. WHICH IS MOVING THROUGH THE PROCESS DRIVEN BY THE STATE. A COUPLE OF FACTS ABOUT THE FIRE HAZARD SEVERITY ZONES. THIS WAS ACTUALLY BORN OUT OF THE 1991 FIRE IN OAKLAND BERKELEY. THE MAPS DO NOT REQUIRE MODIFICATION, STRUCTURAL MODIFICATION TO EXISTING STRUCTURES UNLESS THEY ARE GOING TO REMODEL, WHICH IS CLASSIFIED BY THE BUILDING OFFICIAL IS A REBUILDING. THESE MAPS DO NOT TRIGGER MODIFICATIONS TO EXISTING HOMES. THEY ARE PRIMARILY FOCUSED ON WHERE DEFENSIBLE SPACE WORK WILL BE REQUIRED. THEY DO IMPOSE CHAPTER 7A ON NEW CONSTRUCTION WITHIN TWO OF THE ZONES. ALSO WHAT HAS BECOME SOME THIS INFORMATION THAT'S COMMONLY SPREADING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IS THAT THESE MAPS ARE GOING TO BE USED BY INSURANCE COMPANIES TO CHANGE PREMIUMS OR DROP POLICYHOLDERS. THERE'S A QUOTE THERE FROM THE INSURANCE COMMISSIONER. THESE MAPS ARE NOT USED BY THE INSURANCE INDUSTRY IN ANY WAY. THEY HAVE MUCH MORE SOPHISTICATED MAPS, CAP MODELS THAT ANALYZE RISK WHICH THEY USE TO SET RATES AND DETERMINE WHERE THEY ARE GOING TO WRITE COVERAGE. SO FIRE HAZARD SEVERITY ZONE HISTORY IN BERKELEY. I WILL WALK EVERYBODY THROUGH THIS MAP. WHAT WE'RE LOOKING AT IS -- AND LET ME SAY WE ARE REQUIRED BY STATE LAW TO DESIGNATE OR ADOPT AT MINIMUM THE AREAS AT MINIMUM AS FIRE HAZARD ZONES BY THE STATE. ARE WE REQUIRED TO DO THAT BY NEXT WEEK? BERKELEY HAS HISTORICALLY AND EVERY MUNICIPALITY HAS THE ABILITY TO DESIGNATE A LARGER AREA SO WE CAN BE MORE RESTRICTIVE. WE CANNOT BE LESS RESTRICT THAN THE STATE. BERKELEY HAS HISTORICALLY DESIGNATED A MUCH LARGER AREA AS HIGHEST FIRE HAZARD ZONE. VERY HIGH. THAT IS INDICATED ON THE MAP, WHICH IS VERY HIGH HAZARD IN THE ORANGE. THAT ZONE HAS BEEN IN EXISTENCE SINCE THE EARLY 90S. AND WITHIN THAT ZONE, CHAPTER 7A APPLIES TO NEW CONSTRUCTION OR SUBSTANTIAL REMODELS AND DEFENSIBLE SPACE IS REQUIRED. SO YOU CAN SEE THE THREE, THE RED, THE ORANGE, AND THE YELLOW FURTHER UP. THOSE ARE THE CURRENT CALFIRE IDENTIFIED FIRE HAZARD SEVERITY ZONES. RED IS VERY HIGH, ORANGE IS MODERATE, AND YELLOW IS HIGH. WE ARE REQUIRED AT MINIMUM TO ADOPT THESE MAPS. WE ARE NOT PROPOSING TO EXTEND THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

VERY HIGH BEYOND WHAT CALFIRE HAS IDENTIFIED. IN ESSENCE, WE ARE SHRINKING AND DOWNGRADING THE HILLS FROM VERY HIGH, BUT WE ARE PROPOSING TO KEEP IT AT HIGH. WITHIN HI, THERE ARE NO DEFENSIBLE SPACE REQUIREMENTS. WHAT DO WE USED TO DESIGNATE ADDITIONAL AREAS AS FIRE HAZARD SEVERITY ZONES? A VARIETY OF FACTORS THAT CALFIRE DOES NOT CONSIDER. LOCAL CONDITIONS THAT INCLUDE LOCAL KNOWLEDGE ABOUT STRUCTURE, AGE, CONSTRUCTION, HOW DENSE STRUCTURES ARE, HOW FAR APART STRUCTURES ARE FROM ONE ANOTHER, LOCAL FIRE HISTORY, CHALLENGES WITH EVACUATION, ALL OF THAT IS REPRESENTED ON THIS MAP WHICH IS VERY BUSY AND CONFUSING. SO WHAT ARE WE PROPOSING IN 2025? WHAT ARE YOU VOTING ON TONIGHT? ESSENTIALLY ADOPTING THE CALFIRE MAPS AND ONE AREA THAT WE ARE PROPOSING TO DESIGNATE AS VERY HIGH THAT THE STATE DID NOT. I'LL WALK YOU THROUGH THE MAP AGAIN. AGAIN, THE ORANGE IS THE CURRENT VERY HIGH FIRE HAZARD SEVERITY ZONE. THE PINK IS THE PROPOSED HIGH FIRE HAZARD SEVERITY ZONE THAT WE ARE PROPOSING TO BRING DOWN THE HILL, BUT NOT AS FAR AS THE CURRENT VERY HIGH. THE RED IS THE 2025 CALFIRE VERY HIGH FIRE HAZARD SEVERITY ZONE WHICH WE ARE REQUIRED TO DESIGNATE AND ADOPT. AND THE LIGHT RED PINK ON THE BOTTOM IS THE ONLY AREA WE ARE PROPOSING TO ALSO DESIGNATE AS VERY HIGH, WHICH IS THE PANORAMIC NEIGHBORHOOD. I WILL CLOSE WITH A GENERAL COMMENT ABOUT BOTH OF THESE, REALLY THE FIRST ITEM. AS YOUR CHIEF, I AM CHARGED WITH DEVELOPING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RECOMMENDATIONS FOR FIRE CODE AMENDMENTS THAT ARE GROUNDED IN THE BEST AVAILABLE RESEARCH AND OUR CURRENT UNDERSTANDING OF WILDFIRE RISK. I TAKE THE RESPONSIBILITY VERY SERIOUSLY AND I DO HAVE TO SAY IT WOULD BE MUCH EASIER TO HAVE NOT DONE THIS AND IGNORE IT AND LET THINGS CONTINUE ON AND SEE WHAT THE STATE DOES, BUT I MET MY LIMIT IN JANUARY OF NOT FEELING COMFORTABLE BRINGING THIS FORWARD. WE KNOW THIS IS BEST PRACTICE. WE'VE KNOWN IT HAS BEEN BEST PRACTICE FOR YEARS AND WE HAVE NOT BROUGHT IT FORWARD BECAUSE WE KNEW HOW CONTENTIOUS IT WOULD BE. BUT AS MANY OF YOU KNOW, JANUARY WAS JUST THE MOST RECENT, ONE OF THESE WILDFIRES TRANSITIONED URBAN STRUCTURE TO STRUCTURE SPREAD IS HORRIFIC TO WATCH, HORRIFIC TO BE PART OF, HORRIFIC TO RESPOND TO, AND AS A RESIDENT JUST LIFE ALTERING. SO WE'RE CONSTANTLY LEARNING. AS CHIEF WHITAKER SAID, AND SO IS OUR KNOWLEDGE OF HOW TO BEST PROTECT THE COMMUNITY AND HOW LONG DO WE WAIT, WHEN IS THE RIGHT TIME TO ACT AGAIN FOR US WE FEEL LIKE IT'S NOW. IN BERKELEY WE HAVE EXPERIENCED A SIGNIFICANT WILDFIRE IN THE HILLS ON AVERAGE EVERY 20 YEARS. IT'S NOW BEEN 34 YEARS SINCE 1991. THE CLOCK ISN'T PAUSED; IT IS TICKING. TO ALL THE MEMBERS OF THE COMMUNITY WHO EXPRESSED CONCERN AND OPPOSITION, WE HEAR YOU, WE HAVE ALREADY MADE A NUMBER OF CHANGES. AS COUNCILMEMBER BLACKABY'S ITEM, I THINK, DEMONSTRATES WE ARE WILLING, INTERESTED AND LOOKING FORWARD TO ENGAGING WITH

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ONGOING, WITH THE COMMUNITY IN ONGOING DIALOGUE IN THE MONTHS AHEAD. TONIGHT IS NOT A FINAL STEP. WE ARE LISTENING, WE FULLY INTEND TO INCORPORATE WHAT WE LEARN INTO THE FIRE CODE AMENDMENT BEFORE WE COME BACK TO COUNCIL FOR THE TRIENNIAL FIRE CODE UPDATE IN THE FALL. WITH THAT, I WILL END AND OPEN TO ANY QUESTIONS.

>> MAYOR ISHII: THANK YOU. I WANT TO MAKE SURE. DO WE WANT TO TAKE QUESTIONS NOW OR? SAY AGAIN. WHY DON'T YOU DO THE PRESENTATION FOR 43C AND WE WILL DO QUESTIONS ALL TOGETHER.

>> GREAT, THANK YOU, MAYOR. THIS IS ABOUT ITEM 43C, WHICH I AUTHORED AS A COMPLEMENT TO 43A AND 43B, WHICH ARE THE MAPS AND FIRE CODE AMENDMENTS. I WANT TO THANK MAYOR ISHII AND COUNCILMEMBER O'KEEFE FOR JOINING ME IN CO-SPONSORING ME IN THIS ITEM. THESE CHANGES COME FROM SUBSTANTIAL INPUT FROM COMMUNITY NEIGHBORHOOD MEETINGS SINCE JANUARY. AS WELL AS THE MANY EMAILS AND PHONE CALLS WE HAVE RECEIVED. AS YOU RECALL, A FEW WEEKS AGO, I ASKED TO PUSH BACK FINAL CONSIDERATION OF EMBER UNTIL TONIGHT, IN ORDER TO SCHEDULE TWO ADDITIONAL WORKSHOPS. ONE ON ZOOM AND ONE IN PERSON. WHICH ENGAGED HUNDREDS, IF NOT MORE THAN A THOUSAND RESIDENTS. WE DID MORE NEIGHBORHOOD AND SMALL GROUP MEETINGS AND MANY OTHER ONE-ON-ONE HOUSEHOLD CONSULTATIONS. CHIEF ARNOLD AND I SPENT A COUPLE WEEKENDS AT STATION 7 MEETING WITH NEIGHBORS AND ANSWERING QUESTIONS WHICH I THOUGHT WERE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

INTERESTING AND PRODUCTIVE CONVERSATIONS. I APPRECIATE THE COMMUNITY ENGAGEMENT ON THIS REALLY IMPORTANT EFFORT BECAUSE TOGETHER WE ARE GOING TO MAKE OUR CITY MORE WILDFIRE RESILIENT AND REDUCE THE CHANCE AN EMBER STORM WILL IGNITE HOMES. TOGETHER WE CAN BE STRONGER AND SAFER. THE BIGGEST RESOURCE WE HAVE IN WILDFIRE PREVENTION AND THE EVENT OF A FIRE IS EACH OTHER. WORKING TOGETHER TO MAKE OUR PROPERTIES MORE FIRE SAFE. MAKING SURE NEIGHBORS ARE AWARE OF IMMINENT FIRE DANGER AND HELPING EACH OTHER EVACUATE SO IF A FIRE COMES BFD IS MORE POSITIONED TO SAVE US, SAVE OUR HOMES AND NEIGHBORHOODS. WE NEED TO WORK TOGETHER. SO MY ITEM DIRECTS THE FIRE DEPARTMENT TO DO A NUMBER OF THINGS IN RESPONSE TO THIS FEEDBACK TO MAKE A NUMBER OF CHANGES TO IMPROVE THE PROPOSAL. MAKING SURE IT'S ON GUIDANCE AND INFORMATION AND NOT CITATIONS AND PENALTIES. WE ARE ASSEMBLING MORE THAN A MILLION AND COUNTING IN GRANT FUNDING AVAILABLE TO NEIGHBORS AGE 65 PLUS AND OR BELOW MEDIAN INCOME. TAX CREDIT WITH ADDITIONAL FINANCIAL SUPPORT ON THE WAY. WE ARE PROVIDING NEIGHBORS PLENTY OF TIME TO BEGIN WORK, AT LEAST 12 MONTHS BEFORE INSPECTIONS BEGIN AND EVEN MORE TIME TO CONTINUE IMPROVING AFTER THOSE INSPECTIONS HAPPEN. WE HAVE ASKED AND DIRECTED THE DEPARTMENT TO ENSURE IT WILL ALLOW THE STAGING OF WORK TO SUPPORT IMPLEMENTATION OF ZONE ZERO WITHOUT TRIGGERING CITATIONS. WE ARE PROVIDING SUPPORT. WE HEARD THIS LOUD AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CLEAR, AND CHIEF WINIKER MENTIONED FOR HOME HARDENING NOT JUST VEGETATION MANAGEMENT. WE KNOW THAT WON'T SOLVE THE PROBLEM ALONE. ESTABLISHING A PARTNERSHIP AND IMPROVING ACCESS TO FUNDS. I HAVE ASKED THE DEPARTMENT TO CREATE A WORKING GROUP OF BFD STAFF AND NEIGHBORS TO CONDUCT A MORE REVIEW OF VEGETATION MANAGEMENT SECTION. CODE. THERE ARE A LOT OF DETAIL THAT'S NEED TO BE ADAPTED TO OUR ENVIRONMENT, WHAT PLANTS AT WHAT DISTANCES AND HEIGHTS ARE ACCEPTABLE AND MAKING THAT WORK FOR BERKELEY. THAT IS VERY MUCH PART OF THE ONGOING PUBLIC PROCESS WE ARE ASKING FOR. WE ARE CLARIFYING THE MODIFICATION AND APPEALS PROCESS THAT RESIDENTS CAN USE, IF COMPLETING THE WORK WILL RESULT IN TAKING OF A RARE OR ENDANGERED PLANT SPECIES OR SIGNIFICANT EROSION AND SEDIMENTATION. WE ARE IDENTIFYING AND TRAINING LOCAL LANDSCAPERS AND CONTRACTORS WHO CAN ASSIST NEIGHBORS IN MEETING THE NEW ZONE ZERO DEFENSIBLE SPACE STANDARDS. WE ARE OPEN AND IT'S IN THE ITEM WE ARE ASKING THE DEPARTMENT TO COME BACK AND REVISIT OUR STANDARD PRIZE OR TO IMPLEMENTATION IF THE STATE CHANGES THEIR REQUIREMENTS IN THE MONTHS AHEAD. RIGHT NOW WHAT RE ASKING FOR IS COMPLETELY CONSISTENT WITH WHAT THE DRAFT REGULATIONS ARE FROM THE STATE OF CALIFORNIA. WE ARE REMOVING ARCHAIC LANGUAGE, IT'S BEEN IN THE CODE FOR A WHILE, IT DOESN'T NEED TO BE THERE, IT'S NOT INTENDED TO BE PUNITIVE, WE SHOULD REMOVE IT. CLARIFYING WORK ABOVE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

MATURE TREES INCLUDING LIVE OAKS SHOULD BE PROTECTED. WE ARE REQUIRING THE DEPARTMENT TO REPORT BACK TO THE COUNCIL AT LEAST TWICE A YEAR ABOUT THE WORK OF OUR REGIONAL PARTNERS TO ENCOURAGE MORE COORDINATION AND COMMUNICATION ON ALL OF THESE JOINT EFFORTS. THERE'S A LOT WE TRIED TO LISTEN AND BE RESPONSIVE AND DIRECT THE DEPARTMENT TO ACCOMMODATE IN THE ITEM I HAVE WRITTEN. LASTLY I WANT TO SAY, WE KNOW MANY OF YOU, MANY OF US UP HERE CARE DEEPLY ABOUT THE ENVIRONMENT, NEIGHBORHOODS, THAT'S WHY I WANT TO SPEAK DIRECTLY ABOUT WHY THIS IS SO URGENT AND HOW IT HAS BEEN THOROUGHLY REVIEWED UNDER STATE LAW. THE RISK IS REAL AND IT'S GROWING. WILDFIRES ARE NO LONGER RARE SEASONAL EVENTS. WITH EACH PASSING YEAR THE DANGER GROWS CLOSER TO HOME. OUR DEPARTMENT, THE FOLKS WE HAVE HIRED AND TRUST TO PROTECT US HAVE IDENTIFIED A SERIOUS WILDFIRE RISK IN THE BERKELEY HILLS DRIVEN BY CLIMATE, TERRAIN, AND VEGETATION. WE CANNOT AFFORD TO WAIT FOR A DISASTER TO TAKE ACTION. THIS ORDINANCE IS A LEGAL AND NECESSARY EMERGENCY MEASURE. STATE LAW ALLOWS CITIES TO MOVE SWIFTLY TO PREVENT EMERGENCIES AND THE EMBER ORDINANCE FALLS SQUARELY IN THAT CATEGORY. THE CITY IS DETERMINED BASED ON LEGAL GUIDANCE AND EXPERT ASSESSMENT THIS IS EXEMPT FROM CEQA, THE CALIFORNIA ENVIRONMENTAL QUALITY ACT BECAUSE IT IS ONE NECESSARY TO PREVENT OR MITIGATE A WILDFIRE EMERGENCY. TWO, DESIGNED TO PROTECT NATIONAL RESOURCES AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PUBLIC SAFETY, AND THREE FOCUSED ON FUEL MANAGEMENT ONLY NEAR STRUCTURES WITH STRICT SAFEGUARDS IN PLACE. THIS IS NOT --

>> MAYOR ISHII: SORRY.

>> B. BLACKABY: THIS ISN'T ABOUT AVOIDING ENVIRONMENTAL REVIEW.

>> MAYOR ISHII: FOLKS, PLEASE STOP. ACTUALLY, THEY SHOULDN'T HAVE BEEN A FIVE-MINUTE TIMER, HE IS PRESENTING ON AN ITEM. IT'S NOT HIS FIVE MINUTE COMMENT PERIOD.

>> B. BLACKABY: WILDFIRES CAUSE MORE DAMAGE THAN PREVENTIVE FUEL REDUCTION EVER COULD. BY TAKING CAREFUL TARGETED STEPS BY CLEARING FLAMMABLE MATERIALS WITHIN CLOSE PROXIMITY TO HOMES WE REDUCE THE RISK OF CATASTROPHIC DAMAGE TO HABITAT, AIR QUALITY AND PUBLIC HEALTH. WE ARE NOT ALONE IN THIS WORK. OTHER COMMUNITIES ACROSS CALIFORNIA HAVE ADOPTED SIMILAR MEASURES BASED ON THE SAME EXEMPTIONS. COURTS HAVE UPHELD THEM. THE URGENCY WE FACE IS NOT UNIQUE BUT THE RESPONSIBILITY TO ACT IS OURS. WE HEAR YOU. WE ARE WITH YOU. WE UNDERSTAND CONCERNS ABOUT THE PROCESS, THE PACE AND PRECEDENT. PLEASE KNOW THIS ACTION IS NOT TAKEN LIGHTLY. THE CITY WILL CONTINUE TO REVISIT THE EFFECT AND EFFICACY OF THE ORDINANCE IN THE NEAR FUTURE AS DETAILED IN THIS ITEM. THAT REPORT BACK AND CONSTANT FEEDBACK IS CRITICAL. THIS ACTION WE ARE ABOUT TO TAKE TONIGHT IS ROOTED IN SCIENCE, IN THE LAW AND IN A DEEP COMMITMENT TO PRESERVING LIFE, PROPERTY AND OUR NATURAL SURROUNDINGS. WE WELCOME EVERYONE'S VOICES AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EVERYONE'S PARTNERSHIP AS WE MOVE FORWARD TOGETHER. SAFELY, RESPONSIBLY AND WITH THE CLARITY THAT THIS MOMENT DEMANDS. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: EXCUSE ME. YOU ARE WELCOME TO CLAP BUT YOU CANNOT BOO. THAT IS VERY RUDE. THAT IS VERY RUDE. COUNCILMEMBER TREGUB, DO YOU HAVE QUESTIONS? THAT COULD BE ON 43A, B OR C. THANK YOU SO MUCH. I HAVE THREE QUESTIONS. I THINK THEY ARE ALL FOR THE CHIEF. THE FIRST ONE, CAN YOU GO, I THINK THIS WAS SLIDE TWO OR THREE, IT WAS THE DIFFERENT FIRE SEVERITY ZONE MAPS AND THE SECOND PRESENTATION. YEAH. WHAT IS THAT YELLOW BELT?

>> THE RED, ORANGE AND YELLOW BELTS ARE THE AREAS THAT WERE IDENTIFIED BY CAL FIRE AS THE VERY HIGH, MODERATE AND LOW ZONES. SORRY, VERY HIGH, HIGH, AND MODERATE ZONES. SO RED IS VERY HIGH. ORANGE IS MODERATE. YELLOW IS -- DID I GET IT WRONG? RED IS VERY HIGH. ORANGE IS HIGH. AND YELLOW IS MODERATE. SORRY ABOUT THAT. SO WE ARE REQUIRED BY LAW TO ADOPT THOSE THREE MAPS. WE HAVE EXTENDED THE HIGH DOWN TO FARTHER WEST, BUT NOT AS FAR WEST AS THE CURRENT VERY HIGH ZONE.

>> I. TREGUB: SO THAT YELLOW, WHAT LOOKS LIKE A BELT ALMOST, IT'S ACTUALLY IN BETWEEN, ACCORDING TO CALFIRE.

>> IT'S A MODERATE, IT'S A BELT OF MODERATE WHICH IN THE LRA THERE'S NO REQUIREMENTS WITHIN THAT ZONE, SO IT DOESN'T HAVE A REQUIREMENT TO BUILD STRUCTURES TO 7A. IT DOESN'T HAVE ANY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DEFENSIBLE SPACE REQUIREMENTS. IT'S GOT MORE MEANING IN THE STATE RESPONSIBILITY AREA BUT NOT LOCAL RESPONSIBILITY AREA.

>> I. TREGUB: OKAY, THANK YOU. THE QUESTIONS THAT ARE MORE PERTINENT TO THIS, AND BY THE WAY, I THOUGHT THIS WAS VERY WELL REASONED. I JUST WANTED TO GET CLARITY ON TWO THINGS. PAGE 23 OF THE DRAFT ORDINANCE. IT MENTIONS -- SORRY, LET ME GO TO THE RIGHT. YEAH. SO THIS IS FOR ZONE 1, IF THERE ARE MULTIPLE STRUCTURES, SUCH AS A SHED, HOT TUB AND PLAY SET, ENSURE THESE STRUCTURES ARE SPACED AT LEAST TEN FEET APART. AND AT MOST, THREE OF THESE STRUCTURES. CAN YOU CLARIFY IF THAT APPLIES TO NEW STRUCTURES OR IF THERE ARE EXISTING STRUCTURES THAT SAY A HOT TUB, WHICH I IMAGINE IS PRETTY FIRMLY PLANTED IN, WOULD THAT NEED TO BE REMOVED OR ADJUSTED?

>> ARE YOU REFERRING TO THIS EXCEPTION RIGHT HERE? I'M HIGHLIGHTING?

>> I. TREGUB: I AM REFERRING TO; THIS WOULD BE PAGE 23. SORRY PAGE 26 OF 36. THE ONE AT THE BOTTOM. THE ONE THAT STARTS WITH, "IF THERE ARE MULTIPLE STRUCTURES, SUCH AS A SHED..."

>> IT'S NEW CONSTRUCTION. IF A SHED IS GREATER THAN 120 SQUARE FEET, IT REQUIRES A PERMIT, LESS THAN 120 SQUARE FEET DOESN'T REQUIRE A PERMIT. IF THERE'S A SHED, IT'S A STRUCTURE THAT IS BUILT OR CONSTRUCTED IN CODE LANGUAGE. PARTICULARLY IF THEY WERE GROUPED BUT UNDER ANY CIRCUMSTANCES THIS SHED WOULD BE REQUIRED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TO BE ZONE ZERO CLEARANCE AROUND IT AND RECOMMENDED VENTS RETROFIT TODAY ACHIEVE THE SAME FIRE RESISTIVE BENEFITS OF A PRIMARY DWELLING UNIT, OR AS A HOUSE AS WE THINK OF IT. THE FIRE DOES NOT DISTINGUISH BETWEEN A LARGE DWELLING UNIT AND SMALL SHED. UNDERSTANDING THERE ARE LIMITATIONS WITH THE PLACEMENT OF SHEDS ON SMALL LOTS AND THE LAWS ARE WRITTEN WITH LARGE RURAL LOTS OF TWO ACRES OR MORE, WHERE THERE'S ROOM TO LOCATE SHEDS AND OUTBUILDINGS AND SO FORTH ON THE OUTER PERIMETER OF THE PARCEL. IF YOU TOOK THAT SAME METHODOLOGY IN THE CITY OF BERKELEY, SOME PARCELS WOULDN'T HAVE ENOUGH ROOM TO RELOCATE THEM. OR IF THEY DID, RELOCATING IN ZONE TWO MAY BE ZONE ONE IN ANOTHER. SO TO ANSWER YOUR SPECIFIC QUESTION, IT WOULD NOT REQUIRE THE REMOVAL OF EXISTING SHEDS. IT WOULD LIMIT THE CONSTRUCTION OF NEW SHEDS AND SO FORTH AND EXISTING SHEDS WOULD REQUIRE THE SAME ZONE ZERO CLEARANCE AS A DWELLING UNIT.

>> I. TREGUB: AND YOU SAID SOMETHING ABOUT ZONE ZERO. SO CAN I JUST CONFIRM IF YOU HAVE A SIMILAR CONDITION IN ZONE ZERO, WOULD THAT ALSO BE, IF IT'S ALREADY CONSTRUCTED, THAT WOULD BE A RECOMMENDATION, BUT NOT A REQUIREMENT?

>> THE OTHER WAY AROUND, SIR. ZONE ZERO WOULD BE A REQUIREMENT. VEGETATION IS ESSENTIALLY IS RETROACTIVE. CHANGES TO THE STRUCTURE, THOUGH, CAN ONLY OCCUR WHEN THERE'S A PERMIT REQUIRING A VENT. SO THERE'S A RECOMMENDATION THAT AFTER, OR IN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONJUNCTION WITH THE COMPLETION OF ZONE ZERO AROUND THE SHED, SPECIFICALLY THE VENTS WOULD BE RETROFITTED SO THAT THE SHED WOULD HAVE A DEGREE OF EMBER RESISTANCE AS WELL.

>> I. TREGUB: SORRY. JUST TO CLARIFY. ZONE ZERO, EXISTING CONSTRUCTION OF A STRUCTURE RECOMMENDED OR REQUIRED.

>> REQUIRED.

>> I. TREGUB: REQUIRED FOR HARDENING. SO THAT'S WHERE THEY WOULD NEED TO PHYSICALLY, POTENTIALLY MOVE THE STRUCTURE?

>> I'M SORRY. ZONE ZERO WOULD BE REQUIRED TO BE CLEARED AROUND THE STRUCTURE BUT IT WOULDN'T HAVE TO BE REMOVED. IF IT WAS WITHIN FIVE FEET OF A DWELLING UNIT OR OTHER STRUCTURE, THE ZONE ZEROS OVERLAP AND YOU START TO TREAT THEM FOR ZONE ZERO PURPOSES AS A CONGLOMERATION OR AS A SINGLE STRUCTURE, BECAUSE THE SPACE AROUND AND THE INTERIOR SPACES BETWEEN THEM WOULD ALL FALL WITHIN FIVE FEET OF A STRUCTURE AND BE REQUIRED TO BE CLEARED.

>> I. TREGUB: THANK YOU FOR CLARIFYING THAT. MY ONLY OTHER QUESTION IS, THIS IS THE FIRST SLIDE DECK. THE SLIDE TITLED ZONE ZERO AND TREES, FIRST BULLET POINT, MATURE SCENIC TREES ARE OKAY. IS IT MATURE AND, OR IS IT MATURE OR SCENIC? AND HOW IS THAT DEFINED?

>> YES, SIR, THAT IS A CODE LANGUAGE SPECIFICALLY FROM CEQA HAVING TO DO WITH MATURE SCENIC, THAT IS OPEN TO INTERPRETATION. THE INTERPRETATION WE HAVE TAKEN IS MATURE TREES. SO IF THE TREE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HAS GROWN, IF THE TREE HAS NOT YET GROWN THERE ARE DIFFERENT PROVISIONS FOR AN IMMATURE TREE THAT HAS NOT YET GROWN TO MATURITY WHERE A DIFFERENT STANDARD APPLIES DURING THAT GROWTH PERIOD.

>> I. TREGUB: AND DEPENDING ON THE TYPE OF TREE, THERE WOULD BE, YOU KNOW, THERE WOULD BE AN OBJECTIVE STANDARD, RIGHT? HOW OLD THE TREE IS?

>> IT'S WHETHER OR NOT IT'S STILL GROWING, SIR. THE MATURITY IS IT HAS REACHED ITS MATURE HEIGHT.

>> I. TREGUB: GOT IT. THANK YOU SO MUCH. THOSE WERE ALL MY QUESTIONS.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. ARE THERE OTHER QUESTIONS FROM COUNCILMEMBERS? OH, I CAN'T SEE FOLKS ONLINE. SORRY. DO ANY OF THE COUNCILMEMBERS ONLINE HAVE ANY QUESTIONS?

>> S. O'KEEFE: I'M OKAY.

>> MAYOR ISHII: THANK YOU. ANYONE ELSE HERE? BEFORE WE MOVE ON, I JUST WANT TO SAY THAT IN OUR COUNCIL RULES OF PROCEDURE, THERE'S A SECTION CALLED PROCEDURAL MATTERS AND UNDER THAT SECTION, SECTION B IS DECORUM. IT SAYS NO PERSON SHALL DISRUPT THE ORDERLY CONDUCT OF COUNCIL MEETING. PROHIBITIVE DISRUPTIVE BEHAVIOR INCLUDES BUT NOT LIMITED TO SHOUTING, MAKING DISRUPTIVE NOISES SUCH AS BOOS OR HISSES, SPEAKING OUT OF TURN OR VIOLATION OF APPLICABLE RULES, JUST LIKE THAT, THAT'S A HISS, NOT ALLOWED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

UNDER DECORUM RULES. PREVENTING OR ATTEMPTING TO PREVENT THOSE WHO HAVE THE FLOOR FROM SPEAKING OR OBSERVING THE MEETING. ENTERING INTO IT OR REMAINING IN AN AREA OF THE MEETING ROOM THAT IS NOT OPEN TO THE PUBLIC OR APPROACHING THE COUNCIL DAIS WITHOUT CONSENT. THAT MEANS YOU CAN'T SPEAK OUT OF TURN, BOO OR HISS. I'M ASKING YOU BE RESPECTFUL. WE NEED TO ALLOW FOR FOLKS TO BE ABLE TO SPEAK. IF THAT KIND OF BEHAVIOR CONTINUES ON WE WILL TAKE ANOTHER COUNCIL BREAK. I WOULD RATHER NOT DO THAT; I WOULD RATHER US KEEP MOVING FORWARD IN A PRODUCTIVE MANNER. SO THANK YOU VERY MUCH. APPRECIATE IT. NOW WE WILL TAKE PUBLIC COMMENT ON 43, A, B, AND C. SO WE ARE GOING TO START WITH FOLKS IN THIS ROOM.

>> GOOD EVENING, MY NAME IS GREG MURPHY AND I SERVE AS THE CHAIR OF THE DISASTER AND FIRE DISASTER COMMISSION. I WANT TO POINT OUT, AS I'M SURE YOU ALL KNOW, THE COMMISSION HAS UNANIMOUSLY TWICE RECOMMENDED THAT THE COUNCIL APPROVE THE ORDINANCES. AS AN INDIVIDUAL, AS A CITIZEN, AS A RESIDENT OF THE BERKELEY HILLS, I STRONGLY SUPPORT MEASURES 43A, B AND C. AND YOU WILL HEAR SEVERAL REASONS TO OPPOSE THIS MEASURE AND SOME I'M VERY SYMPATHETIC TO. SOME FRANKLY I FIND SPURIOUS. COUNCILMEMBER BLACKABY HAS -- HOWEVER YOU SHOULD NOT DELAY APPROVING THIS MEASURE TONIGHT. AS SHAKESPEARE WROTE, IF NOT NOW, YET IT WILL BE, THE REIGN OF US ALL. THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: THANK YOU.

>> 760 WILDCAT CANYON. I RECENTLY TOOK A DRIVE THROUGH PALISADES. AND I WOULD RATHER DEAL WITH THE VAGARIES AND IMPERFECTIONS OF THE PROPOSAL THAN THE DEVASTATING AFTERMATH OF A WILDFIRE. I THINK THIS COULD BECOME A VICTIM OF THE STRIVING FOR PERFECT, AND THROWING AWAY THE GOOD, IF THE COUNCIL DOES NOT APPROVE THIS. I, FOR ONE, FEEL LIKE THE BERKELEY HILLS IS A VERY UNIQUE ENVIRONMENT, SWADDLED IN NATURE THAT A GROUP OF FIREFIGHTERS IS TRYING TO HELP US CONTINUE TO LIVE THERE. WHY NOT EMBRACE THEIR EXPERTISE, PATIENCE, DILIGENCE, THEY ARE ONLY TRYING TO HELP US. THAT'S ALL THEY ARE TRYING TO DO. AND LET'S WORK WITH THEM SO THAT WE CAN CONTINUE TO ENJOY OUR UNIQUE ENVIRONMENT. THANK YOU.

>> MAYOR ISHII: THANK YOU. ARE YOU COMING UP? YOU DON'T HAVE TO WAIT FOR ME TO TELL YOU.

>> A COUPLE OTHER PEOPLE HAVE GIVEN ME THEIR MINUTE. I DON'T THINK I NEED ALL OF THEM.

>> MAYOR ISHII: OKAY. SO.

>> I SIT ON THE BOARD OF THE UNIVERSITY OF CALIFORNIA BOTANICAL GARDEN UP IN STRAWBERRY HILL AND STARRY CREEK. AND I'M ALSO OF THE AUTHOR OF TIMBRE PRESS GUIDE TO SUCCULENT PLANTS OF THE WORLD. SO I KNOW SOMETHING ABOUT PLANTS. WHILE I AGREE WITH, OKAY, WE ALL KNOW THAT THERE'S A CONSTANT RISK OF WILDFIRE. TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DENY THAT WOULD JUST BE INSANE. TO ME, HOME HARDENING, AS DEPUTY CHIEF WHITAKER SAID IS ONE OF THE VERY BEST THINGS YOU COULD DO. I HAVE REPLACED ALL MY EAVES WITH CEMENT BOARD. IT'S EXPENSIVE BUT IT'S WORTH IT. BUT WHAT I DO WANT TO TALK ABOUT IS PLANTS A LITTLE BIT. BECAUSE MOST SIMPLY, YOU COULD DIVIDE PLANTS INTO FOUR GROUPS. ONE IS WHAT I CALL A PYRO PHYTIC. PLANTS THAT NEED FIRE FOR THEIR SEEDS TO GERMINATE. THIS INCLUDES A LOT OF NATIVE CALIFORNIA PLANTS. OBVIOUSLY NOT A GOOD IDEA TO HAVE ANYWHERE NEAR YOUR HOUSE. CIRCUS, WHICH IS ACTUALLY FIRE RESISTANT TREE, WESTERN RED BUD HAS SEEDS THAT ARE PYROPHYTIC. IT'S SOMETHING TO THINK ABOUT. AND PLANTS THAT ARE JUST FLAMMABLE, WHICH INCLUDE A LARGE NUMBER OF PLANTS RANGING FROM A LOT OF CONIFERS ARE VERY FLAMMABLE. AND CAN SEND EMBERS BURNING OUT. AND IF IT WERE UP TO ME, YOU WOULDN'T BE ALLOWED TO PLANT NEW MONTEREY PINES AND SUCH LIKE THAT. THEN THERE ARE PLANT THAT'S ARE FIRE RESISTANT. SOME OF WHICH ARE NATIVES, SUCH AS TOYON AND CATALINA LIUNI, THEY WILL BURN BUT WON'T REALLY SPREAD A FIRE MUCH. AND FINALLY, THERE ARE PLANTS THAT ARE FIRE SUPPRESSIVE. FIRE SUPPRESSIVE IS THE MOST COMMON ONE IS CAMELLIAS. I DON'T PARTICULARLY LIKE CAMELLIAS. THEY ARE MORE FIRE SUPPRESSIVE. SAGO PALMS IS ALSO FIRE SUPPRESSIVE. IT'S FRONDS WILL CHAR, THEY WON'T BURN. IT WILL NOT CATCH FIRE AND NOT HEAT UP, PARTICULARLY. FINALLY, OBVIOUSLY, SUCCULENTS ARE FIRE SUPPRESSIVE. AGAIN, THEY WILL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CHAR, THEY MAY BE KILLED BUT THEY WILL NOT CATCH FIRE. YOU WON'T SEE A CACTUS OR A BIG ALOE IN FLAMES. IT MAY KILL THE PLANT BUT IT WILL NOT SPREAD AND IT WILL NOT DO DAMAGE. SO I THINK THAT PEOPLE SHOULD BE AWARE OF THESE KIND OF PLANTS. ALSO, THE KENSINGTON FIRE DEPARTMENT --

>> MAYOR ISHII: SO ACTUALLY, I THINK HE ACTUALLY HAD A LITTLE MORE TIME THAN WAS GIVEN TO HIM. HE HAD THREE MINUTES ON THE CLOCK BUT I THINK HE COULD HAVE HAD MORE.

>> JUST THE KENSINGTON FIRE DEPARTMENT HAS A GOOD GUIDE OF PLANTS THEY RECOMMEND AND THAT THEY DISAPPROVE OF. AND THE CITY OF ANAHEIM HAS A REALLY IMPRESSIVE LIST OF PLANTS FROM SMALL GROUND COVER PLANTS UP TO TREES, AGAIN THAT THEY APPROVE OF, AS FIRE RESISTANT OR THAT THEY DISAPPROVE OF AS FIRE HAZARDOUS AND IT WILL BE WELL WORTH EVERYBODY'S WHILE TO LOOK AT THOSE THINGS. ANAHEIM AND KENSINGTON FIRE DEPARTMENTS, RESPECTIVELY. THAT'S BASICALLY ABOUT IT. JUST REMEMBER THAT SUPPRESSIVE PLANTS NEAR WITHIN THAT FIVE FOOT ARE NOT GOING TO MAKE IT MORE DANGEROUS. AND ALSO THINGS LIKE CAMELLIAS WHICH ARE BASICALLY A LIVING VASE. I HAVE SOME THAT CAN HOLD FOUR OR FIVE GALLONS OF WATER INSIDE THEM ARE QUITE FIRE SUPPRESSIVE TOO, OBVIOUSLY. ANYWAY. BUT I AM GOING TO MOVE A COUPLE OF PLANTS AWAY FROM CLOSER TO THE HOME, SOME EUROPEAN FAN PALMS BECAUSE THEY ARE NOT FIRE -- THEY AREN'T TERRIBLE. BUT IT'S A GOOD IDEA. SO THAT'S JUST ABOUT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHAT I HAVE TO SAY.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] THANKS FOR YOUR COMMENT. JUST TO MAKE IT EASIER FOR YOU, I KNOW IT'S CONFUSING, IF ONE PERSON IS SPEAKING, IT'S ONE AND A HALF, IF TWO, IT'S THREE, IF IT'S THREE, IT'S FOUR AND A HALF MINUTES AND IF THE TOTAL OF FOUR, IT'S SIX MINUTES. SO HOPEFULLY THAT WILL MAKE --

>> [OFF MIC]

>> MAYOR ISHII: OKAY. IS ANYONE ELSE CEDING TIME TO YOU, SIR? YOU HAVE A TOTAL OF SIX MINUTES THEN, THREE PEOPLE.

>> I CAN'T TALK THAT LONG.

>> MAYOR ISHII: IT'S YOURS IF YOU WANT IT, THEY GAVE IT TO YOU, SO GO FOR IT.

>> I'M GOING TO USE NOTES A LITTLE BIT BECAUSE OTHERWISE I WILL FORGET. I'M PETER WIENER, I LIVE ON BUENA VISTA WAY, I'M COUNCILMEMBER BLACKABY'S SUPPORTER AND RESIDENT. I HAVE BEEN A LAWYER OVER 50 YEARS, I'VE LIVED IN BERKELEY FOR 55 YEARS, I'VE LIVED IN THE HILLS FOR 44 YEARS AT THE SAME ADDRESS. I'VE WRITTEN OVER 20 CALIFORNIA ENVIRONMENTAL LAWS WHEN I WAS SPECIAL ASSISTANT TO THE GOVERNOR. I HAVE LITIGATED CEQA FOR 40 YEARS. I'VE REPRESENTED BERKELEY PRO BONO IN THE CEQA CHALLENGE, STATION 7 THE FIRE HOUSE, WHICH IT WAS LITIGATED BY A RESIDENT. THE FIREFIGHTERS HAVE BEEN WONDERFUL TO ME. HOWEVER, 43C, AS AN EXAMPLE, IF I UNDERSTAND COUNCILMEMBER BLACKABY CORRECTLY, SAYS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THAT WE SHOULD REVISIT WHICH PLANTS SHOULD BE ALLOWED AND WHICH PLANTS SHOULD NOT. THAT'S NICE. BUT THE HORSE IS OUT OF THE BARN AND WE ALREADY WILL HAVE AN ORDINANCE AND PEOPLE WILL WANT TO TAKE ACTION TO COMPLY WITH IT OR FIGHT IT OR WHATEVER. YOU HAVE HEARD THE PERSON BEFORE ME. YOU HAVE SEEN DR. LONGCORE'S LETTER; THIS IS AN ISSUE THAT HAS NOT BEEN RESOLVED WHICH PLANTS SHOULD BE BANNED AND WHICH SHOULD NOT, WITHIN FIVE FEET OR 30 FEET. WE KNOW ABOUT EUCALYPTUS; WE KNOW ABOUT GUM TREES. WHAT WE DON'T KNOW IS ABOUT CAMELLIAS FOR EXAMPLE. I JUST LEARNED ABOUT IT. WE NEED TO LEARN ABOUT IT BEFORE WE PUT IT IN A COERCIVE AMENDMENT THAT HAS PEOPLE DOING THINGS. GETTING BACK TO ITEM A, COUNCILMEMBER TREGUB WE HAD IT ON THE SCREEN WHICH FIRE ZONES ARE WHICH. AND THE TRUTH IS, BUT FOR THIS ORDINANCE, MANY OF THE AREAS THAT WERE VERY HIGH FIRE ZONE OR HIGH FIRE ZONE WOULD NOW BE MODERATE, ACCORDING TO CALFIRE MAPS. BUT AS THE CHIEF SAID, AND ASSISTANT CHIEF WHITAKER, YOU ARE NOW MAKING THEM HIGH. THAT'S NOT GOOD FOR ANYONE. AND I DON'T CARE WHAT THE INSURANCE COMMISSIONER SAID. MY INSURANCE WAS CANCELLED, I TALKED TO THE INSURANCE COMPANIES, I KNOW THEY LOOK AT THESE ISSUES AND THEY TOLD ME THEY DID. BECAUSE I SAID I WAS GOING TO COMPLAIN TO THE INSURANCE COMMISSIONER, THEY SAID NO, WE ARE GOING AFTER WHAT BERKELEY SAYS. SO THIS HAS MEANING FOR PEOPLE. WE DON'T NEED TO ZONE PEOPLE TO PUT THEM IN HIGH FIRE AREAS WHEN CALFIRE DOESN'T.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

I KNOW WE HAVE LOCAL KNOWLEDGE. BUT IN 1923, THERE WAS A FIRE AND WHAT WAS RECOMMENDED? PLANT EUCALYPTUS TREES. WE COULD LOOK BACK AND SAY WE AREN'T ALWAYS RIGHT ON THESE THINGS. SO NUMBER ONE, I WOULD SAY, PLEASE DON'T ADOPT THE NEW MAP THAT IS IN 43A. GO WITH THE CALFIRE MAP. THAT'S ACCURATE AND IT WORKS. IF THE STATE WANTS TO CHANGE IT, CHANGE IT. NUMBER TWO, THE ZONES ZERO REGS, I'M TOLD THEY ARE CONSISTENT WITH THOSE OF THE DRAFT OF THE STATE. THAT'S TRUE, BUT THE STATE BOARD OF FORESTRY HAD A MEETING YESTERDAY, JUNE 16TH AND AT THAT MEETING THE BOARD OF FORESTRY EXPRESSED RESERVATIONS WHETHER TO ADOPT THOSE ZONE ZERO REGULATIONS AND SAID THEY WANTED TO LOOK FURTHER WHICH PLANTS ARE GOOD AND NOT. CITY OF L.A. HAS EXEMPTED OAK TREES, WE ARE NOT. THE PICTURE SHOWN ON 43A, THE PICTURE OF MATURE TREES WERE REDWOODS OR PINES, I THINK REDWOODS. THEY DON'T HAVE BRANCHES LOW DOWN. OAK TREES DO. A LOT OF TREES DO. AND WHEN YOU ARE BUILDING ON A HILL, THAT OAK TREE MAY COME UP TO YOUR WINDOW AND MAY NOT GO ABOVE THE HOUSE BECAUSE IT'S PLANTED LOWER DOWN. SO FOR GOSH SAKES LET'S NOT TAKE OUT ALL OF THE MATURE TREES WE LOVE BECAUSE THEY ARE WITHIN FIVE FEET. TO SAY THEY ARE EXEMPTED IS NOT TRUE, THEY ARE EXEMPTED TO THE STATE THEY ARE MORE THAN FIVE FEET. THAT'S NOT AN EXEMPTION FOR MOST PEOPLE. THIS NEEDS TO BE REWRITTEN AND FINALLY TUNED IN ORDER TO BE READY FOR PRIMETIME. AT THE MOMENT, BERKELEY WANTS TO BE FIRST. I

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

UNDERSTAND THAT THAT'S NICE. BUT IT'S NOT ALWAYS BEST. [APPLAUSE] YOU RECEIVED A LETTER FROM RICHARD ILGIN, A FORMER CITY ATTORNEY IN OAKLAND WHO KNOWS ABOUT THESE THINGS. HE NOTED SOME OF THE SLOPPINESS IN THE DRAFTING. HE NOTICED THAT THERE IS NOT A CEQA EXEMPTION HERE, AND HE SAID WHY. I DON'T NEED TO REPEAT ALL THAT. ALL I NEED TO SAY THIS IS NOT ORINDA AND NOT LIKE THE ORDINANCE AND IT BEGS FOR A CEQA LAWSUIT. I REALLY WANT TO PROTECT OUR NEIGHBORHOODS. I LIVE IN THE HILLS; I'VE LIVED IN THE HILLS SINCE 1981. I THINK THERE IS A HIGH FIRE DANGER ALL OVER CALIFORNIA BECAUSE OF CLIMATE CHANGE AND WHAT I DO IN MY DAY JOB IS TRY TO FIGHT CLIMATE CHANGE. SO I'M VERY WELL AWARE OF IT. BUT THIS ORDINANCE GOING BEFORE THE STATE DOES ITS JOB, BEFORE IT CONSIDERS THE EVIDENCE BEFORE IT, BEFORE LOS ANGELES EVEN WITH PALISADES DOES SOMETHING THAT IS IN AN ORDINANCE THAT IS EFFECTIVE AND ENFORCEABLE, I THINK THIS IS NOT READY FOR PRIMETIME. SO I WOULD ASK YOU TO REVISIT IT. I WOULD PREFER THAT WE WAIT FOR THE STATE. BUT AT LEAST, PLEASE CONSIDER THE EVIDENCE BEFORE YOU, NOT JUST THE EVIDENCE PRESENTED BY THE FIRE DEPARTMENT. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. NEXT SPEAKER. YOU ARE A MINUTE AND A HALF, SO YOU WILL HAVE THREE.

>> GOOD EVENING, COUNCILMEMBERS. I LIVE ON WILDCAT CANYON ROAD. I SUPPORT STRONG WILDFIRE SAFETY. FEW KEY POINTS. EIGHT OF THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

20 TOPMOST DESTRUCTIVE WILDFIRES IN CALIFORNIA WERE CAUSED BY UTILITY LINES NOT DEFENSIBLE SPACE VIOLATIONS. THE FIRE DEPARTMENT FOR THE LARGEST REGIONAL PARK IN THE UNITED STATES OPERATES 7:00 A.M. TO 5:00 P.M. THEY DON'T EVEN HAVE A 24/7 FIRE CREW. SO IF I SEE A FIRE AT 5:05 P.M., I WILL BE SENT TO A DISPATCHER. NO ONE IS REQUIRED TO RESPOND AFTER REGULAR BUSINESS HOURS. MY QUESTION FOR COUNCIL, IF EMBER STARTS IN JANUARY 2026, WILL THE CITY WAIT TO ENFORCE EMBER UNTIL AFTER THE STATE FINALIZES ITS ZONE ZERO GUIDANCE? INSTEAD OF RUSHING AHEAD WITH INCONSISTENT RULES LIKE YOU SAW. SECOND QUESTION, WILL PUBLIC LANDOWNERS LIKE U.C. BERKELEY, EAST BAY REGIONAL PARK BE HELD AT THE SAME VEGETATION STANDARDS AS HOMEOWNERS WITH COMPLIANCE PLAN, DEADLINE ALSO SET FOR JANUARY 2026? WILL THE CITY SECURE AND DISCLOSE AGREEMENTS WITH BOTH PRIVATE AND PUBLIC INSURERS INCLUDING FAIR PLAN SHOWING EMBER COMPLY ACTUALLY REDUCED OR STABILIZED PREMIUM BRZ JANUARY 2026? WILL THE CITY RELEASE A FULL COST BENEFIT ANALYSIS OF EMBER AND COMMIT UPDATING IT ANNUALLY BEFORE JANUARY 2026? I WELCOME ASSISTANT FIRE CHIEF DAVE WINIKER, BUT MY QUESTION IS, CHIEF WINIKER HOLDS MULTIPLE PUBLICLY HELD ROLES THAT INTERSECTS WITH EMBER. HE HAS A FOR PROFIT FIRE ANALYTICS COMPANY SELLING WILDFIRE RISK MAPS TO COMPANIES. NOW OWNED BY GENESIS SELLS WILDFIRE SOFTWARE. HE IS FELLOW INSTITUTE INVESTIGATING WILDFIRE, THESE DON'T IMPLY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WRONGDOINGS BUT RAISE SERIOUS QUESTIONS ABOUT TRANSPARENCY, INTEGRITY. WILL THE CITY PUBLISH CHIEF WINIKER'S FULL BUSINESS AFFILIATIONS AND ADOPT FORMAL RECUSAL RULES FOR EMBER-RELATED DECISION BUSINESS JANUARY 2026? EMBER DOES NOT LOOK LIKE FIRE SAFETY; IT LOOKS LIKE POLITICAL COVER. IF THIS COUNCIL CAN ENFORCE STRICT GUIDELINES FOR HOMEOWNERS BUT NOT INSURERS, PARKS, OR YOUR OWN APPOINTEES THEN EMBER ISN'T ABOUT RISK, IT'S ABOUT SHIFTING BLAME. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THREE MINUTES FOR THIS PERSON.

>> GOOD EVENING. I'M SPEAKING TONIGHT BECAUSE EMBER RAISES SERIOUS LEGAL CONCERNS, I'M GLAD TO SEE THERE'S A CITY ATTORNEY HERE TONIGHT. IT CONSTITUTES A REGULATORY TAKING UNDER THE 5TH AMENDMENT, FORCING RESIDENTS TO DESTROY LONG STANDING STRUCTURES, LANDSCAPING AND FENCES ALL WITHOUT ANY COMPENSATION. THIS WILL VIOLATE THE CONSTITUTIONAL RIGHTS OF OVER 1,000 HOMEOWNERS IN THE FIRST TRANCHE ALONE. IT ALSO HAS A DISPARATE IMPACT ON THE ELDERLY AND DISABLED RESIDENTS MANY OF WHOM LIVE ON FIXED INCOMES AND WON'T BE ABLE TO COMPLY. THE IDEA THAT MONEY WILL SHOW UP IS RIDICULOUS WITH OUR POLITICAL CLIMATE AND ECONOMICS OF THIS CITY AND WE KNOW IT. IN FANGT THE CITY TARGETED THE MOST ELDERLY POPULATION TO PILOT THIS SLOPPY RADICAL TAKING. UNDER THE CALIFORNIA DISABLED PERSONS ACT, FEDERAL CIVIL RIGHTS LAWS, FAIR HOUSING, TITLE 6 AND A.D.A. THIS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TYPE OF DISPROPORTIONATE BURDEN IS ILLEGAL. I SUBMITTED A PUBLIC RECORDS REQUEST ASKING THE CITY, IT WOULD HAVE HAD TIME TO DO IT BY NOW TO HAVE DONE WHAT THEY HAVE DONE TO INVEST OUR TAX MONIES EARMARKED FOR INFRASTRUCTURE PROJECTS IN WILDFIRE MITIGATION, RECEIVED OVER DECADES. LIKE MAINTENANCE OF THE HILLS WATER SYSTEM. UNDERGROUNDING OF WIRES, CLEARING PUBLIC FIRE ENGINE EGRESS AND EXIT ROUTES AND PREPARING FOR THE SAFE EVACUATION OF DISABLED RESIDENTS. INSTEAD OF RESPONDING TIMELY THE CITY NOTIFIED ME FRIDAY IT WAS DELAYING IT'S RESPONSE UNTIL ONE BUSINESS DAY AFTER THIS MEETING. MEANWHILE THE CITY CLAIMED EXEMPTION FROM CEQA THOUGH PRODUCED NO N.O.E. THE FACT IS ASSERTED EXEMPTIONS APPLY ONLY TO ISOLATED PROJECTS NOT TO A SWEEPING CITYWIDE PROGRAM THAT IMPOSES MANDATORY PHYSICAL CHANGES ON ALMOST 10,000 HOMES BY THE TIME IT'S DONE. IT'S LEGALLY INADEQUATE. AS FOR, I WILL SPEAK FOR A MOMENT TO THE CROWD, FOR THE PEOPLE HERE WHO ARE LISTENING, THIS IS A DANGEROUS PRECEDENT FOR ALL OF YOU WHETHER YOU LIVE IN THE HILLS OR NOT. THEY ARE IS ASSERTING IF THERE'S A COMPELLING PUBLIC INTEREST LIKE FIRE SAFETY THEY CAN TURN YOUR PRIVATE PROPERTY INTO PUBLIC INFRASTRUCTURE AND MAKE YOU PAY FOR IT. TODAY IT'S TURNING HILLSIDE HOMES INTO A FIRE BREAK FOR THE PUBLIC. TOMORROW IT COULD BE HOMEOWNERS IN THE FLAT LANDS SAYING DUE TO VIOLENT CRIME THERE'S EASEMENT AND YOU WILL BE REQUIRED TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PURCHASE RING CAMERAS THE POLICE WILL USE. OR MAYBE TAKE AN EASEMENT ON YOUR PROPERTY AND SAYING DEALING WITH HOMELESSNESS IS A PUBLIC SAFETY ISSUE. YOU WILL BE REQUIRED TO BUY A TINY HOME AND PUT IT ON YOUR PROPERTY FOR SOMEONE TO LIVE IN. THAT IS THE LEGAL THEORY. IT'S VERY COMPELLING TO A CITY THAT'S RAN THEIR FINANCES INTO THE GROUND WITH VANITY PROJECTS. WE HAVE A STATE WITH PEOPLE WHO ARE FAR MORE EDUCATED AT THIS THAN YOU. IN THE WORD OF KENDRICK LAMAR, BE HUMBLE, SIT DOWN, WAIT FOR THE STATE. [APPLAUSE]

>> HI.

>> GOOD EVENING, MADAM MAYOR, MEMBERS OF THE CITY COUNCIL, MY NAME IS CAROLYN WIE NET, I LIVE IN THE BERKELEY HILLS WITH TWO ADDITIONAL MEMBERS OF MY FAMILY. MY DAUGHTER AND MY BROTHER. I REPRESENT THESE THREE HOMES TONIGHT IN SUPPORT OF EMBER. THERE ARE A LOT OF ARGUMENTS AROUND SHOULD WE DO IT NOW, WHAT SHOULD WE DO, BUT FOR ME IT BOILS DOWN TO SEVERAL INCONTROVERTIBLE REALITIES. FIRST, WE ALL KNOW A FIRE STORM IS INEVITABLE, IT'S NOT A QUESTION OF IF, IT'S A QUESTION OF WHEN, IT COULD HAPPEN TOMORROW, A YEAR, TEN YEARS BUT IT WILL HAPPEN. BY DEFINITION OF FIRESTORM, SOMETHING THAT EVEN THE BEST FIRE DEPARTMENT AS OUR BERKELEY FIRE DEPARTMENT IS ABSOLUTELY WONDERFUL, BUT NOBODY COULD CONTAIN IT, IT WILL CONSUME PART OR ALL OF THE BERKELEY HILLS. SECOND, DURING THIS FIRESTORM, WHILE IT RAGES THROUGH,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE ESCAPE ROUTES WE KNOW ARE INADEQUATE. THEY WILL NOT EVACUATE US SAFELY. THEY WILL NOT EVACUATE US QUICKLY ENOUGH. AND SOME OF US WILL BE LEFT BEHIND. AND WHEN THE SMOKE AND THE RUBBLE ARE THE ONLY THINGS THAT ARE LEFT AFTER THE FIRE HAS DIED DOWN, IT IS THESE MEN AND WOMEN OF THE BERKELEY FIRE DEPARTMENT THAT WILL BE FIRST UPON THE SCENE. AND THEY WILL INEVITABLY AND TRAGICALLY FIND RESIDENTS WHO WERE UNABLE TO ESCAPE IN THE RUBBLE. YOU CAN TAKE STEPS TONIGHT TO REDUCE THE IMPACT, THE HORRIFIC POTENTIAL IMPACT OF THIS. I URGE YOU TO VOTE FOR EMBER. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, THANK YOU FOR THE OPPORTUNITY TO SPEAK. MY NAME IS DARA SURE; I LIVE ON GRIZZLY PEAK FOR OVER 30 YEARS. I WANT TO THANK THE FIRE DEPARTMENT AND THE COUNCIL FOR THIS VERY THOUGHTFUL PROPOSAL. I'M STRONGLY IN SUPPORT OF EMBER. I ALSO APPRECIATE THE NUMEROUS EXTRA HEARINGS AND MEETINGS AND OPPORTUNITIES FOR PEOPLE TO ENGAGE THAT HAVE BEEN PROVIDED OVER THE LAST SEVERAL MONTHS. I WANT TO SAY THAT AS I WAS SITTING HERE GETTING READY TO SPEAK, ACROSS MY PHONE CAME A NEWS ARTICLE THAT THERE IS A MAJOR FIRE BURNING IN EAST SAN JOSE, 100 ACRES AND PEOPLE EVACUATING. THIS IS NOT A HYPOTHETICAL SCENARIO. PARADISE, THE OAKLAND FIRE, WE HAVE WHAT'S HAPPENING IN L.A. AND NOW WE HAVE ANOTHER FIRE IN SAN JOSE. WE CANNOT WAIT FOR THE STATE BECAUSE FIRES DON'T WAIT. AND THIS ORDINANCE MAY NOT BE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PERFECT. IT MAY NEED SOME TWEAKING BUT IT IS BETTER TO ACT NOW TO PROTECT OUR HOMES, TO PRESERVE OUR INSURANCE, THAN TO WAIT FOR SOME UNKNOWN. THIS ORDINANCE IS BALANCED, IT'S BASED ON GOOD SCIENCE, AND I, FOR ONE, DO NOT WANT TO LOSE MY HOME, OR MY INSURANCE, AND I WANT TO SAY I'M STRONGLY IN SUPPORT OF THIS AND THANK YOU TO THE COUNCIL AND THE FIRE DEPARTMENT FOR ALL OF THEIR EFFORTS. AND BY THE WAY, I'M A CIVIL RIGHTS LAWYER FOR 40 YEARS DOING DISABILITY LAW, AND I DON'T BELIEVE THE ALLEGATIONS OF DISCRIMINATION.

>> MAYOR ISHII: PLEASE ALLOW ME TO LEAD THE MEETING, THANK YOU FOR YOUR COMMENT. YOUR TIME IS UP. OKAY, YOU HAVE A MINUTE AND A HALF FROM SOMEONE IN THE AUDIENCE.

>> THANK YOU VERY MUCH. I ATTENDED THE BOARD OF FORESTRY AND FIRE PROTECTION MEETING YESTERDAY IN SACRAMENTO. I WANT TO SAY THAT THE LEVEL OF CONFIDENCE IN BERKELEY ABOUT ZONE ZERO IS VERY DIFFERENT FROM THE TONE IN THAT ROOM. I WAS ENCOURAGED BY THE THOUGHTFUL APPROACH AND THE INCLUSIVE ATTITUDE THAT THE BOARD MEMBERS HAD AND THEIR DESIRE TO FIND A WAY TO ACHIEVE BALANCE IN THEIR RECOMMENDATIONS. THEY REALIZE THAT SMALL LOTS ARE A COMPLICATED ISSUE IN MANY PARTS OF CALIFORNIA. THEY ARE AWARE THERE'S BROAD CONCERN ABOUT TREES AND VEGETATION. THEY STRESS SEVERAL TIMES THE IMPORTANCE OF THE THREE-YEAR ROLL OUT TO CONTINUE TO MAKE ADJUSTMENTS. THEY EVEN HAD A BIG DEBATE OVER

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE MEANING OF THE WORD COMBUSTIBLE BOTH ABOUT ARTIFICIAL TURF AND VEGETATION. AND THEY ARE EVEN CONSIDERING HAVING ZONE ZERO ONLY APPLY TO NEW CONSTRUCTION FIRST. I SPOKE TO THE COMMITTEE MEMBERS AND HEAD OF CALFIRE AFTERWARDS AND EXPLAINED I WOULD BE AT THIS VOTE TODAY AND ASKED THEM THAT BERKELEY WOULD BE PASSING BASICALLY THEIR DRAFT LANGUAGE AND BEGINNING TO ENFORCE IT NEXT MAY. AND THEIR REACTION TO THE MEMBERS IN THE CALFIRE CHIEF, THEY RESPONDED WITH THE EXACT SAME WORDS, "OH WOW". J. LO PEZ, ONE OF THE BOARD MEMBERS TOLD ME THERE ARE MANY MORE STEPS AFTER THE RECOMMENDATION IT WILL GO BACK TO THE FINANCE DEPARTMENT, AND BACK TO THE BOARD OF FIRE. HIS MAIN MESSAGE FOR BERKELEY IS, "BE CAUTIOUS BECAUSE THINGS MIGHT CHANGE". IT IS VERY HARD TO BACK PEDDLE. ALICIA GOLDS WORTH IS ANOTHER COMMITTEE MEMBER WITH A BACKGROUND AS A BOTANIST, SHE SAID THERE NOTHING MORE DIFFICULT THAN WHAT THEY ARE DOING, TRYING TO STRIKE A BALANCE BETWEEN FREEDOMS AND COMMUNITY SAFETY. THEY SAID ZONE ZERO MUST NOT BE PUNITIVE AND MUST REST ON EDUCATION. THE CRISIS ISN'T VEGETATION; IT'S TOO MANY HOMES BUILT TOO CLOSE TOGETHER. HER MESSAGE TO BERKELEY IS SIMPLE AND AGAIN, I QUOTE "BEFORE YOU FREAK OUT, DON'T CUT DOWN ANY TREES". BERKELEY SHOULD SEEK BALANCE. LET'S NOT RUSH INTO ENACTING SOMETHING TOO STRICT FOR OUR BUILT ENVIRONMENT WHERE IT IS THE PROXIMITY OF OLDER STRUCTURES THAT IS THE REAL DANGER, NOT THE VEGETATION. TAKING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RUSHED ACTIONS WHICH WILL HARM THE ENVIRONMENT AND NOT DELIVER SIGNIFICANT PROTECTIONS FROM FIRE IS BAD POLICY. SO THOSE ARE MY COMMENTS ON 43A. BRIEFLY, I FEEL LIKE 43C IS INSUFFICIENT BECAUSE THE CHANGES SHOULD BE IN THE CODE ITSELF BEFORE IT IS APPROVED. PROMISING TO MAKE CHANGES AFTER THE FACT IS NOT ENOUGH TO KEEP US FROM ENACTING A LAW THAT PEOPLE WILL WANT TO COMPLY WITH AND CAUSE DAMAGE TO OUR BEAUTIFUL AREA. THANK YOU.

[APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MAYOR AND CITY COUNCIL, I'M TOM FRANCIS, I LIVE IN BASICALLY IN ZONE ZERO UP IN VISTA MONTE. I'M KIND OF GOING TO ECHO WHAT ONE OF THE PREVIOUS COMMENTERS SAID. I CERTAINLY HOPE THAT YOU DON'T PASS THE ORDINANCE BUT, WELL, I'M SUPPORTIVE OF THE PART C THAT COUNCILMEMBER BLACKABY WROTE. AND I WILL TELL YOU WHY. IT'S BECAUSE IF YOU PASS THIS, WE DEFINITELY NEED AN IMPLEMENTATION PLAN. NOW THERE'S A COUPLE OF CONCERNS I HAVE ABOUT THAT PARTICULAR ISSUE. I'M A CIVIL ENGINEER. I WORK FOR A WATER AGENCY. I USED TO WORK FOR EAST BAY MUD; I WORK WITH A LOT OF CITY MANAGERS IN MY ROLE. I DO NOT BELIEVE YOU HAVE THE ABILITY, CITY MANAGER, TO DEVELOP A THOROUGH AND COMPLETE IMPLEMENTATION PLAN BY DECEMBER. I WOULD THINK YOU NEED AT LEAST SIX MONTHS TO DO IT. I DON'T KNOW HOW THOROUGH THIS WILL BE. SECONDLY I ALSO THINK THERE NEEDS TO BE A BALANCE OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

STAKEHOLDERS AND I ALSO THINK THEY SHOULD BE FROM ZONE ZERO, IF YOU ARE GOING TO INCLUDE STAKEHOLDERS AS PART OF THIS. I THINK SOME OF THE PEOPLE CLAPPING SHOULD BE ON IT. I WOULD BE HAPPY TO BE ON IT. IT NEEDS TO HAVE DIFFERENT VOICES, EVEN IF THEY ARE HARD TO HEAR. I HAVE DIFFERENT VOICES ON MY STAKEHOLDER GROUPS OR I WILL HEAR FROM THEM OTHERWISE. I UNDERSTAND YOU ARE LISTENING TO REAL STRESSFUL THINGS TONIGHT AND I WILL JUST CLOSE IT AT THAT. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> I, TOO, VOLUNTEER FOR THE WORKING GROUP. I'M A STAKEHOLDER UP IN THE HILLS. AND CHIEF SPRAGUE, YOU HAD SOME NEW WORDING TONIGHT PREFACING THIS WHOLE SECTION AND I FINALLY PUT ON MY GLASSES AND KNEW YOU WERE TALKING AND MISSED IT. SO IS THAT AVAILABLE TONIGHT? IS THERE A PRINTOUT SOMEWHERE? CAN WE SHOW IT ON THE SCREEN LATER OR SOMETHING? I WOULD LOVE TO READ IT. SO, THE PROBLEM FOR ME ON THIS PARTICULAR BOTH 43A AND 43B, THE WORDING IN THE NEW FIRE CODE HAS, ON PAGE, I WON'T EVEN CITE THE PAGE, IT'S DEEP IN THERE, BUT IT'S GOT LINED OUT SECTION FOR APPEALS. THEY HAVE LINED OUT HAVING AN APPEALS BOARD. SO IF WE HAVE ANY RESIDENTS, CITIZENS IF YOU ARE UP THERE, AND YOU HAVE SOME VERDICT OF WHAT THE CODE IS AND INTERPRETATION, IF YOU TRY TO APPEAL, IN THIS PARTICULAR WORDING OF THE FIRE CODE IT COMES TO THE CITY COUNCIL TO DECIDE. NEW CITY COUNCIL, NEW MAYOR. AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IF THERE'S SOME KINDS OF QUESTIONS ABOUT THAT, IT CAN GO OVER TO THE FIRE OFFICER, WHICH I WOULD THINK IS FIRE DEPARTMENT. IT WASN'T SPECIFIED. AND IF THERE'S STILL SOME QUESTION, IT COMES BACK TO THE CITY COUNCIL AND IT'S FINAL. BEFORE THIS WORDING THERE WAS A BOARD. LOOKS LIKE IT WAS APPOINTED BUT THAT'S MORE OBJECTIVE. THERE'S A LOT OF BONDING ON PUTTING THIS THROUGH RIGHT NOW. ANOTHER PROBLEM FOR ME RIGHT NOW IS THAT WE HAPPEN TO KNOW PHD FIRE, CAMELLIAS ON BRICK WALLS.

>> MAYOR ISHII: SORRY? IS SOMEONE GOING TO GIVE YOUR MINUTE AND A HALF? THIS WOMAN HERE WITH THE HAT IS GIVING YOU ANOTHER MINUTE AND A HALF.

>> WE HAVE GOT OLD GROWTH CAMELLIAS; THEY ARE 90 YEARS OLD. SO THEY ARE MA TOUR. MATURE. THEY WANT TO BE ABOVE THE ROOF; WE TRY TO KEEP THEM DOWN BECAUSE THE LEAVES COME INTO THE GUTTERS AND THEY ARE FIRE SUPPRESSANT AND THAT'S IN A LOT OF THE SCIENCE. AND OUR PHE FIRE SCIENTIST FRIENDS, ONE IS IN ALASKA RIGHT NOW, IN TEXAS, U.C.L.A. AND U.W. FINISHING A THIRD BOOK UP THERE. THE PROBLEM WHEN WE JUST DO ALL OR NOTHING AND STRIP OUT BY, I GUESS DECEMBER 31ST, HUH? JANUARY 1, STRIP OUT WHAT ALREADY COOLS A THREE DIMENSIONAL SPACE AND ENCOURAGES STRUCTURES BEING RETAINED. OF COURSE THEY HAVE BRICK BEHIND THEM. BUT IF WE DO THAT, AND THEN SOMETHING MORE IS THOUGHT ABOUT, ALL THESE AMENDMENTS THAT MIGHT ROLL IN, AND WE HAVE ALREADY TAKEN OUT OLD

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

GROWTH FOR FIVE FEET ALL AROUND, IT JUST ISN'T SMART. I WOULD LIKE THIS BODY TO THINK IN TERMS OF OTHER SPECIALISTS GETTING ASKED. AND LOOKING AT THINGS. THE LAST THING I WANT TO SAY, I'M ON NO SOCIAL MEDIA SO I DON'T KNOW WHAT'S GOING ON NEXT DOOR OR ANY OF THAT, BUT I'M A TALKER AND A LISTENER. THAT'S BEEN MY PROFESSION. WHAT I'VE PICKED UP FROM THESE PUBLIC MEETINGS AND WHAT I SPR BEEN HEARING FROM THE COMMUNITY SINCE I GOT INFORMED IN MAY, IS THERE ARE FOUR BIG INFRASTRUCTURE AREAS HERE I'M CONCERNED ABOUT FOR OUR COMMUNITY AND FOR YOU. I'VE BEEN HEARING STUFF ABOUT LAWSUITS. I'VE BEEN HEARING STUFF ABOUT RECALLS. I'VE BEEN HEARING STUFF ABOUT TAXPAYER REFORM.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP.

>> LET'S --

>> MAYOR ISHII: THANKS FOR YOUR COMMENT. [APPLAUSE]

>> HI, MY NAME IS ALEX, I LIVED IN GRIZZLY PEAK FOR 27 YEARS. FIRST OF ALL, I WAS INTERESTED TO HEAR ASSISTANT CHIEF WINIKER'S PRESENTATION TONIGHT. I WAS AMAZED HOW MANY CAVEATS AND MAYBES SHOWED UP TONIGHT. THOSE THAT HAVEN'T BEEN PRESENT IN THE GUNG-HO PRESENTATIONS PREVIOUSLY ON THIS TOPIC. IT'S GOOD THERE'S MORE CAVEATS BUT NO ONE SEEMS TO BE ACTING ON THEM. ALSO I WAS LOOKING AT THE NEW DRAFT BY COUNCILMEMBER BLACKABY AND COUNCILMEMBER O'KEEFE. SO ONE THING I CHASED UP IS THE SUPPOSED $1 MILLION WORTH OF FUNDING. IT EXPLICITLY EXCLUDES ANY LARGE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AND SMALL DAMAGE TREE REMOVAL, ANY REPLACING OF COMBUSTIBLE FENCES, GATES AND ARBORS AND HARD SCAPING. THEY ARE SPECIFICALLY EXCLUDED FROM THE FINANCIAL ASSISTANCE THAT'S CURRENTLY AVAILABLE. ANOTHER POINT I WOULD LIKE TO MAKE, AT VARIOUS OF THESE WORKSHOPS, AND OTHER DISCUSSIONS, COUNCILMEMBER BLACKABY HAS TALKED ABOUT PUTTING A CAP, THE FIRE DEPARTMENT SAYS WE CAN ALL GET BY $3,000-$5,000. YOU SAID YOU WOULD PUT A CAP AT LEAST PER YEAR WHAT YOU ARE REQUIRING FROM RESIDENTS AND I HAVEN'T SEEN THAT IN THE UPDATED DRAFT.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU VERY MUCH. [APPLAUSE]

>> THERE'S A COUPLE MINUTES BEING CEDED TO ME. I'M THE RICHARD THAT WAS REFERRED TO CITY ATTORNEY'S OFFICE. I HAVE LITIGATED, I HAVE WRITTEN LEGISLATION FOR CODE ENFORCEMENT AND I HAVE ENFORCED THE CODES. I'M FINALLY, I THINK THERE'S NO REASON THAT I CAN SEE, AT THIS POINT, AND NOBODY HAS EXPLAINED TO ME WHY YOU NEED TO GO FORWARD TONIGHT. [APPLAUSE] YOU HAVE TIME, THIS ISN'T GOING TO BE ENFORCED FOR ALMOST A YEAR, YOU HAVE PLENTY OF TIME TO MAKE IT RIGHT SO YOU CAN GET MORE SUPPORT FROM THE COMMUNITY. BECAUSE RIGHT NOW YOU LACK SIGNIFICANT SUPPORT IN THE COMMUNITY. YOU HAVE A LOT OF PEOPLE WHO ARE REALLY CONCERNED ABOUT THIS AND WHAT IT IS LIKELY TO DO AND YOU NEED TO FIX IT NOW BEFORE YOU GO AND ADOPT IT. AND I THINK THAT'S IMPORTANT. BECAUSE IF YOU ARE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

GOING TO HAVE PEOPLE, IF YOU ARE GOING TO HAVE THE FIRE DEPARTMENT INSPECTING, WHEN THEY INSPECT HOUSES AND PEOPLE SAY, WELL NO, I'M NOT GOING TO ALLOW YOU ON THE PROPERTY, THE FIRE DEPARTMENT SAYS WE WILL HAVE TO GET WARRANTS. I'VE GOTTEN WARRANTS. AND THEY ARE REQUIRED BY LAW, THE PESKY LITTLE LAW THAT GETS IN THE WAY IS THE FOURTH AMENDMENT OF THE CONSTITUTION. AND THEY ARE TROUBLESOME TO GET AND THEY ARE DIFFICULT TO GET. AND THEY ARE COSTLY TO GET. SO I THINK WHAT YOU WANT TO DO IS YOU WANT TO GET PEOPLE TO ACTUALLY PARTICIPATE, AND ACTUALLY APPROVE THIS. I'M GLAD TO SEE SOMEONE FINALLY MENTIONED CEQA. THANK YOU, COUNCILMEMBER BLACKABY. SOMEONE FINALLY MENTIONED IT, IT'S WRONG, BUT I'M GLAD YOU MENTIONED IT. THE BIG CONCERN ISN'T WHAT HAPPENS ON INDIVIDUAL PROPERTY, CEQA, IN THE GUIDELINES IT DOES NOT APPLY IF CUMULATIVE IMPACTS ARE UNUSUAL CONDITIONS ON THE ENVIRONMENT. YOU HAVE 850 HOMES IN THE FIRST TRANCHE OF THIS. YOU HAVE THOUSANDS MORE IN THE OTHERS. THAT'S HOW YOU MEASURE CUMULATIVE IMPACT. YOU HAVE TO LOOK AT ALL OF THAT. THERE'S BEEN NO STUDY, CEQA WASN'T MENTIONED BY ANYBODY UP HERE OR THE FIRE DEPARTMENT OR CITY ATTORNEY OR CITY MANAGER UNTIL TONIGHT. THE FIRST TIME WE HEARD FROM SOMEONE ABOUT CEQA. AND YOU NEED TO DO THAT ANALYSIS, OTHERWISE YOU POTENTIALLY LEAVE WHAT YOU HAVE DONE VULNERABLE. AND THERE ARE SIGNIFICANT IMPACTS TO LOOK AT. YOU

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ARE GOING TO HAVE EROSION; YOU ARE GOING TO HAVE WATER RUNNING OFF. WE HAD TWO MAJOR MUDSLIDES IN THE HILLS ALREADY. WE HAD TO PUT IN RETAINING WALLS AND OTHER MEASURES, DRAINAGE TO PREVENT THAT FROM HAPPENING. THAT'S NOT ONE OF THE COSTS YOU ARE TALKING ABOUT; A LOT OF PEOPLE MAY HAVE TO DO THAT ALSO TO PREVENT. AND THOSE OF YOU WHO AREN'T IN THE HILLS, THAT'S ALL COMING YOUR WAY, THAT'S ALL COMING DOWN YOUR HILL AND LAKE ANZA AND COMING INTO THE BAY. AND YOU NEED TO FIGURE OUT A WAY OF ADDRESSING THAT BEFORE YOU MOVE FORWARD. [APPLAUSE] I MADE WRITTEN COMMENTS ABOUT THE APPEALS PROCESS. IT'S PRETTY MUCH A SHAM. ONE OF THE MOST RIDICULOUS PROCESSES I'VE SEEN SINCE I'VE BEEN WRITING LEGISLATION, FRANKLY. GIVEN LESS THAN TEN DAYS TO RESPOND TO A VIOLATION. AND IT'S GOING TO THE CITY COUNCIL. HOW MANY ACTUALLY WANT TO HEAR IT? HEAR THESE APPEALS? AND YOU CAN ELECT NOT TO HEAR THEM WITHOUT EVEN A HEARING, AS OPPOSED TO THIS GOING BEFORE A BOARD. I'M NOT EVEN SURE UNDER STATE LAW YOU CAN DO THAT. FOR EXAMPLE, YOUR CODE ENFORCEMENT HEARING, YOU GET 21 DAYS TO RESPOND TO A CODE ENFORCEMENT VIOLATION. WHY SHOULD THE FIRE VIOLATION BE TREATED ANY DIFFERENTLY THAN CODE VIOLATIONS? THEY SHOULDN'T BE. SO I THINK YOU NEED TO REALLY THINK ABOUT ALL OF WHAT YOU ARE DOING HERE. BECAUSE PEOPLE DON'T KNOW ABOUT THE COSTS OF THIS. PEOPLE HAVE THROWN OUT VARIOUS COSTS, WELL $2,000, MAYBE $3,000-$5,000. THIS IS IN THE TENS OF THOUSANDS OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DOLLARS FOR MANY PEOPLE. THAT'S A LOT OF PEOPLE. YOU DON'T HAVE ANALYSIS, JUST HOW IT WILL IMPACT NEW HOUSING. HOW MANY NEW HOUSES ARE GOING TO GET BUILT IN THE HILLS? HOW MANY IS THAT GOING TO IMPACT? IT'S NOT. WHAT YOU NEED TO DO IS THE COST FOR AVERAGE PEOPLE OUT THERE WITH THEIR HOMES FOR SENIORS AND OTHERS WHO ARE GOING TO HAVE TO PAY FOR ALL THESE IMPROVEMENTS. BE HONEST WITH THEM. BE OPEN WITH THEM. TELL THEM THIS IS GOING TO BE COSTLY AND THEN TRY TO FIND THE MONEY TO DO IT. YOU CAN'T FIGURE OUT HOW MUCH MONEY YOU WILL NEED UNTIL YOU LOOK HOW MANY PEOPLE NEED IT AND HOW MUCH MONEY THEY WILL HAVE TO SPEND.

>> MAYOR ISHII: THANK YOU.

>> I'M SORRY.

>> MAYOR ISHII: YOUR TIME IS UP; I'M BEING STRICT WITH THE COMMENTS.

>> ONE PERSON IS GIVING YOU ANOTHER MINUTE AND A HALF. THAT IS YOUR THIRD PERSON.

>> I'M NOT SURE I REALLY NEED IT. OKAY. I DO WANT TO SAY, I DID WANT TO SAY MORE OR LESS IN CLOSING, LOOK, IT IS NOT WEAKNESS TO PUT THIS VOTE OFF. TO PUT THIS VOTE OFF IS SHOWING YOU THAT YOU HAVE STRENGTH THAT YOU WANT TO RESPECT THE COMMUNITY. THAT YOU WANT TO RESPECT THE PEOPLE WHO HAVE ISSUES WITH THIS. I LIKE A LOT OF WHAT COUNCILMEMBER BLACKABY PUT IN HIS RESOLUTION, BUT IT NEEDS TO BE WORKED ON FIRST AND NEEDS TO BE ON ANYTHING BEFORE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

YOU ADOPT IT. NOT WAIT, NOT ADOPT SOMETHING THAT PEOPLE KNOW ARE UNHAPPY AND KNOW IT'S FLAWED AND GO FORWARD WITH IT. IT'S NOT WEAKNESS, IT'S A SIGN OF LEADERSHIP AND WISDOM AND COMMITMENT TO THE COMMUNITY. TO PUT THIS OFF AND DO IT WHEN YOU'VE GOT MORE PEOPLE ONBOARD, AND WHEN YOU'VE GOT AN ORDINANCE PEOPLE CAN RESPECT AND FEEL GOOD ABOUT. BECAUSE RIGHT NOW, A LOT OF PEOPLE DON'T FEEL GOOD ABOUT THIS. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: GO AHEAD.

>> HELLO, I WANT TO SAY ITS PAINFULLY OBVIOUS, JUDGING BY THE LOOKS OF DISGUST ON MANY OF YOUR FACES WHILE PEOPLE ARE UP HERE TALKING ABOUT IT, ESPECIALLY THE MAYOR AND MR. BLACKABY WHICH I'M DISAPPOINTED SINCE I VOTED FOR YOU. THEY AREN'T BEING HEARD WITH AN OPEN MIND, DISMISSIVE BODY LANGUAGE, LACK OF ENGAGEMENT, THE LOOKS ON YOUR FACE, LIKE MAYOR RIGHT NOW. NO MATTER WHAT HAPPENS TONIGHT YOU HAVE ALREADY MADE YOUR DECISION, YOU WILL MOVE FORWARD WITH THE VOTE THE WAY YOU WANT IT AND MAYBE ANY BACK DOOR AGREEMENTS WITH THE FIRE DEPARTMENT. YOU HAVE ALREADY MADE UP YOUR MINDS, VOICES CH CONSTITUENTS, THE PEOPLE THAT ELECTED YOU THAT YOU REPRESENT DON'T MATTER AT ALL. THIS PROCESS RIGHT NOW IS A FORMALITY. BUT IF YOU ARE DETERMINED TO PUSH EMBER THROUGH REGARDLESS OF PUBLIC CONCERN, AT THE VERY LEAST WE DEMAND ACCOUNTABILITY FOR SAFETY, COMPREHENSIVE EMERGENCY ESCAPE PLAN IN CASE OF A WILDFIRE FOR PEOPLE LIVING IN THE HILLS.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ADDITIONALLY AN INDEPENDENT REPORT VERIFYING THE AGING WATER INFRASTRUCTURE IN THE HILLS IS CAPABLE OF HANDLING THE PRESSURE AND VOLUME NEEDED IN CASE THERE'S A LARGE FIRE, IF YOU GREEN LIGHT EMBER, PUT IN WRITING YOU KNOW THE WATER PIPES CAN HANDLE THE LOAD WHEN IT WILL BE NEEDED MOST. THAT'S IT.

>> MAYOR ISHII: I HAVE A HORRIBLE HEADACHE. SO YOU WILL EXCUSE ME IF I'M NOT SMILING, BUT I AM LISTENING. I'M HERE. I'M LISTENING. I WANT TO HEAR YOUR COMMENTS. WE ARE TAKING THEM SERIOUSLY, GO AHEAD.

>> THANK YOU. MY NAME IS CHRIS SOLOMON, I LIVE ON GRIZZLY PEEK, FOR 35 YEARS AND BERKELEY FOR 55 SOME. I'M HERE TO SUPPORT ALL THREE OF THESE ITEMS BEFORE YOU TONIGHT. I WANT TO MAKE SURE THAT FOR ALL OF US, WHETHER WE SUPPORT OR NOT, IT'S PAINFUL. WE HAVE PLANTINGS IN OUR YARD THAT ARE GOING ON 70 YEARS OLD AND SHAPING AND CHANGING WILL BE DIFFICULT. WE ARE NOT LOOKING FORWARD TO IT. AND YES, THE PROPOSALS THEY ARE NOT PERFECT. AND THE WOMAN BEFORE SAID DON'T LET PERFECT BE THE ENEMY OF GOOD. BUT I THINK THERE ARE FORCES LARGER THAN OURS AND THAT IS CLIMATE CHANGE. IT'S UNFORTUNATE, IT'S A REALITY, IT'S ACCELERATING THE RISK OF WILDFIRE AND THE RISK OF EMBER FIRE AND THEN IN TURN IT'S ACCELERATING THE RISK OF STRUCTURE FIRES WHICH COULD PUT ALL OF BERKELEY AT RISK. MOVING NOW, MOVING AHEAD, SEEMS PROPORTIONATE TO THE URGENCY OF CLIMATE CHANGE AND ALSO TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE MAGNITUDE OF THE RISK THAT WE FACE. SO I APPLAUD ALL OF YOU ON THE COUNCIL, PARTICULARLY COUNCILMEMBER BLACKABY AND I PARTICULARLY WANT TO CALL OUT OUR FIRE DEPARTMENT FOR THEIR LEADERSHIP, SUPPORT, AND INSIGHT. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> HENRY DINERO BERKELEY FIRE SAFE COUNCIL, WE HAVE RECOMMENDED PASSAGE OF THIS TWICE IN WRITING. WE URGE YOU TO PASS IT TONIGHT. WE HAVE A YEAR TO MAKE ANY ADJUSTMENTS TO IT. WAITING ANOTHER SIX MONTHS OR A YEAR OR TWO YEARS FOR THE STATE TO GET ITS ACT TOGETHER WOULD BE A TRAGIC MISTAKE. I TOURED TRAGIC ALTADENA LAST SATURDAY, AN AREA TWO THIRDS OF THE SIZE OF BERKELEY BURNED. SEVERAL HAD ALL THE TREES INTACT BUT THE HOUSES WERE GONE AS IF THEY WERE PLUCKED OUT BY HELICOPTER. THE ONLY WAY THIS COULD HAPPEN IS EMBERS GETTING INSIDE, OR VEGETATION BURNING AGAINST THE HOUSE. THERE WAS NO WALL OF FIRE. AND THESE WERE NOT STRUCTURE TO STRUCTURE FIRES, THEY WERE TOO FAR SPACED, THE TREES WERE NOT BURNED. ALSO EXAMPLES OF INDIVIDUAL HOUSES IN GROUP THAT DID NOT BURN. THESE PROPERTIES WERE TIDY. I CAN'T TELL YOU THEY HAD SCREEN ON THEIR GUTTERS BUT THEY DIDN'T HAVE A BUNCH OF VEGETATION NEAR THE HOUSE. WE NEED TO REMOVE THE VEGETATION CLOSE TO OUR HOMES AND SCREEN OUR VENTS AND GUTTERS ASSUMING WE ALREADY HAVE A CLASS-A ROOF. AND YES, THE EUCALYPTUS GROWS AMONG US THAT ARE MASSIVELY EVOLVE TODAY CAST MASSIVE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AMOUNTS OF EMBERS IN THE WIND NEEDS TO BE DEALT WITH AS WELL. SOMEBODY GAVE ME ANOTHER MINUTE.

>> MAYOR ISHII: OKAY.

>> WE ARE NOT DOOMED BUT WE HAVE A LOT OF WORK TO DO. AND WE WILL NEED HELP AND HOPEFULLY IN THE NEXT FEW MONTHS WE WILL HAVE TIME TO GARNER MORE HELP. I WILL SAY ONE MORE THING. WE HAVE ONE OF THE WORLD'S LEADING EXPERTS IN FIRE SCIENCE AT U.C. BERKELEY, PROFESSOR MICHAEL GOLDNER, HE HAS OPINED EXTENSIVELY ON THE VARIOUS ARTICLES WRITTEN AND PUBLISHED IN THE L.A. TIMES PEOPLE WHO HAVE TESTIFIED AT THE BOARD OF FORESTRY, VARIOUS SOURCES. HE AGREES WITH THIS ASSESSMENT. WE NEED TO REMOVE THE VEGETATION FROM AGAINST THE HOUSES, WE NEED TO HARDEN THE HOMES PRIMARILY SCREENING VENTS AND GUTTERS AND EUCALYPTUS GROWS ARE A PROBLEM, YES IN THE PARK BUT WE CAN'T MAKE THEM CLEAN THEM UP OR REMOVE THEM. THEY ARE SPENDING MONEY THERE; WE HAVE TO TAKE CARE OF OUR OWN CITY FIRST. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING MY NAME IS ISABELLA GLASTONE, I LIVE ACROSS FROM TILDEN PARK ON WILDCAT CANYON ROAD. THIS IS THE FRONT LINE OF THE FRONT LINE. THANK YOU FOR THIS ISSUE, SPECIAL THANK YOU TO COUNCILMEMBER BLACKABY, MAYOR, O'KEEFE AND BLACKABY AND HUMBERT. THANK YOU TO CHIEF SPRAGUE. TONIGHT YOU WILL TAKE A VOTE THAT COULD DEFINE YOUR POLITICAL CAREERS. IT'S A HISTORICAL MOMENT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOR BERKELEY. NONE OF THE NAYSAYERS HAVE COME UP WITH A CREDIBLE ALTERNATIVE TONIGHT TO EMBER. BUT THEY TO A SUPERB JOB IN RECYCLING UNSCIENTIFIC COMPLAINTS THAT HAVE BEEN ADDRESSED MANY TIMES OVER. TOMORROW MORNING WILL BE A NEW DAY IN BERKELEY. WE EITHER START WORK ON ZONE ZERO IN EARNEST, OR WE SPEND THE NEXT FEW YEARS UNTIL THE STATE'S LAW GOES INTO EFFECT, PRAYING THAT OUR BEAUTIFUL CITY WON'T BURN DOWN EVERY TIME THE WIND GUSTS, THE HUMIDITY DROPS, AND THE TEMPERATURES SOAR.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU. [APPLAUSE]

>> GOOD EVENING, MAYOR AND CITY COUNCIL, MY NAME IS STEVE ROWI, I LIVE ON WILDCAT CANYON, I'M A STRONG SUPPORTER OF EMBER BECAUSE THE SCIENCE IS SOUND. WILDFIRE DUE TO CLIMATE CHANGE IS A REAL THREAT TO BERKELEY. WE HAVE KNOWN THIS FOR DECADES. I BELIEVE WE CAN PROTECT OUR HOMES AND THE CITY OF BERKELEY FROM WILDFIRE BUT ONLY IF EMBER PASSES AND TIME IS OF THE ESSENCE. AND I'M VERY TIS APPOINTED WITH THE DISINFORMATION CAMPAIGN ON NEXT DOOR. EMBER IS THE ANSWER, PLEASE VOTE YES.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HI, I'M RUTH AARON KRANTZ, I LIVE AT 9638 KEELER AVENUE. WHEN A SYSTEM HAS A MAJOR CATASTROPHIC FAILURE, ENGINEERS SAY IT WASN'T ONE THING THAT WENT WRONG. IT WAS MANY, MANY THINGS. OUR FIRE DEPARTMENT IS ASKING THE COUNCIL AND COMMUNITY TO TAKE ACTION TO PREVENT A DEVASTATING FIRE AND LOSS OF LIFE. AFTER THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FIRE COMES, THERE WILL BE A POSTMORTEM, LACK OF ACCESS TO HOMEOWNERS INSURANCE, EAST BAY REGIONAL PARK DISTRICTS HISTORIC POOR FIRE MANAGEMENT PRACTICES, PG&E'S LACK OF INVESTMENT IN UNDERGROUNDING, CALFIRE BEING SLOW TO ACT ON NEWSOM'S DIRECTION FOR STRICTER FIRE REGULATIONS WILL ALL BE DISCUSSED AD NAUSEAM. PACIFIC PALISADES AND ALTADENA WISHED THEY HAD THE GUIDANCE OUR FIRE DEPARTMENT IS GIVING OUR CITY. PLEASE BE PROACTIVE. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> SHE IS YIELDING TO ME.

>> MAYOR ISHII: SURE. THREE MINUTES.

>> MY NAME IS ERIC WEAVER, I LIVE ON CRESTON ROAD, FOR MORE THAN 30 YEARS, I THINK THERE'S A FEW ASPECTS OF REALITY ON THE GROUND THAT WE NEED TO TALK ABOUT HERE. THE OPPONENTS TALK ABOUT WATER-FILLED PLANTS, WELL-MAINTAINED YARDS. I WALK MY DOG EVERY DAY IN THAT NEIGHBORHOOD. 80% OF THE YARDS ARE OVERGROWN, POORLY MAINTAINED, FULL OF DEAD WEEDS, FULL OF LEAVES. THAT'S REALITY #ONE. REALITY #2, THERE HAVE BEEN FOUR FIRE INCIDENTS. ON SOUTH PARK THERE WAS A FIRE AND IT REQUIRED 50 FIREFIGHTERS AND A HELICOPTER TRANSPORTING WATER FROM LAKE ANZA TO PUT IT OUT. THERE WAS THE INCIDENT LAST YEAR AT INSPIRATION POINT. I WAS RIDING MY BIKE; THERE WERE 20 FIRE VEHICLES FROM CALFIRE THERE. THERE WAS A WIRE DOWN AT THE MERRY-GO-ROUND. IT'S ONLY BECAUSE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NEIGHBORS SMELLED THE SMOKE AND REPORTED TO THE FIRE DEPARTMENT THAT WAS DEALT WITH. OF COURSE EVERYONE KNOWS THERE WAS A FIRE ON SUMMIT THAT ONLY BY A MIRACLE WAS PUT OUT. WE ARE LIVING ON BORROWED TIME HERE. THE THIRD THING THAT IS IMPORTANT TO KEEP IN MIND IS THAT THE CITY HAS BEEN ASKING FOR VOLUNTARY COMPLIANCE WITH FIRE-SAFE YARD PRACTICES SINCE 2009. THE LAST TIME I SPOKE HERE; I TALKED ABOUT OUR EARTHQUAKE SAFETY COMMITTEE. WE GOT A MEMO FROM THE CITY IN 2009 TELLING US WE NEEDED TO WORK ON DEFENSIBLE SPACE. PEOPLE HAVE HAD MORE THAN 15 YEARS TO VOLUNTARILY WORK ON DEFENSIBLE SPACE. I WILL ADMIT I DIDN'T PAY ANY ATTENTION TO IT EITHER, BUT I AM NOW. FINALLY, ALL OF THESE CATASTROPHIC ARGUMENTS ABOUT LANDSLIDES AND EVERYTHING, WE ARE TALKING ABOUT FIVE FEET AROUND THE HOUSES. PEOPLE TALK ABOUT STRIPPING YARDS BARE, SCRAPING YARDS, THAT'S NOT WHAT WE ARE TALKING ABOUT. WE ARE TALKING ABOUT FIVE FEET AROUND HOUSES. IT'S A VERY LIMITED BUT VERY SENSIBLE AND SCIENCE-SUPPORTED PROPOSAL. THE CITY NEEDS TO TAKE THESE STEPS, NOT ONLY FOR THE PEOPLE WHO LIVE IN OUR NEIGHBORHOOD BUT FOR THE WHOLE CITY. BECAUSE THE FIRE THAT STARTS IN TILDEN AND BLOWS THROUGH OUR NEIGHBORHOOD WILL END UP DOWN IN DOWNTOWN BERKELEY. SO IT'S IN THE BENEFIT OF EVERYONE IN THIS CITY THAT ALL THREE OF THESE ITEMS BE PASSED TONIGHT. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> HI, GOOD EVENING, MY NAME IS BRONYA FELDMAN, I LIVE ON KEELER AVENUE. I'M A STRONG PROPONENT OF EMBER. I LIVE IN A WOOD SHINGLED HOUSE. I DON'T HAVE THE MONEY TO CHANGE THE SIDING. I AM WORKING ON DEFENSIBLE SPACE. THAT DOES MAKE SENSE TO ME, THE SCIENCE MAKES SENSE TO ME AND GLOBAL WARMING IS SOMETHING THAT I BELIEVE IS ACTUALLY HAPPENING. I DON'T WANT TO END UP LIKE THE PACIFIC PALISADES OR ALTA DENA. I SEE THIS AS AN EXTREMELY CRITICAL THING TO SAVING MY HOME. IF IT CAN BE SAVED. AND I SUPPORT EMBER, PLEASE VOTE FOR THAT. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. LET ME JUST CHECK IN WITH COUNCIL. HOW ARE YOU ALL TOING? I WAS HOPING TO GET THROUGH THE REST OF THE IN-PERSON COMMENTS BEFORE TAKING ANOTHER BREAK. IS THAT OKAY? ALL RIGHT, THANKS.

>> HI MY NAME IS JANICE MORATA, BERKELEY IS MY HOMETOWN, I LIVE IN THE FLATS, MY SISTER LIVES IN PASADENA, SHE DID THE KIND OF HOME HARDENING BEING SUGGESTED SHE EVEN HAD THE VENTS WHEN THEY GOT HEATED THEY MELTED CLOSED. HER HOUSE IS STANDING, HER NEIGHBOR'S HOUSE BURNT TO THE GROUND, ON THE OTHER SIDE WHERE THEY TOOK CARE OF HOME HARDENING, SHE CLEARED OUT THE VEGETATION, THOSE TWO HOUSES ARE FINE BUT THE ONE BEHIND IS NOW A TOXIC WASTE DUMP AND THE ARMY CORPS OF ENGINEERS IS GOING TO CLEAN THAT UP. THIS IS PREVENTION. IT'S ALWAYS BETTER TO PREVENT RATHER THAN TO TRY TO CLEAN UP AFTER THE FACT. ANYWAY, I DO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THINK THAT THE BURDEN OF THE FINANCES REQUIRED ARE UNFAIRLY, YOU ARE SAVING MY HOUSE AS WELL AS YOUR OWN, AND I KNOW THAT IT'S EXPENSIVE TO DO THIS, I WOULD LIKE US TO TRY TO DO WHATEVER WE CAN TO SHARE THAT FINANCIAL RISK. BUT I THINK THERE'S NO QUESTION, WE HAVE TO DO THIS. IT'S JUST COMMON SENSE. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING, COUNCILMEMBERS. MY NAME IS MEG STEDLACK, I HAVE LIVED IN THE BERKELEY HILLS OVER 30 YEARS, I LOVE THE PROXIMITY TO THE PARK, NEIGHBORHOODS, THE FOG, THE COMMUNITY. WE HEARD A LOT ABOUT EMBER, A LOT OF REALLY GOOD SCIENCE. ONE THING THAT SEEMS TO BE A STICKING POINT IS THE CHANGES THAT IT WOULD REQUIRE. I APPRECIATE HOW DIFFICULT CHANGE CAN BE. I MYSELF STRUGGLED WITH THIS, AS THE GENTLEMAN SAID WE HEARD ABOUT HOME HARDENING AND ZONE ZERO. TRUTH BE TOLD I WAS IN A LITTLE BIT OF DENIAL MODE UNTIL ABOUT THREE YEARS AGO WHEN MY BROTHER WHO LIVES IN THE HILLS OF SAN JOSE WAS EVACUATED FROM HIS HOUSE, FIRE BURNED WITHIN 100 FEET OF HIS HOUSE. CALFIRE DID AN AMAZING JOB OF PROTECTING THE HOUSE AND THE STRUCTURE REMAINS. BUT THAT WAS, FOR ME, A WAKE-UP CALL AND MADE ME REALIZE I NEEDED TO DO SOMETHING. SO IT SCARED ME, BOTH FOR MY BROTHER AND HIS FAMILY AS WELL AS RECOGNIZING THAT THE SAN JOSE HILLS ARE VERY SIMILAR TO THE BERKELEY HILLS HERE. SO IN TALKING TO HIM, COUNCILMEMBER

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BLACKABY, THE INCREDIBLE BERKELEY FIRE TENT AND READING THE SCIENTIFIC LITERATURE, I REALIZE THAT WE CAN DO SOMETHING TO KEEP OURSELVES SAFE AND TO CONTINUE TO LIVE IN THE PLACE THAT WE LOVE. THE WILDFIRE SCIENCE HAS PROVEN IF WE HARDEN OUR HOMES AND IMPLEMENT ZONE ZERO WE CAN CONTINUE TO LIVE IN THE WILDFIRE URBAN INTERFACE. BUT WE NEED TO MAKE THE CHANGES NOW. I STRONGLY ENCOURAGE THE COUNCIL TO ADOPT EMBER AND I WOULD LIKE TO THANK ALL OF YOU FOR ALL YOUR HARD WORK.

>> MAYOR ISHII: THANK YOU. THANKS VERY MUCH. [APPLAUSE]

>> GOOD EVENING, MY NAME IS DAVID STEAD LACK, I LIVE IN GRIZZLY PEEK FOR OVER 30 YEARS. I WANT TO FIRST OF ALL EXPRESS MY APPRECIATION TO BFD AND COUNCILMEMBER BLACKABY FOR THEIR HARD WORK ON THIS PROGRAM. I HAVE WAITED FOR 30 YEARS TO TAKE A HIGH-SPEED RAIL TO SOUTHERN CALIFORNIA. I HAVE WAITED FOR 20 YEARS FOR IT TO BECOME, US TO SOLVE THE HOUSING PROBLEM SO MY KIDS COULD AFFORD TO LIVE IN CALIFORNIA. I DON'T THINK I SHOULD WAIT FOR THE STATE TO FIGURE OUT HOW TO MAKE THE EMBER PROGRAM OR ZONE ZERO WORK. I HAVE SEEN WHAT THE STATE IS GOOD AT AND WHAT THE STATE IS NOT GOOD AT. I RESPECT MY NEIGHBORS AND THEIR DESIRE TO GET IT RIGHT BY THINKING ABOUT WHAT KINDS OF PLANTS WE SHOULD BE ALLOWED TO GROW NEAR OUR HOMES BUT I LIVE IN THE PRACTICAL WORLD. I DON'T THINK OUR FIRE DEPARTMENT INSPECTORS OR ANYONE ELSE WILL BE GOING AND LOOKING AT MICROSCOPIC LEVELS OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DETAIL AT WHAT KINDS OF PLANTS PEOPLE ARE GROWING NEAR THEIR HOMES. I THINK THEY WILL RELY UPON CITIZENS TO DO THIS AND IT WILL REQUIRE US TO TAKE MANY MAYBE SURGICAL APPROACH AND MORE PRAGMATIC VIEW, WE HEARD AND KNOW THE SCIENCE, IF WE CLEAR OUT THE AREA WITHIN FIVE FEET OF OUR HOMES WE WILL DRASTICALLY REDUCE THE RISK. THAT'S WHAT YOU HAVE TO DO IN A TIME OF EMERGENCY. SO THANK YOU FOR YOUR HARD WORK. THANK YOU FOR EMBER. AND LET'S GO FORWARD, BERKELEY.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> GOOD EVENING. MY NAME IS JEAN LUC, I LIVE ON GRIZZLY PEEK, I WANT TO THANK YOU FOR GIVING US THE OPPORTUNITY TO EXPRESS CONCERNS ABOUT THE EMBER PROPOSAL. I HAVE TO ADMIT THAT FOR ME, FRANKLY -- OOPS, MOVING THE PODIUM HERE. I'M A BIT PUZZLED, WHY A CITY, WHICH IS LOOKING AT A $27 MILLION DEFICIT WOULD WANT TO CONTINUE TO SQUANDER TIME, RESOURCES AND MONEY ON A PROPOSAL THAT WILL MORE LIKELY THAN NOT MIRROR 95% OF THE PROPOSAL WHICH THE STATE IS CURRENTLY IN THE PROCESS OF FORMULATING. SO MY REQUEST TO YOU IS LET US WAIT FOR THE STATE. THE STATE HAS THE RESOURCES. THE STATE HAS THE KNOW-HOW. I SUSPECT THEY HAVE MORE KNOW-HOW THAN OUR FIRE DEPARTMENT HERE, OKAY? SO AGAIN, LET US WAIT FOR THE STATE. I THINK MORE IMPORTANTLY, LET US ADOPT WHAT THE STATE IS PROPOSING. WHICH IS A THREE-YEAR COMPLIANCE PERIOD. OKAY? I THINK IT'S CRIMINAL THAT WE ARE ASKING BERKELEY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RESIDENTS UP IN THE HILLS TO GO AHEAD WITHIN A MATTER OF 12 MONTHS, CONTACT CONTRACTORS, IT IS GOING TO BE A HANDFUL. PARTICULARLY IF YOU WANT TO INSTALL METAL FENCES, METAL GATES. I'M ALMOST AT THE END HERE, PLEASE, WAIT FOR THE STATE.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANKS FOR YOUR COMMENT.

>> I'M SUSAN NUNEZ VADLY, I'M WITH THE TAMIL PAEZ FIRE PREVENTION COMMUNITY, TWO. I AM A SUPPORTER OF THIS PROGRAM AND I'M HOPING THAT THESE MEASURES AREN'T SUBJECT TO DEATH BY A THOUSAND CUTS. BUT WHAT I HOPE YOU'LL CONSIDER BECAUSE YOU HAVE HAD A LOT OF THE SCIENCE IN FRONT OF YOU, I HOPE YOU CONSIDER THE POTENTIAL FOR IT TO BUILD A STRONGER COMMUNITY. PEOPLE RIGHT NOW MAY NOT AGREE BUT THE PRINCIPLE OF BUILDING COMMUNITY IS WHAT DRIVES FIRE WISE. I KNOW IT WORKS. AND WHAT I SEE IN THIS EMBER IS AN OPPORTUNITY FOR PEOPLE TO WORK TOGETHER, SUPPORTED BY THE CITY TO PRESERVE THE GREEN CHARACTER OF OUR COMMUNITY AND NEIGHBORHOODS WHILE MITIGATING THE RISKS TO OUR INDIVIDUAL HOMES. BECAUSE WE NEED THE NEIGHBORHOODS TO BE WHAT, 80-85% COMPLIANT. WHICH MEANS WE HAVE TO FIND WAYS TO WORK TOGETHER. AND IF WE DO WE HAVE A GOOD CHANCE OF PREVENTING WHAT HAPPENED TO LA HEINA AND ALTADENA AND THE PALISADES SO I URGE YOU TO PASS THESE MEASURES. THANK YOU.

>> MAYOR ISHII: THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> GOOD EVENING, I'M A RESIDENT OF GRIZZLY PEAK BOULEVARD SO I'M WELL AWARE OF THE DANGERS WILDFIRE URBAN INTERFACE POSES FOR OUR NEIGHBORHOOD AND FRANKLY FOR THE ENTIRE CITY OF BERKELEY AND BEYOND. I WANTED TO BRING TO YOUR ATTENTION THE FACT THAT I'M AN ACTIVE MEMBER OF THE CRESTON FIRE WISE GROUP. AND ONE OF THE MEASURES OUR GROUP HAS TAKEN IS TO COMMIT TO HELPING OUR NEIGHBORS WITH THESE MITIGATION MEASURES. WE RECOGNIZE THAT NOT ALL OF OUR NEIGHBORS ARE IN A POSITION TO UNDERTAKE THIS WORK. AND SO WE ARE COMMITTED TO HELPING OUR NEIGHBORS AND VEGETATION MANAGEMENT ISN'T THE ONLY STEP THAT NEEDS TO BE TAKEN. CLEARLY WE HEARD ABOUT HOME HARDENING MEASURES THAT I HOPE WILL BE IMPLEMENTED AT SOME POINT. ISSUES AROUND PARKING AND EVACUATION ARE KEY COMPONENTS TO A WILDFIRE MITIGATION PLAN. AS WELL AS CALLING OTHER AGENCIES, EAST BAY MUD, THE PARK DISTRICT, TO DO THEIR PART IN TAKING CARE OF THE PROBLEM. SO I SUPPORT EMBER, THANK YOU VERY MUCH FOR YOUR WORK. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> WHAT THE LAST TWO WOMEN SAID IS A REASON NOT TO DO EMBER. YOU GOT TO CONTACT ALL THESE OTHER AGENCIES. TILDEN IS THE FIRE BREAK. NOT THE HOMES UP IN THE HILLS. AND WE'VE GOT TO WORK TOGETHER. SO LET'S DO THAT FROM THE GROUNDS. LET'S START BEFORE APRIL 15TH WHEN YOU GUYS VOTED THE FIRST TIME WITHOUT KNOWING A WHOLE LOT ABOUT THIS. I'M NOT THE ELOQUENT GUY IN THE ROOM,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CHIEF SPRAGUE AND I HAVE BEEN HERE FOR THREE GENERATIONS NOW THERE'S A NEW GUY, YOU ARE GOING TO CHARGE FOR ADVENTURE PLAYGROUND TO PAY FOR A NEW ASSISTANT CHIEF SALARY. WE DON'T NEED A NEW CHIEF; WE GOT A GOOD ONE. HOW ABOUT PROMOTING FROM WITHIN? SO WHO HAVE YOU HEARD FROM? I'M NOT THE ELOQUENT ONE. DAVID RICHARD WENT TO SACRAMENTO YESTERDAY. THERE ARE 276 PLANTS THAT ANAHEIM THINKS ARE GOOD NEAR A HOUSE. PETER WIENER SPOKE PRETTY ELOQUENTLY ABOUT CEQA. I HOPE YOU WERE LISTENING. RICHARD ILGIN, YEAH. I'M NOT LETTING ANYBODY INSPECT MY PROPERTY, GO GET A WARRANT. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. PLEASE?

>> IT'S ME AGAIN. AND I'M GOING TO SPEAK TO THE PROCESS. BECAUSE I THINK THE PROCESS HAS BEEN AWFUL AND SLOPPY. I'M NOT SAYING HARD WORK HAS NOT BEEN DONE BY SOME PEOPLE. BUT I WENT TO THE WORKSHOP ON MAY 27TH, THERE WAS NO ONE IN THAT WORKSHOP PANEL SPEAKING TO PAUSE OR TO ADDRESS RESEARCH THAT IS EQUIVOCAL OR ANYTHING. IT WAS STRAIGHT OUT, WE ARE GIVING YOU THIS INFORMATION, THEN WE EACH GOT ONE MINUTE TO SPEAK. ONCE AGAIN, ONE MINUTE TO SPEAK. AND THEN THE MEETING WAS INTERRUPTED TO HEAR FROM THREE HOMEOWNERS. I FEEL THIS HAS BEEN A FARCE. I'M A FORMER PUBLIC INTEREST LAWYER AS WELL. AND I'M REALLY, REALLY APPALLED. I'M ASHAMED THAT THIS IS WHAT IS GOING ON IN BERKELEY, OKAY. YOU HAVE HEARD FROM SO MANY KNOWLEDGEABLE PEOPLE THIS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EVENING WHO ARE QUESTIONING THINGS. WE ARE NOT NAYSAYERS. WE ARE JUST SAYING DO THE RIGHT THING AND DO IT THE RIGHT WAY. AND YOU'RE NOT DOING IT THAT WAY. EVEN YOU, MS. MAYOR, WHEN TIME IS UP, YOU SAY SORRY TO THE PEOPLE SPEAKING FOR EMBER, BUT NOT FOR PEOPLE LIKE ME, GO LISTEN TO YOUR COMMENTS. HEAR WHAT YOU SAID EARLIER ABOUT APPROVING THIS TONIGHT. I FEEL YOU WALKED IN HERE FROM THE GET-GO, GOING TO RUBBER STAMP THIS. AND YOU DON'T WANT THAT TO BE YOUR LEGACY.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> THANK YOU. HI. MY NAME IS MICHEL, CEO OF HEALTH BERKELEY.ORG. A LOT OF PEOPLE COVERED MANY POINTS ALREADY AND I'M GOING TO FOCUS MY REMARKS ON A CERTAIN NUMBER OF ISSUES THAT HAVE BEEN MENTIONED BY OTHER SPEAKERS. ONE OF THE SPEAKERS DISCUSSED HIGH HUMIDITY PLANTS AND THEIR PROTECTIVE EFFECT. WEIRDLY, I RECEIVED A MESSAGE FROM PROFESSOR GOLNAR MENTIONED BY HENRY DINERO DURING THIS MEETING DISCUSSING HIGHER MUSTER CONTENT PLANTS. HE WRITES EXPOSURE IN DENSE URBAN NEIGHBORHOODS HOUSE TO HOUSE UNDER HIGH WINDS LIKE BERKELEY WOULD HIGH ENOUGH TO IGNITE THEM, SORRY, THIS IS TOTALLY CONTRADICTING WHAT THE BOTANICAL PERSON WAS TALKING ABOUT. DAVID RICHARD DISCUSSED THE FACT HE ATTENDED THE ZONE ZERO WORKSHOP AT THE STATE YESTERDAY. IN FACT, AN ASSOCIATE OF MINE AND I HAVE BEEN ATTENDING EVERY SINGLE WORKSHOP ALL THE WAY THROUGH BETWEEN THE TWO OF US. AMONG ALL OF THESE WORKSHOPS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EVERY SINGLE WILDFIRE SCIENTIST, BUT ONE HAS SUPPORTED THE STRICT IMPLEMENTATION OF ZONE ZERO AND EVERY SINGLE FIRE FIGHTING UNIT THAT HAS BEEN PROVIDING TESTIMONY IN THESE WORKSHOPS HAS ALSO SUPPORTED STRICT INTERPRETATION OF ZONE ZERO. I'M REALLY SORRY, BUT I GET VERY DIFFERENT IMPRESSION OF THE ZONE ZERO WORKSHOPS AND WHAT THEY THINK ABOUT ZONE ZERO. IN 2020, THE DAY OF THE SHELTER IN PLACE ORDER, MY NEIGHBORS AND I GOT TOGETHER AND PUT TOGETHER A NONPROFIT THAT GATHERED MORE THAN 400 VOLUNTEERS THAT DISTRIBUTED HUNDREDS OF THOUSANDS OF FREE MEALS ACROSS BERKELEY. WEIRDLY, WE THOUGHT IT WAS GOING FO BE A THREE-MONTH PROCESS, WE ARE STILL DISTRIBUTING 10,000-15,000 MEALS PER YEAR. THESE ARE MANY OF WHICH ARE THE PEOPLE WHO ARE IN THESE NEIGHBORHOODS THERE. LAST SUMMER WE ORGANIZED AGAIN AROUND FIRE. MANY OF THE SAME PEOPLE. WE ORGANIZED THE FIRE-WISE NEIGHBORHOOD THAT IN APRIL PUT TOGETHER MASSIVE CLEAN-UP, ALL VOLUNTEER, ALL SELF-FINANCED WHERE WE CLEARED ABOUT 250 LINEAR YARDS OF GRIZZLY PEAK ALL THE WAY UP TO CRESTON. SO WE CAN DO A LOT WITHOUT YOUR HELP. BUT THERE'S A COUPLE OF THINGS WE CAN'T DO, WE CAN'T GET THE 80-85 PERCENT COVERAGE THAT WE NEED TO BE ABLE TO GET THE SAFETY EFFECT FROM EMBER. AND WE ALSO CAN'T GET THE ENFORCEMENT. THE ENFORCEMENT ACCOUNTABILITY THAT BFD HAS, AND FOR THAT WE NEED YOU. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> I CEDE MY TIME.

>> THANK YOU.

>> MY NAME IS MARGARET -- I'VE BEEN IN COMMUNICATION WITH A NUMBER OF YOU. WHAT I'VE NOTICED IS THAT THE DISSENT HAS FALLEN ON DEAF EARS. THAT THE DEGREE TO WHICH ANY CONCESSIONS ARE MADE ARE PERFORMATIVE AND NOT SUBSTANTIVE. THAT I WAS DELIGHTED THAT ASSISTANT CHIEF WINIKER MENTIONED TONIGHT THAT THE SCIENCE IS, IN FACT, INCONCLUSIVE. AND COMING IN ALL THE TIME. AND FOR THIS, SO MANY PEOPLE IN THE STATE FEEL IT'S WORTH WAITING TO GET MORE INFORMATION. I'M UNCLEAR ABOUT THE EXPERTISE OF THIS COUNCIL THAT SEEMS TO BE THE HUBRIS TO BE SO RECKLESS TO MOVE FORWARD WHEN DATA IS COMING IN WEEKLY. THAT IS ANALYZING THE CONSEQUENCES OF THE FIRES IN SOUTHERN CALIFORNIA THAT HAD A PROFOUND IMPACT. THOSE COMMUNITIES ARE WAITING FOR THE ANALYSIS THAT IS COMING IN, IN REAL-TIME. THE DATA THAT WE ARE WORKING FROM IS EXTRAPOLATION AND NONE OF IT, AS ASSISTANT CHIEF WINIKER SAID CLEARLY TONIGHT, ACTUALLY MODELS OUR COMMUNITY. BERKELEY HILLS. OUR MARINE LAYER. WITHOUT HOME HARDENING, JUST ZONE ZERO ALONE. PLEASE DON'T BE RECKLESS. THERE IS TOO MUCH AT STAKE.

[APPLAUSE]

>> MAYOR ISHII: THANK YOU. FOLKS I WANT TO BE CLEAR WHO IS LEFT TO SPEAK. IS IT JUST THE TWO OF YOU? COULD YOU JUST RAISE YOUR HAND SO I CAN GET A SENSE, YOU DON'T HAVE TO STAND, I JUST WANT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TO UNDERSTAND WHO IS LEFT. SO THAT'S FOUR AFTER YOU, IS THAT RIGHT? AND FIVE. OKAY. SO THAT'S FIVE. TWO OR JUST ONE? JUST ONE, OKAY. GO AHEAD.

>> HI, MY NAME IS YEN TRACK, I LIVE IN THE PROPOSED ZONE FOUR. AND I AM HERE TO SUPPORT FULLY THE EMBER PROPOSAL. I WAS, YOU KNOW, WATCHING ALL THE FIRE NEWS OVER THE YEARS. AND ONE OF THE THINGS THAT JUST DIDN'T MAKE SENSE TO ME WHEN I SEE PEOPLE SORT OF FIGHTING THE FIRE, THEY WOULD SHOW IMAGES, RIGHT, WITH THE FIRE IN THE BACKGROUND AND FIREFIGHTERS KIND OF HOSING THESE LITTLE VEGETATION ON THE GROUND. I'M LIKE WHAT ARE THEY DOING? WHY AREN'T THEY FIGHTING THAT BIG FIRE? UNTIL I LEARNED. AND I HAVE BEEN TRYING TO STUDY WHAT IT IS THAT I CAN DO. BECAUSE I WANT TO FEEL A SENSE OF AGENCY. A SENSE OF CONTROL OVER WHAT I CAN DO TO MITIGATE FIRE RISK. SO I HAVE LEARNED ABOUT THE RISK OF THE LITTLE VEGETATION. I HAVE EVEN DONE THINGS IN MY GARDEN BECAUSE I HAVE A GARDEN FOR 24 YEARS IN THE HOME I'VE LIVED IN. I'VE BEEN PLANTING SUCCULENTS AND TRYING TO LIGHT THE TOP OF IT, IT DOESN'T WORK. BUT IF YOU GO UNDERNEATH WHERE THE DRIED LEAVES ARE, IT LIGHTS UP. AND THAT IS A DANGER OF HAVING VEGETATION NEAR YOUR HOME. THOSE THINGS WILL IGNITE. AND SO, YOU KNOW, THE SCIENCE IS CLEAR, IT'S CLEAR TO ME. PLEASE DON'T WAIT. IF YOU WAIT, OUR HOMES WILL BURN. MY INSURANCE IS ALREADY CANCELLED. MY NEIGHBORS INSURANCE ARE CANCELLED. SORRY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> CONTRARY TO WHAT THE PRECEDING SPEAKER SAID, THE SCIENCE IS BY NO MEANS CLEAR AND THE DISCUSSION OF FIRE SUPPRESSANT PLANTS TODAY WE DIDN'T GIVE YOU SOME INDICATION THE EMBER PROPOSALS ARE NOT BASED ON THE BEST AVAILABLE SCIENCE. FURTHERMORE, DON'T YOU SEE A GLARING CONTRADICTION BETWEEN 43C, WHICH ALLOWS FOR DISCUSSION OF WHAT VEGETATION IS APPROPRIATE, AND 43A, WHICH WOULD MANDATE COMPLETE REMOVAL OF VEGETATION? AND CONTRARY TO WHAT GOLFER HAS SAID REGARDING VEGETATION, PEOPLE WITH ORNAMENTAL BUSHES DO NOT LET THEM DRY OUT. IT WOULD BE ABSOLUTELY INCREDIBLE FOR THEM TO DRY OUT AS QUICKLY AS GOLNAR HAS SAID. IT'S RIDICULOUS. THERE'S CONSIDERABLE EVIDENCE FROM THE SYDNEY FIRES THAT FIRE RESISTANT AND IN PARTICULAR FIRE SUPPRESSIVE PLANTS CAN HAVE A PROTECTIVE EFFECT. YOU SHOULD CONSIDER IT RELATIVE TO THE PLANTS THAT SURROUND THEM WHEN YOU HAVE FIRE SUPPRESSIVE PLANTS THAT ARE ADJACENT TO HIGHLY FLAMMABLE DWELLINGS, SUCH AS THOSE WITH CEDAR SHINGLES, I LIVE IN ONE. IT WOULD BE A GRAVE MISTAKE TO FORCE REMOVAL OF THE FIRE SUPPRESSANT PLANTS. IT WOULD MAKE THE DWELLING FAR MORE VULNERABLE TO FIRE.

>> MAYOR ISHII: THANK YOU. SORRY, YOUR TIME IS UP. [APPLAUSE]

>> [OFF MIC]

>> MAYOR ISHII: OKAY, I'M SORRY, FOLKS JUST TO BE CLEAR, SO WHO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IS IT THAT'S GIVING TIME? OKAY, THANK YOU.

>> HOW LONG DOES THAT GIVE ME?

>> FOUR MINUTES.

>> MAYOR ISHII: FOUR.

>> ALL RIGHT.

>> MAYOR ISHII: FOUR AND A HALF.

>> WE HAVE HEARD A LOT OF PEOPLE TALKING ABOUT THE FIRE AGENCIES AND FIRE OFFICIALS AGREEING THAT ZONE ZERO, AS DESCRIBED IN EMBER IS WHAT WE NEED TO DO TO PROTECT OUR HOMES. I HAVE A STATEMENT FROM DON MCKENZIE; HE IS A FIRE SCIENTIST. HE SENT THIS BY EMAIL JUNE 15TH REGARDING THE EMBER AGENDA AT THE CITY COUNCIL MEETING TONIGHT. HE HAS A PH.D. IN WILDFIRE MODELING FROM UNIVERSITY OF WASHINGTON. HE IS A RESEARCH FIRE ECOLOGIST WITH THE U.S. FOREST SERVICE FROM 2001-2018. HE IS AN AFFILIATE FACULTY AT THE UNIVERSITY OF WASHINGTON 2002-PRESENT. I JUST WANT YOU TO KNOW THIS IS NOT SOMETHING THAT EVERYONE AGREES ABOUT AND THAT'S WHY THE STATE I WAS AT THE MEETING AS WELL. THAT'S WHY THEY ARE HAVING THESE DISCUSSIONS AND VERY THOUGHTFUL, VERY RESPECTFUL MEETING YESTERDAY. IT WAS QUITE LOVELY. BUT ANYWAY. WENT TO SACRAMENTO, HAD A GOOD TIME, WITH DAVID. BUT ANYWAY. THIS IS WHAT HE HAS TO SAY. IN A TYPICAL RESIDENTIAL AREA, REMOVING ALL VEGETATION FROM THE PERIMETER OF A STRUCTURE ACTUALLY REDUCES FIRE RESISTANCE. THIS MAY SEEM

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COUNTER INTUITIVE. BECAUSE WE THINK OF ALL VEGETATION AS BEING FLAMMABLE. SOME WIDELY CITED STANDARDS WERE DEVELOPED FOR THE WILDLAND URBAN INTERFACE. OTHERWISE KNOWN AS THE WUI. DWELLINGS INTERSPERSED WITH VEGETATION, OFTEN FLAMMABLE VEGETATION LIKE CALIFORNIA CHAPARRAL. SUCH MEASURES SHOULDN'T BE EXTRAPOLATED TO URBAN AREAS FOR EXAMPLE, BERKELEY HILLS GRIZZLY PEAK. IN THOSE AREAS SUITABLE VEGETATION CAN INCREASE FIRE RESISTANCE FOR TWO REASONS. FIRST DECIDUOUS BROAD LEAF TREES AND SHRUBS HAVE HIGH FOLIAGE MOISTURE WHICH WILL DAMPEN FIRE INTENSITY. SECOND THE THREE DIMENSIONAL SPACE SLOWS FIRE SPREAD. EVEN MORE SO IN THE WORST FIRE WEATHER. A FURTHER OBSERVATION THAT I HAVE IS THAT BY FAR THE MOST IMPORTANT ACTION TO IMPEDE FIRE SPREAD IN RESIDENTIAL AREAS IS TO MODIFY STRUCTURES. AND WE'VE ALL TALKED ABOUT THAT, WE ALL AGREE ON THAT. WE CAN ALL AGREE ON THAT. IN THE VARIOUS WAYS THAT CAN MAKE THEM FIRE RESISTANT. RESPECTFULLY SUBMITTED, DON MCKENZIE. SO THAT'S THE POINT I WANT TO BRING TO YOU. AND THAT'S THE POINT WE HAVE BEEN TRYING TO BRING TO YOU. WHEN I WAS HERE ON APRIL 15TH, MY FIRST MEETING AT THE INVITATION OF BRENT BLACKABY, HE SAID RHONDA, STOP GOING ON NEXT DOOR AND COME TO A MEETING. I CAME ON GOOD FAITH, I SHOWED UP AND WHAT I FOUND, I FELT PRETTY ALONE. BUT THERE WERE A FEW FOLKS, GEORGE, YOU KNOW, THERE ARE A FEW FOLKS OUT THERE. MAYBE A HANDFUL OF US WHO SAID WE HAVE QUESTIONS. AND WE WANT TO KNOW

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

MORE. AND WE'RE NOT SURE THAT THERE'S NOT MORE INFORMATION OUT THERE THAT YOU SHOULD BE CONSIDERING. AND THEN WE WENT BACK AND WE HAVE DONE HOMEWORK, HOMEWORK, HOMEWORK, HOMEWORK. I KNOW MORE ABOUT THIS THAN I HAVE KNOWN ABOUT A LOT OF THINGS BECAUSE I HAVE BEEN EATING, SLEEPING, BREATHING EMBER. AND IT'S BECAUSE I DO CARE ABOUT MY COMMUNITY. AND I WAS ACCUSED OF NOT CARING ABOUT MY HOME BECAUSE I WAS A RENTER, THIS WAS BY THE FIRE WISE COMMUNITY. HOW DOES THAT BUILD COMMUNITY? I WAS A GIRL SCOUT, BROWNIE, GIRL SCOUT LEADER, A LOBBYIST FOR THE GIRL SCOUTS. GIRL SCOUTS KNOW, JUST LIKE BOY SCOUTS DO, THAT WET WOOD DOES NOT BURN VERY WELL. IT JUST DOESN'T. SO I DON'T WANT TO BE ACCUSED OF NOT CARING ABOUT MY COMMUNITY. I DON'T WANT TO BE ACCUSED OF NOT CARING ABOUT FIRE. I DON'T WANT TO BE ACCUSED OF CARING BECAUSE I HAVE QUESTIONS AND I'M CHALLENGING YOU TO DO YOUR HOMEWORK LIKE WE HAVE.

>> MAYOR ISHII: THANKS, RHONDA, SORRY, YOUR TIME IS UP.

>> THANKS.

>> MAYOR ISHII: HOLD ON. SORRY, --

>> THE LADY ON THE FEATHER AND TWO IN THE GREEN.

>> MAYOR ISHII: AND THESE TWO FOLKS. OKAY, SO THAT'S TOTAL TIME SIX MINUTES. HE IS AT THE MAXIMUM ALREADY, SO THAT'S SIX MINUTES. GO AHEAD.

>> THANK YOU. THANK YOU FOR THE PASSIVE AGGRESSIVE TONE AS WELL.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

72 MEMBERS AT THE STATE AND FIRE FORESTRY MEETING NUANCED TONE WAS REACHED. THE FIRE CHIEF FROM L.A. SAID WE ARE NOT LOOKING AT GATES, IT'S A LIABILITY ISSUE. I'M GLAD THAT SO MUCH TIME WAS GIVEN TO A PERSON WHO WAS A FORMER INSURANCE COMPANY LOBBYIST AND ASSOCIATED WITH AN INSTITUTE THAT HAS STAFF PRESIDENTIAL JOBS FROM NIXON TO TRUMP. WHAT WE ARE WITNESSING HERE IS NOT POLICY LEADERSHIP. IT'S A BREAK OF PUBLIC TRUST YOU READ FROM A PREPARED STATEMENT, SO I WILL. THE EMBER PROPOSAL REFLECTS FAILED POLICY MODEL PREVIOUSLY REJECTED NOW BEING PUSHED HERE LACKING FULL EQUITY. WE AREN'T SPEAKING HYPOTHETICALLY. THE FINANCIAL IMPACT ON FIXED INCOMES AND NEW HOMEOWNERS IS TANGIBLE. THE PRICE TAG DOES NOT PASS MUSTER. WE MET WITH YOU ONE-ON-ONE. WE OFFERED SOLUTIONS. WORKABLE, REASONABLE AND COMMUNITY-MINDED. EVEN A WAY OUT OF POTENTIAL LEGAL IMPLICATIONS. WE ASKED FOR A PAUSE FOR A SPECIAL MEETING. THOSE REQUESTS WERE IGNORED. JUST AS IT TOOK SOME OF YOU MULTIPLE ATTEMPTS BEFORE RESPONDING TO A MEETING REQUEST. IN ONE MEETING WE WERE TOLD THE ONLY WAY TO HAVE COMPLIANCE IS TO HAVE THE PUNITIVE ASPECT IN THE PROPOSAL. I HAVE NEVER HEARD A POLITICIAN IN BERKELEY EVER SAY IN ORDER TO COMPLY WITH AN HONORS MANDATE, CITIZENS NEED TO KNOW THERE ARE CONSEQUENCES TO THEIR FREEDOM IF THEY DISREGARD IT. QUOTE UNQUOTE. YOU INSULTED US BY SAYING YOU ARE JUST MOURNING YOUR PLANTS. AS IF YOU COULDN'T CAPSULE LATE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IN A DISMISSIVE NARRATIVE THE BREADTH OF OUR CONCERNS. YOU INSULTED US BY SAYING WE ARE JUST MISINFORMED. THE CAPACITY TO ANALYZE DATA AND FACTS WAS BEYOND OUR MEASURE. INSTEAD, THE PROCESS WAS RIGGED FROM THE START. PUBLIC ROOMS PRACTICALLY BY PASSED. YOU FAVORED DICTATING. CEQA WAS DISMISSED EVEN AFTER WE SUBMITTED LEGAL OPINIONS, FORMER CALIFORNIA DEPUTY ATTORNEY GENERAL. SCIENTIFIC CONCERNS WERE WRITTEN OFF DESPITE 150 PLUS PAGES OF PEER REVIEWED STUDIES. YOU SAID SHOW US THE STUDY, WE DID. YOU SAID SHOW US THE COMMUNITY, WE DID. WE ONLY ASKED FOR RECOMMENDATIONS IN LINE WITH THE STATE. FULLY FUNDED MITIGATION FUND, YOUR TAX OPTION, NOT UP TO YOU TO IMPLEMENT, YOU ARE NOT THE STATE OR COUNTY, STOP THE GASLIGHTING. END TO CRIMINAL PENALTIES LIKE MISDEMEANORS, NOT A REQUEST, NOT A SHOULD, A SHALL. READY ESTABLISHED APPEAL PROCESS. COMMUNITY-LED ADVISORY COMMITTEE PRIOR TO THE VOTE. SIMPLE, RESPONSIBLE. ACHIEVABLE. AND YET, YOU HAVE REFUSED TO HOLD THE PROCESS. YOU PUSH FORWARD WITHOUT SUBSTANTIVE COMPROMISE AND IGNORE THE VERY PEOPLE YOU REPRESENT. THERE WAS ONCE A CITY COUNCIL THAT UNDERSTAND THE VALUE OF CHALLENGING STAFF REPORTS. WITH INDEPENDENT RESEARCH, DEVIL'S ADVOCACY. CONTRARIANS. WE IDENTIFIED THE CEQA LEGAL CONCERN. WE PROVIDED THE ZONE ZERO COUNTER STUDIES. GOSH, WE EVEN DID COMMUNITY OUTREACH, FOR YOU. WHEN YOU WERE NOT GOING TO DO IT. AND STILL YOU MARCH ON. IS IT STUBBORNNESS? A DESIRE TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CREATE LEGACY LEGISLATION? WHATEVER IT IS. IT'S PROBLEMATIC. AND WHAT'S WORSE IT'S BAD GOVERNANCE. MY FAMILY AND I MOVED TO BERKELEY OVER 20 YEARS AGO. WE LEFT BEHIND THE SUFFOCATING POLITICS AND OVERREACH OF THE SOUTH. AND FOUND IN BERKELEY A CITY THAT CHAMPIONED OPENNESS, DEMOCRACY AND PARTICIPATION. WHAT'S HAPPENING NOW IS THE OPPOSITE OF THAT. [APPLAUSE] IT IS PAINFUL TO WITNESS AND EXPERIENCE, IT'S PERSONAL. I'VE DEDICATED 20 YEARS AS A COMMISSIONER TO THIS COMMUNITY. IT IS PAINFUL. AND IT IS A BETRAYAL OF THE VERY VALUES THAT BROUGHT US HERE. THANK YOU. DO THE RIGHT THING. WAIT FOR THE STATE.

>> MAYOR ISHII: THANK YOU. I'M SORRY, COUNCILMEMBER, I THINK SOMEONE ELSE, I THINK THERE'S ONE MORE GENTLEMAN THAT IS BEFORE YOU. GO AHEAD, YOU WERE FIRST. PLEASE, COME ON UP. GO AHEAD, THANK YOU.

>> HELLO. STEFAN SCHNEIDER, I LIVE IN PARK HILLS, SIERRA CLUB MEMBER I RECENTLY LEARNED STRONGLY ENDORSED EMBER. I WANT TO GIVE A QUICK SHOUT OUT ABOUT THIS AND THIS. THIS IS GREAT STUFF. THIS AFTERNOON FINISHED PUTTING THIS ON MY HOUSE, SO THANK YOU. SO I AM GENERALLY IN SUPPORT OF EMBER. I HAVE BEEN READING A LOT OF THE OBJECTIONS, TRYING TO FIND SUBSTANCE. UNFORTUNATELY, MOST OF IT, I JUST HAVEN'T BEEN ABLE TO. I'VE SEEN THINGS MISQUOTED AND MISREFERENCED. AND I THINK THAT'S A SHAME. IT DOESN'T REALLY HELP. A LOT OF WHAT I SEE HERE THOUGH IS 43C IS I ALMOST HEAR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

"WAIT FOR THE STATE" EMBEDDED HERE. IT'S BASICALLY SAYING A PROCESS TO INCORPORATE EVERYTHING THAT THE STATE DEPARTMENT OF FORESTRY IS GOING TO DO BETWEEN NOW AND THE END OF THE YEAR. WHICH WILL BE INCORPORATED INTO ALL OF THIS. SO, THAT'S GREAT. THAT'S ALL I HAD TO SAY. THANKS.

>> MAYOR ISHII: THANK YOU. OKAY, OUR FINAL IN-PERSON COMMENT IS GOING TO BE FROM FORMER COUNCILMEMBER WENGRAF AND THEN WE WILL TAKE A BREAK AND THEN WE WILL TAKE COMMENTS ONLINE. SO JUST FOLKS, IF YOU ARE ONLINE, IF YOU COULD JUST RAISE YOUR HAND, IT WILL GIVE ME A BETTER SENSE OF HOW MUCH TIME THINGS WILL TAKE. THAT WILL BE VERY HELPFUL. GO AHEAD.

>> HI, EVERYBODY. IT'S NICE TO SEE YOU. SO, RESIDENTS HAVE CLAIMED THAT EMBER AND IMPLEMENTATION OF ZONE ZERO IS DRACONIAN, COERCIVE, RECKLESS, AND IRRESPONSIBLE. I HAVE A DIFFERENT OPINION. I SEE IT AS A SIGNIFICANT STEP TOWARDS PROTECTING LIVES, PRESERVING HOUSING, AND SAVING THE NATURAL ENVIRONMENT. I SEE IT AS A WISE AND STRONG FORWARD-LOOKING PUBLIC POLICY. YES, IT WILL REQUIRE ADJUSTMENTS IN INVESTMENTS. IT WILL REQUIRE FLEXIBILITY. BUT THIS IS WHAT ADAPTATION IS. THIS IS WHAT RESILIENCE REQUIRES. SO PLEASE, TONIGHT, SUPPORT EMBER. PLEASE SUPPORT COUNCILMEMBER BLACKABY'S MODIFICATIONS IN 43C. AND THANK YOU TO BERKELEY FIRE AND TO BERKELEY CITY COUNCIL AND ESPECIALLY TO COUNCILMEMBER BLACKABY FOR YOUR COURAGEOUS LEADERSHIP ON THIS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ISSUE. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. OKAY, FOLKS, WE ARE GOING TO TAKE, I'M GOING TO GIVE US A 15-MINUTE BREAK. WE HAVE BEEN SITTING FOR QUITE A NUMBER OF HOURS AND THEN WE WILL COME BACK AND TAKE ONLINE COMMENT. THANK YOU. [RECORDING STOPPED] PLEASE RAISE YOUR HAND AND I WILL LET OUR CITY CLERK HELP ME OUT WITH THIS.

>> CITY CLERK: THE FIRST ONLINE COMMENTER WE HAVE IS NIGEL GUEST.

>> MAYOR ISHII: WE CAN HEAR YOU NOW.

>> OKAY, I JUST CAN'T SEE MYSELF. MY NAME IS NIGEL GUEST. I'M ADDRESSING ITEM 43A. SO FIRST OFF, I'M REFERRING TO THE APRIL 15TH FIRE DEPARTMENT'S REPORT, PLUS THE RECENT COMMENTS FROM THE ASSISTANT FIRE CHIEF. NOWHERE IN ANY OF THIS HAVE I HEARD THE SUGGESTION OF CREATING FIRE BREAKS BETWEEN WILDLAND AND RESIDENTS. THAT DOESN'T SEEM LIKE A BIG PROBLEM TO ME BUT IT HASN'T EVEN BEEN CONSIDERED. WHY IS THAT? ALSO I LIVE ON PANORAMIC HILL. THE THOUGHT OF A RESIDENTIAL HILL IS IN THE CITY OF OAKLAND AND WILL NOT BE SUBJECT TO THIS OR ANY SIMILARLY STRINGENT ORDINANCE AFFECTING RESIDENTS. YOU CAN SEE THAT BY REFERRING TO THE FIRE CODE. NO WILDFIRE IS GOING TO APPROACH MY HOUSE FROM THE CITY OF BERKELEY BUT IT MIGHT VERY WELL DO SO FROM OAKLAND AND I SEE NO EVIDENCE THAT BERKELEY HAS COORDINATED WITH OAKLAND IN DRAFTING THIS ORDINANCE. AGAIN, WHY IS THAT? AS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOR THE ORDINANCE ITSELF, I'M SPEAKING FROM THE LATEST PUBLISHED VERSION MAY 6TH, THOUGH I REALIZE THIS HAS BEEN AMENDED. I HAVE ONE MAJOR ISSUE, SECTION 401.13 WHICH GIVES THE FIRE DEPARTMENT POLICE POWERS, THE POWER TO ARREST.

>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU SO MUCH. NEXT SPEAKER, PLEASE.

>> CITY CLERK: NEXT IS SPEAKER'S NAME IS IPAD 2.

>> HELLO, THIS IS [OFF MIC]

>> MAYOR ISHII: WE CAN HEAR YOU.

>> YOU CAN, GREAT? THE PALISADES IS MY HOMETOWN; I'M UNDER NO ILLUSIONS ABOUT CLIMATE CHANGE AND FIRESTORM. [OFF MIC] IT'S SO CRUCIAL TO DO WHAT I CAN. THERE ARE MANY PROBLEMS WITH EMBER. EMBER LEAVES ALL HOME HARDENING OPTIONS [INAUDIBLE] IN THE PALISADES KIND OF FIRESTORM. IT'S LIKE MANDATING KNEE PADS IN A MOTORCYCLE RACE AND MAKING HELMETS OPTIONAL. STATE BUILDING CODE FOR HARDENING -- BERKELEY HAS A MANDATORY RETROFIT PROGRAM, WHICH BERKELEY.CA SAYS BERKELEY REQUIRES OWNERS OF CERTAIN BUILDING TYPES TO RETROFIT THEIR PROPERTY TO MAKE THEM SAFER IN CASE OF AN EARTHQUAKE. THIS MANDATE DOES NOT REQUIRE TRANSFER OF OWNERSHIP OR MAJOR REMODEL. EMBER'S FOCUS ON DEFENSIBLE SPACE AND NOT HARDENING, PASS MANDATORY HOME HARDENING FIRST. ASK FOR FINANCIAL SYSTEM JUST AS EARTHQUAKE RETROFIT MANDATES DID. [INAUDIBLE] NOT SECONDARY DEFENSIBLE SPACE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: THANK YOU, I'M SORRY, YOUR TIME IS UP. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS JANICE THOMAS.

>> HELLO, I'M REMINDED OF 9/11, THERE WAS A TERRIBLE ATTACK ON OUR COUNTRY, THE WORLD TRADE CENTER WAS ATTACKED AND THERE WAS A MASSIVE OUT CRY. THE GOVERNMENT HAD TO DO SOMETHING. AND IN THEIR RUSH TO JUDGMENT THEY BOMBED IRAQ, ONLY BARBARA LEE VOTED NAY. WHAT I HEARD TONIGHT IT SOUNDS LIKE AN ENVOY WENT DOWN TO L.A. TO LOOK AT DIFFERENT PARTS OF L.A. AND I JUST WONDERED HAS ANYONE VISITED AND WALKED AROUND PANORAMIC HILL, I WOULD LOVE TO WALK WITH YOU AND THE FIRE CHIEF AND THE WUI CHIEF, ANYONE FROM THE FIRE DEPARTMENT. AND I WOULD LIKE YOU TO SEE, FOR EXAMPLE, THE HAIR PIN TURNS WHERE THERE ARE HOUSES PARKED WITHIN THE ELBOW OF THE TURN. AND HOW EXPOSED THESE HOUSES WILL BE. SOME OF THEM ARE ALMOST FIVE FEET FROM THE STREET. THE ROAD WAS BUILT IN 1888. THIS IS A NEIGHBORHOOD THAT, I'M JUST IN SHOCK, HONESTLY, THERE WASN'T AN INITIAL STUDY TO LOOK AT GEOLOGICAL IMPACTS SUCH AS THE EROSION PEOPLE HAVE TALKED ABOUT AND LANDSCAPES. CHECK OUT YOUR REFERENCE IN THE PLANNING DEPARTMENT ABOUT OUR NEIGHBORHOOD LANDSLIDES. AND ALSO HISTORIC DISTRICT IMPACTS.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS CHERYL DAVILA, FORMER COUNCILMEMBER.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> THANK YOU. HOW MUCH TIME DO I HAVE?

>> MAYOR ISHII: YOU HAVE A MINUTE.

>> YOU SHOULD SHOW THE CLOCK, BECAUSE WE CAN'T SEE WHAT OUR TIME IS. SO YOU KNOW, THERE'S NO DEFENSIBLE SPACE IN THE FLATLANDS AND IT'S NOT REQUIRED. WITH THE ZONING PROPOSAL CHANGES, OR THE CHANGES THAT YOU ARE PROPOSING FOR ZONING IN R1 AND R2, AND THIS MISSING MIDDLE, WHAT I MIGHT NOT WANT TO CURSE ONLINE, BUT YOU KNOW, THE B.S. OF THAT, IT'S JUST GOING TO CREATE MORE OF A FIRE HAZARD BECAUSE THERE WON'T BE ANY DEFENSIBLE SPACE BETWEEN BUILDINGS, NO GROWN SPACE, NO, NOTHING. AND IF THE STATE IS GOING TO BE, IF THIS IS COMING BEFORE THE STATE AND THEY ARE MAKING A DECISION, I THINK IT WOULD BE WISE TO WAIT. BUT IT'S ALSO, I MEAN, I UNDERSTAND WHY YOU WANT TO DO THIS, BUT I JUST ALSO UNDERSTAND HOW MUCH GREEN IS NEEDED IN ORDER TO MITIGATE CLIMATE CHANGE AND TAKE IN SOME OF THE CARBON AND ALL THESE THINGS. SO FOR PEOPLE TO GET RID OF TREES AND THINGS THAT ARE GOING TO DO THAT, PLANTS, THAT'S A LOT. AND IT COSTS A LOT OF MONEY. SO IT'S INTERESTING. SO I THINK MORE TIME AND ACTUALLY RESEARCH IS NEEDED.

>> MAYOR ISHII: SORRY, YOU ARE OUT OF TIME. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS JEFF LOMAX.

>> THANK YOU, MAYOR, AND COUNCIL. THIS IS REGARDING ITEM C. THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PROPOSED TRANSFER TAX CREDIT IS WELL-INTENDED BUT I WOULD SUBMIT ITS MISGUIDED. THERE ARE FUNDAMENTAL FEASIBILITY CONCERN THAT'S HAVE NOT BEEN ADDRESSED. AND MORE IMPORTANTLY, INCENTIVES SHOULD BE CLOSELY TIED TO FINANCIAL DECISIONS THAT AIM TO INFLUENCE, NOT DEPENDENT ON SOME FUTURE HOME SALE. THE RESIDENTS MAY NEVER WANT TO PURSUE. SO I REALLY URGE THE COUNCIL TO CONSIDER A MORE IMMEDIATE AND EFFECTIVE ALTERNATIVE. PROVIDE ANNUAL REBATES OF MEASURE FF PARCEL TAX, UP TO SOME CAPPED AMOUNT, SAY $3,000, TO RESIDENTS WHO UNDERTAKE ELIGIBLE WILDFIRE MITIGATION ACTIONS. THESE ACTIVITIES DIRECTLY SUPPORT MEASURES FF STATED GOALS AND SUCH A REBATE PROGRAM WOULD HE EMPOWER RESIDENTS TO ACT WITH REAL-TIMELY INCENTIVES. AT NO ADDITIONAL COST TO THE CITY. THIS MODEL MIRRORS THE PROVEN SUCCESS OF TAX CREDITS USED TO ENCOURAGE ADOPTION OF SOLAR AND BATTERY TECHNOLOGIES AND SHOULD SERIOUSLY BE CONSIDERED IN PLACE OF AN UNCERTAIN AND DELAYED TRANSFER TAX CREDIT. AND BY THE WAY, THIS HAS BEEN A REALLY GOOD HEARING, SO THANK YOU FOR YOUR TIME.

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS NANCY GILLETTE.

>> GOOD EVENING, MY NAME IS NANCY GILLETTE, I'M ON THE BOARD OF BERKELEY FIRE SAFE COUNCIL AND I'M A RETIRED FOREST SERVICE RESEARCHER. I HAVE A PH.D. IN FOREST SCIENCE FROM U.C. BERKELEY. I GIVE MY WHOLEHEARTED SUPPORT FO EMBER ALSO ENDORSED BY THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SIGH ERA CLUB, LEAGUE OF WOMEN VOTERS, FIRE DISASTER COMMISSION, AND COMMUNITY LEADERS ALONG THE GRIZZLY PEAK RIDGE, WHICH IS HOME TO BERKELEY'S HIGHEST FIRE SEVERITY ZONE. AS A FORESTRY PROFESSIONAL I'VE EVALUATED THE SCIENCE BEHIND ZONE ZERO. ALONG WITH WUI. REMOVING FLAMMABLE MATERIALS ESPECIALLY NEAREST TO OUR HOMES GIVES REAL PROTECTION FROM EMBER ATTACK. MUCH INFORMATION CITED BY THE ANTI-AMBER CITIZENS COMES FROM A LANDSCAPING BACKGROUND RATHER THAN FIRE SCIENCE AND IT'S BEEN GREATLY MISREPRESENTED ON SOCIAL MEDIA. WE WISH WE COULD KEEP OUR BELOVED PLANTS BUT KEEPING THE STATUS QUO IS WISHFUL THINKING. I URGE THE COUNCIL TO TRUST THE FIRE EXPERTS AND SUPPORT EMBER. THERE'S TOO MUCH AT STAKE TO WAIT FOR THE STATE. I ALSO WANT TO THANK COUNCILMEMBERS BRACK BEE, HUMBERT AND O'KEEFE FOR THEIR EXTENSIVE OUTREACH AND INCLUSION AND OUR AMAZING FIRE DEPARTMENT, WHICH IS AT THE VANGUARD OF FIRE SUPPRESSION EXPERTS.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP.

>> CITY CLERK: NEXT IS A PHONE NUMBER ENDING IN 211. PRESS *6 TO UNMUTE.

>> [INAUDIBLE]

>> MAYOR ISHII: WE CAN HEAR YOU.

>> CITY CLERK: PRESS *6 TO UNMUTE. PHONE NUMBER, THERE YOU GO.

>> OKAY. YEAH, I HAVE TO GIVE YOU A BIT OF HISTORY. I'VE BEEN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

LIVING HERE FOR DECADES. OVER 3,000 HOMES DESTROYED IN OAKLAND FIRE. 17 PEOPLE KILLED BY THE FIRE. 1923, BERKELEY HAD A MASSIVE FIRE, BURNED ALL THE WAY FROM THE HILLS TO GROVE STREET. WE HAVE TO BE VERY CAREFUL. THE FACT IS WE LIVE IN A FIRE ZONE. AND WE REALLY HAVE TO BE EXTREMELY CAREFUL. BY THE WAY, BERKELEY FIRE DEPARTMENT PLAY A BIG ROLE, BIG ROLE IN SAVING BERKELEY FROM OAKLAND FIRE, THEY REALLY DID. WHEN THE FIRE APPROACHED CLAREMONT HOTEL, I GIVE ALL MY THANKS AND ALL MY PRAISE. THANK YOU AND HAVE A GOOD NIGHT.

>> MAYOR ISHII: THANK YOU. CLERK, CAN YOU GIVE ME A SENSE HOW MANY HANDS ARE RAISED STILL?

>> CITY CLERK: WE HAVE TEN HANDS RAISED STILL.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS NANCY RADER.

>> I'M A MEMBER OF THE BERKELEY FIRE SAFE COUNCIL WHICH STRONGLY SUPPORTS THE EMBER BECAUSE THE SCIENCE CLEARLY SUPPORTS ZONE ZERO AS PART OF A THREE PRONG STRATEGY THAT INCLUDES HOME HARDENING AND REMOVING HAZARDOUS VEGETATION. THIS IS ONE LEG OF THE THREE-LEGGED STOOL THAT WILL REDUCE OUR CITY BURNING DOWN. THE CITY IS WORKING ON ALL THREE AND THE FIRE SAFE COUNCIL WILL CONTINUE TO WORK WITH THE FIRE DEPARTMENT TO ACHIEVE ALL THREE. MANY CONCERNS WE HAVE HEARD TONIGHT ARE OVER BLOWN BASED ON MISINFORMATION OR SHOW NO CONCERN FOR ADDRESSING THE VERY REAL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FIRE RISK WE FACE. FRANKLY, I'M REMINDED TONIGHT OF THE (?) CROWD. MY HOME IS COMPLIANT BECAUSE I GOT TO WATCH HOMES BURN DOWN YEAR OVER YEAR SINCE 2016. WE PLANTED NATIVE FLOWERS NOW BUZZING WITH BEES AND IT LOOKS A LOT BETTER NOW. NEIGHBORS PLEASE RECOGNIZE THAT CLIMATE CHANGE REQUIRES ALL OF US TO REIMAGINE OUR YARDS, TO RETAIN OUR INSURANCE AND PROTECT OUR HOMES. LET'S BE CREATIVE. FIRE DEPARTMENT, THANK YOU. COUNCILMEMBER BLACKABY, THANK YOU. CITY COUNCIL, PLEASE ADOPT EMBER TONIGHT TO PROTECT US ALL. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS DANIEL BROWNSON.

>> MAN, YOU RICH PEOPLE UP IN THE HILLS SURE ARE SOMETHING. DON'T YOU KNOW THAT YOUR HOMES WILL BE THE FIRST TO BURN?

>> MAYOR ISHII: WAS THAT THE REMAINDER OF YOUR COMMENT? OKAY, THANK YOU FOR YOUR COMMENT. MOVING ON.

>> CITY CLERK: NEXT IS CINDY SIMON ROSENTHAL. YOU SHOULD BE ABLE TO UNMUTE. THERE YOU GO.

>> WATCHING NEIGHBORHOODS BURN DOWN YEAR AFTER YEAR SINCE 2016. WE CUT DOWN VEGETATION, PLANTED NATIVE FLOWERS NOW BUZZING WITH BEES AND GUESS WHAT, IT LOOKS A LOT BETTER NOW. NEIGHBORS PLEASE RECOGNIZE -- [AUDIO IS VIDEO REPEATING ON SOMEONE'S PHONE LINE]

>> MAYOR ISHII: I THINK IT'S THE SAME VOICE, SAME COMMENT. SAME CADENCE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: OKAY, NEXT IS PHONE NUMBER ENDING IN 072. PRESS *6 TO UNMUTE.

>> ALL RIGHT. COOL. OKAY, SO, I GUESS I WANTED TO RESPOND TO PREVIOUS COMMENTS. PEOPLE WHO ARE AGAINST EMBER, THEY ARE NOT AGAINST FIRE SAFETY. I THINK WE ARE ASKING FOR MORE THOUGHTFUL, EVIDENCE-BASED POLICY. AND THEN, I GUESS MY QUESTION WILL BE, IS IT SO TRULY URGENT THAT WE CANNOT WAIT FOR THE STATE, THEN WHY AREN'T FIRE LANES AND EVACUATION ROUTES BEING CLEARED, TREATED WITH THE SAME URGENCY AS EMBER? AND THEN, SORRY, I HAVE SOME ECHO. THAT'S IT.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY. NEXT IS SUSIE BAILEY.

>> HI. I HAVE LIVED IN BERKELEY MY ENTIRE LIFE. AND IT'S A LONG ONE NOW. I'VE LIVED ON THE UPPER PART OF THE HILLS FOR MORE THAN 70 YEARS. AND IN OUR HOUSE ON MUIR WAY FOR 57 YEARS. AND I WANT TO TALK ABOUT THE WIND, BECAUSE I DON'T THINK MUCH HAS BEEN SAID ABOUT THAT. OUR HOUSE IS SITUATED SO THE SECOND STORY BEDROOM EXPERIENCES THE FULL FORCE OF THE DIABLO WINDS THAT BLOW IN THE FALL. WE LOOK ACROSS A EUCALYPTUS GROVE UNTIL THE WIND SLAMS AGAINST THE SIDE OF OUR HOUSE AND IT'S BEYOND SCARY TO THINK WHAT COULD HAPPEN, NOT JUST TO US BUT TO THE ENTIRE CITY IF THERE WERE A FIRE IN TILDEN. THOSE EUCALYPTUS TREES IS WHERE THE EMBERS WILL COME FROM AND PROBABLY ALSO FLAMING PIECES OF BARK.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

I CAN'T BEGIN TO TELL YOU HOW SCARY IT IS TO BE IN OUR BEDROOM AND FEEL THE FORCE OF THAT WIND. THAT'S WHAT'S GOING TO BRING THE FIRE TO BERKELEY. AND THAT'S BEEN REALLY NO COMMENT ABOUT THAT. THAT'S WHAT HAPPENED IN THE PACIFIC PALISADES. AND I WATCHED IT MOST OF THE NIGHT BECAUSE I HAVE A FRIEND OVER THERE AND HER HOUSE BURNED. ALSO, CAN WE LEAN ON THE PARK DISTRICT TO AT LEAST STAFF THEIR FIRE DEPARTMENTS FOR 24 HOURS A DAY WHEN --

>> MAYOR ISHII: YOUR TIME IS UP. BUT THANK YOU SO MUCH FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS KEN BUKOWSKI.

>> HI, I THINK YOU NEED TO HAVE A JOINT TASK FORCE WITH THE CITY OF OAKLAND, BECAUSE BERKELEY ISN'T GOING TO STAND ALONE, YOU NEED BOTH CITIES TO MOVE TOGETHER. YOU SHOULD JOIN THE COUNTY FIRE DEPARTMENT. I WAS INSTRUMENTAL GETTING EMERYVILLE TO BE PART OF THE COUNTY AND IT WOULD BE GOOD FOR BERKELEY AND OAKLAND TO DO THE SAME. YOU WILL HAVE MORE RESOURCES AVAILABLE AND YOU WILL SAVE MONEY.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT WE HAVE MICHAEL GOLDHABER.

>> PARDON ME, I AM HERE WITH MY WIFE KAREN, I WOULD LIKE TO HAVE THREE MINUTES. I WOULD LIKE TO SAY I WAS ORIGINALLY MUCH TAKEN WITH THE APPARENT SCIENCE PROVIDED BY EMBER. ENOUGH SO THAT I HAD A TREE CUT DOWN AND OTHER THINGS DONE, ACCORDING WITH THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PLAN OF THE FIRE SAFETY ZONE. BUT, REALLY THE PROBLEM IS, WE ARE IN A FIRE ZONE BECAUSE OF TILDEN. AND TILDEN HAS PLANTED A HUGE NUMBER OF TREES OVER THE PAST 100 YEARS. BEFORE THAT, IT WAS QUITE BARREN. WE HAVE TO RECONSIDER WHAT OUR ENVIRONMENT SHOULD BE IN THE EVENT, AS A RESULT OF GLOBAL WARMING. AND WE, IN THE ZONE NEAR TILDEN SHOULD NOT TAKE THE RESPONSIBILITY TO REDO OUR PART OF THE CITY TO PROVIDE A BUFFER. IT IS TILDEN THAT SHOULD BE DOING IT, PRIMARILY. AND ONE HAS TO THINK OF ALL SORTS OF POSSIBLE WAYS THAT COULD BE DONE. THERE'S NO INDICATION THAT PARTICULARLY THAT A FIRE WILL SUDDENLY OCCUR WITHIN THE NEXT YEAR OR TWO. WE HAVE SOME TIME TO RECONSIDER AND TO BE MUCH MORE CAREFUL IN HOW WE GO ABOUT DOING THINGS, GIVEN THAT THE REAL DANGER IS FROM THE PARK AND THE PARK DOESN'T HAVE TO BE THE WAY IT IS. IT HAS TO BE RECONFIGURED. IT HAS TO BE RETHOUGHT. AND THERE IS A POSSIBILITY ALSO OF IMAGINATIVE SOLUTIONS SUCH AS 50 OR 100-FOOT TALL SCREENS BLOCKING BETWEEN THE CITY AND THE PARK THAT WOULD PREVENT EMBERS FROM COMING THROUGH. THEY COULD BE POSSIBLY PUT INTO PLACE JUST IN THE CASE OF HIGH FIRE DANGER. SO THERE ARE LOTS OF POSSIBILITIES THAT HAVEN'T EVEN BEEN CONSIDERED. MEANWHILE MANY PEOPLE HAVE BARELY FIVE OR TEN FEET ON THE SIDES OF THEIR HOUSES, EVEN UP HERE IN THE HILLS, SO THEY WOULD BE DENUDED OF ALL PLANTS, WHICH WOULD BE A TREMENDOUS LOSS OF AESTHETIC PLEASURE TO THEM. AND ALSO OF ACTUAL NATURAL VALUE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NONE OF THAT HAS BEEN SUFFICIENTLY CONSIDERED IN MY VIEW. THIS IS BEING RUSHED THROUGH WITH NO NEED FOR SUCH SUDDEN URGENCY, SIMPLY BECAUSE THERE WAS A FIRE IN L.A. SO I THINK COUNCILMEMBER BLACKABY HAS MOVED MUCH TOO FAST AND HAS NOT TAKEN IN CAREFUL CRITICISM. SENSIBLY THIS PLAN SHOULD NOT BE ADOPTED TODAY AND MUCH FURTHER THOUGHT IS NEEDED. THERE IS TIME. THERE'S NO NEED TO BELIEVE THAT AFTER 100 YEARS OF NO FIRE HERE, THERE WILL SUDDENLY BE ONE IN THE NEXT YEAR OR TWO. THAT SIMPLY DOESN'T MAKE SENSE IN TERMS OF PROBABILITIES.

>> CITY CLERK: THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS GIO.

>> MAYOR ISHII: AND CAN YOU GIVE US AN UPDATE?

>> CITY CLERK: FOUR HANDS, THREE.

>> THANK YOU, I STRONGLY SUPPORT FIRE SAFETY MEASURES BUT I CAN'T SUPPORT THE EMBER ORDINANCES PROPOSED TODAY. COUNCIL'S PROPOSAL TO PASS A LEGALLY PROBLEMATIC EMBER ORDINANCE NOW WITH VAGUE NON-BINDING RECOMMENDATIONS TO AMEND IT LATER IS IRRESPONSIBLE. COUNCIL SHOULD RECOGNIZE THAT IT OWES THE HIGHEST DUTY OF CARE TO BERKELEY RESIDENTS TO GET EMBER RIGHT IN THE FIRST PLACE. WHY? AS A LAW EMBER IS UNPRECEDENTED. IT'S FAR BEYOND A BIG ASK, AS COUNCILMEMBERS HAVE DESCRIBED IT. MY NEIGHBORS AND I COULD BE CHARGED WITH MISDEMEANOR CRIMES AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SUBJECT TO PENALTIES AND FINES. COUNCIL WOULD NOT EXCUSE A POORLY DESIGNED CRIMINAL LAW WITH A WINK AND NOD TOWARD DISCRIMINATORY ENFORCEMENT AND DISCRETIONARY ENFORCEMENT, PARTICULARLY WHEN SO MANY EMBER PROVISIONS ARE VAGUE OR HARD TO UNDERSTAND AND COST OF COMPLYING WITH EMBER COULD BE FORMIDABLE. FINALLY IT'S CLEAR MANY OF MY NEIGHBORS ARE EXASPERATED WITH THE CITY'S LARGELY DISMISSIVE ATTITUDE TOWARDS CLARIFYING EMBER. NEIGHBORS HAVE TALKED ABOUT LEGAL ACTION, A CEQA LAWSUIT LOOKS LIKELY. EMBER'S VAGUENESS. EMBER IS REGULATORY TAKING. DISCRIMINATORY, VIOLATES EQUAL PROTECTION.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT IS STEVEN.

>> HI, CAN YOU GUYS HEAR ME?

>> CITY CLERK: YES.

>> MAYOR ISHII: YES.

>> I WAS AT THE MEETING BACK IN MAY WHERE THE FIRE DEPARTMENT NICELY ANSWERED A LOT OF QUESTIONS FOR FOLKS. IN THAT DISCUSSION, HOWEVER, I THINK THE CHIEF OF FIRE, I DON'T KNOW WHAT HIS NAME IS, HE EVEN SORT OF HAND WAVED AROUND ZONE ONE, ZONE TWO REQUIREMENTS. NOT TALKING ABOUT ZONE ZERO BUT ON A HOLISTIC SCALE, ZONE ONE AND TWO MAKE ABSOLUTELY NO SENSE. CUTTING DOWN MASSIVE NUMBERS OF TREES AND THE FIRE DEPARTMENT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WAS LIKE OH YEAH IT DOESN'T MAKE SENSE, IT WOULD INCREASE THE RISK OF FIRE, WE NEED THE SHADE FROM THE TREES. WHAT I WOULD ASK YOU TO THINK ABOUT, IF THE OTHER PARTS OF DEFENSIBLE SPACE ARE COUNTER INTUITIVE, THEY ARE ACTUALLY MAKING THINGS WORSE, CUTTING DOWN TREES, INCREASING THE AMOUNT OF OPEN ARID DRY LAND, THAT COULD RAPIDLY SPEED UP WIND-DRIVEN GRASS FIRES YOU HAVE TO THINK ZONE ZERO IS PROBABLY SIMILARLY POORLY INFORMED AND THE SCIENCE ISN'T THERE. THE EVIDENCE GENERATED WAS GENERATED IN LIKE A SHED AND OH WELL WE HAD CONCRETE WALLS AND A CONCRETE HOUSE AND ALL THIS STUFF, VERSUS A HOME THAT WAS DOUSED IN GASOLINE. OH WELL, ALL THE PLANTS NEAR THE THING IT LIT THE WHOLE THING ON FIRE. ZONE ZERO IS A TERRIBLE PLAN. ALSO YOU SHOULDN'T DO CRIMINAL CHARGES ON PEOPLE BECAUSE THEY DON'T WANT TO CUT DOWN THEIR TREES.

>> MAYOR ISHII: THANK YOU, YOUR TIME IS UP.

>> CITY CLERK: THAT IS IT.

>> MAYOR ISHII: CINDY SIMON ROSENTHAL?

>> CITY CLERK: WE ACTIVATED HER LINE EARLIER.

>> DRY VEGETATION THAT CAN WILD RAPIDLY SPEED UP.

>> MAYOR ISHII: STRANGE. I DON'T KNOW WHY THAT'S HAPPENING. THAT'S KIND OF FREAKY.

>> CITY CLERK: YEAH, SOMETHING OFF WITH HER ZOOM FEED.

>> MAYOR ISHII: DOES ANYBODY HAVE ANY QUESTIONS BEFORE WE MAKE A

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

MOTION TO CLOSE THE PUBLIC HEARING? I JUST WANT TO MAKE SURE.

>> M. HUMBERT: I MOVE TO CLOSE THE PUBLIC HEARING.

>> B. BLACKABY: SECOND.

>> CITY CLERK: TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA? GEOFF YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES. OKAY, THANK YOU VERY MUCH. APPRECIATE IT, WE ARE MOVING ONTO COUNCIL COMMENTS, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: THANK YOU, MADAM MAYOR. AFTER CATASTROPHIC

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FIRES, OUR CHIEF BROUGHT THE EMBER PROPOSAL TO REDUCE THE CHANCE OF SIMILAR TRAGEDY TAKING PLACE IN OUR COMMUNITY. THE ESSENCE OF THE PROPOSAL IS ZONE ZERO, CREATION OF NON FLAMMABLE AREA 0-5 FEET AROUND HOMES THIS HAS BEEN SHOWN TO PREVENT FLYING EMBERS FROM IGNITING HOUSES AND METASTASIZING INTO A STRUCTURE TO STRUCTURE CONFLICT. IMPLEMENTATION WAS DELAYED BUT THE SCIENCE IS SOLID AS IS THE BACKING FROM CALFIRE AND STATE LEGISLATURE. GOVERNOR NEWSOM SAID THE WORK TO FINALIZE ZONE ZERO REGULATIONS BE COMPLETED BY THE END OF THE YEAR. ADDITIONALLY MARCH 1ST HE ISSUED A PROCLAMATION OF STATE OF EMERGENCY DUE TO CATASTROPHIC WILDFIRE RISK IN CALIFORNIA. THE VERY BEST SCIENTIFIC EVIDENCE TELLS US THAT ZONE ZERO, IN CONJUNCTION WITH HOME HARDENING LIKE SCREENING ATTIC VENTS AND CLEANING CUTTERS COULD HAVE A SIGNIFICANT IMPACT. THIS IS NOT IN DISPUTE. WE ARE NOT RUSHING HERE. THIS SCIENCE WAS WITH HOTTER TEMPERATURES, STRONGER WIND, BERKELEY HAS HAD A SERIOUS FIRE ON AVERAGE EVERY 20 YEARS. OUR LAST FIRE AS THE CHIEF TOLD US WAS OVER 33 YEARS AGO. WE ARE TEN YEARS OVERDUE. WAITING TO IMPLEMENT EMBER HAS REAL, REAL-LIFE IMPLICATIONS. WE NEED TO GET STARTED. WE CAN'T DO THIS OVERNIGHT. SO THE SOONER WE START, THE SOONER WE REACH THE CRITICAL MASS OF PARTICIPATION WE NEED TO START PROVIDING NEIGHBORHOOD-WIDE BENEFITS. I WANT TO THANK THE FIRE DEPARTMENT, CHIEF SPRAGUE, CHIEF WINIKER, CHIEF ARNOLD WHO UNFORTUNATELY HAD

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ANOTHER ASSIGNMENT TONIGHT. FOR ALL THEIR WORK CRAFTING THE PROPOSAL FOR PARTICIPATING IN THIS PUBLIC PROCESS. IT'S BEEN A TREMENDOUS AMOUNT OF WORK AND THEIR EXPERTISE HAS BEEN CRITICAL. I WANT TO THANK COUNCILMEMBER O'KEEFE, HER SUPPORT, ADVICE AND FRIENDSHIP. I WANT TO THANK SOME OF THE MANY GROUPS THAT ENDORSED. [READING RAPIDLY] ALSO CONTRA COSTA SUPERVISOR WHO JOINS THE COALITION. I WANT TO THANK EVERYBODY WHO PARTICIPATED IN THE EMBER DISCUSSION, BOTH SUPPORTERS AND CRITICS ALIKE. I HOPE PEOPLE WILL SEE SOME OF THEIR CRITIQUES ADDRESSED IN THE ITEM MAYOR ISHII AND COUNCILMEMBER O'KEEFE AND I HAVE WORKED ON. EVEN IF YOU DISAGREE WITH THE FINAL PRODUCT, I WANT YOU TO KNOW YOUR CRITICISM HAS PUSHED US TO REFINE OUR THINKING HELPED HOLD A MIRROR TO THE PROPOSAL TO SEE WHERE WE CAN IMPROVE IT TO SEE IF IT TRULY REFLECTS THE NEEDS OF OUR COMMUNITY. I HOPE AND EXPECT YOU WILL CONTINUE TO HOLD US AND ME ACCOUNTABLE MOVING FORWARD. I ALSO WANT TO TAKE A FEW MORE MINUTES TO ADDRESS OTHER CONCERNS. WAIT FOR THE SCIENCE. SCIENCE IS ALWAYS EVOLVING; IT WILL ALWAYS IMPROVE WITH TIME. WILL IT BE BETTER IN SIX MONTHS? YES, WILL THE SCIENCE BE BETTER IN A YEAR, TWO OR FIVE OR TEN? ABSOLUTELY. BUT WITH THE URGENCY OF THE RISK HANGING OVER US WE ALSO HAVE AN URGENT NEED TO ACT TO START THE TRANSITION THAT WILL TAKE SOME TIME BUT WILL GET US TO A BETTER AND SAFER PLACE IN THE MONTHS AHEAD. I BELIEVE THE TIME IS NOW TO PUT OUR STAKE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IN THE GROUND, TO SET THE GOAL AND START MOVING FORWARD. AND THEN AS COUNCILMEMBER WENGRAF AND OTHERS HAVE SAID, ADAPT AND ADJUST AS WE CONTINUE TO LEARN MORE ALONG THE WAY. WHY MOVE NOW? FIRE SEASON IS UPON US. WE ACTUALLY CAN HAVE SOME MARGINAL IMPACT IN THE SHORT-TERM. BUT KNOCK WOOD IF WE CAN MAKE IT THROUGH THIS FIRE SEASON, I'M MOST ENCOURAGED WE HAVE 12 MONTHS UNTIL THE NEXT FIRE SEASON. WE HAVE TIME TO MAKE A SIGNIFICANT DENT BETWEEN NOW AND THEN AND BE MUCH MORE PREPARED. FURTHER DELAY OF THREE OR SIX MONTHS MEANS WE WON'T MAKE MUCH PROGRESS FOR TWO OR THREE FIRE SEASONS AND THAT DOESN'T MEET THE URGENCY OF THIS MOMENT. ON THE PUBLIC PROCESS, CONCERN THIS IS NOT THE END OF THE PUBLIC PROCESS. THERE'S A LOT OF PROCESS; WE WILL HAVE MORE PROCESS. WE HAVE TALKED ABOUT THE WORKING GROUP ON VEGETATION. THE FIRE DEPARTMENT WILL BE BACK WITH THEIR IMPLEMENTATION PLAN. WE WILL HAVE ADDITIONAL FIRE CODE CHANGES TO REVIEW THIS FALL. WE WILL BE TALKING ABOUT FINANCING. THERE ARE MANY MORE CHECKPOINTS TO GO. THIS IS A CONVERSATION, A DIALOGUE THAT WILL CONTINUE IF WE ARE GOING TO BE SUCCESSFUL. ON THE ECONOMICS. WE TALKED A BIT ABOUT THE $1 MILLION GRANT FUND, WE KNOW THAT'S JUST THE BEGINNING TO HELP RESIDENTS WHO ARE AGED 65 PLUS AND/OR NEED MORE FINANCIAL ASSISTANCE. I APPRECIATE THE COMMENTER JOE LOMAX TALKING ABOUT THE HOME HARDENING TRANSFER TAX CREDIT. I AGREE WE NEED TO MAKE THE MONEY AVAILABLE NOW AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NOT JUST DOWN THE ROAD WHEN YOU SELL YOUR HOME. PUBLIC SAFETY POLICY COMMITTEE REVIEWING AND LOOKING AT OTHER OPTIONS, SECURING THOSE AND INTRODUCING THOSE IN THE COMING WEEKS. THIS IS CRUCIAL, I AGREE. THIS IS CRUCIAL TO GETTING THIS RIGHT. ON VEGETATION AND ZONE ZERO. I WANT TO APPRECIATE THE SCIENCE SHARED WITH US. I GOT THE EMAIL WITH 150 PAGES OF SCIENCE. I AGREE AND I'VE SEEN MANY STUDIES THAT AFFIRM THE VALUE OF FIRE RESISTANT VEGETATION AND TREES IN DEFENSIBLE SPACE ZONES 30-100 FEET AWAY FROM HOMES. I HAVE NOT SEEN, TO MY KNOWLEDGE, ANY STUDIES THAT SHOW POSITIVE OR AT LEAST NEUTRAL VALUE OF THAT VEGETATION IN ZONE ZERO. THE MARGIN FOR ERROR ON FIRE RESISTANT VEGETATION IS VERY DIFFERENT, 10 FEET, 30 OR 100 FEET FROM THE HOME. YOU HAVE MUCH HIGHER RISK THAN ZONE ZERO, SINCE UNDER THE RIGHT CONDITIONS PLANTS CAN IGNITE. WE DON'T HAVE A MARGIN FOR ERROR IN ZONE ZERO, I THINK THAT'S WHY WE ARE BEING PRUDENT. IF THE STATE CHANGES THE REGULATIONS WE CAN REVISIT OURS. WE HAVE THE SPACE TO DO AND THIS THE TIMELINE EVEN WHILE WE START THE EDUCATION AND GUIDANCE PROCESS THIS SUMMER. ON HOME HARDENING, WE DO WANT TO DO HOME HARDENING TOO, TOTALLY AGREE, VEGETATION MANAGEMENT IS ONLY PART OF THE SOLUTION. WE ARE ENCOURAGING THAT THE FIRE DEPARTMENT IS ENCOURAGING THAT, PROVIDING FREE MESH AND GUTTER GUARDS TO DO IT. BE COMMUNICATED CLEARLY AND ENCOURAGED AND INCENTIVIZED ALONGSIDE THE VEGETATION MANAGEMENT WORK. THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BUILDING CODE DOES NOT PERMIT US TO MANDATE IT BUT WE WANT TO MAKE SURE IT'S COMMUNICATED CLEARLY AND PART OF THE PACKAGE THAT COMES TO HOMEOWNERS OVER THE COMING MONTHS. LASTLY ON REGIONAL PARTNERS. WE AGREE REGIONAL PARTNERS NEED TO DO MORE. ONE OF THE THINGS THAT MY ITEM DOES IS REQUIRE THE DEPARTMENT TO REPORT BACK TO COUNCIL AT LEAST TWICE ANNUALLY WITH UPDATES ON THE WORK THAT OUR PARTNERS ARE DOING TO FOSTER MORE COMMUNICATION AND COLLABORATION. IN ADDITION, COUNCILMEMBER O'KEEFE, THE SUNSET LOOKS GREAT, SERVES ON THE EAST BAY WILDFIRE COALITION, WITH PARTNERS, I PARTICIPATED IN A ROUND TABLE WITH GRAYSON CONTRA COSTA AND OTHER AGENCIES, WE HAVE TO DO MORE OF THAT COORDINATION AND WE WILL. THAT'S VERY IMPORTANT TO THE SOLUTION. ON THE MISDEMEANOR POINT, JUST TO BE CLEAR, WE ARE MOVING THAT FROM THE CODE, WE DON'T WANT TO CRIMINALIZE THIS PROCESS, WE WANT TO MAKE THIS AN EDUCATION AND PARTICIPATORY PROCESS. THAT SAID, ON BALANCE I BELIEVE THE TIME IS RIGHT TO MOVE FORWARD. THERE'S TOO MUCH AT STAKE TO WAIT. IT'S TIME TO PUT OUR STAKE IN THE GROUND, SET OUR GOAL AND SET A COURSE TO MEET IT. WE CAN CONTINUE TO ADJUST AND REFINE AS WE MOVE FORWARD. THIS IS A JOURNEY THAT WE HAVE TO TAKE TOGETHER. COLLECTIVE ACTION IS NEEDED TO MEET THE MOMENT. AND ADDRESS THIS THREAT. THE SOONER WE START, THE SOONER WE WILL GAIN THE BROAD PARTICIPATION WE NEED TO MAKE OUR HOMES SAFER, MAKE OUR COMMUNITIES AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NEIGHBORHOODS SAFER. LET'S TAKE THAT STEP TONIGHT AND LOOK BACK NEXT YEAR AND BE GLAD THAT WE DID. WITH THAT, I WOULD LIKE TO MAKE A MOTION. THREE-PART MOTION THAT WE ADOPT THE FIRE CODE AMENDMENTS N ITEM 43A THAT WE ADOPT THE CALFIRE MAP, THE LOCAL BERKELEY MAP IN 43B AND THAT WE ALSO ADOPT THE THREE-PART REFERRAL IN 43C.

>> S. O'KEEFE: SECOND.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER LUNAPARRA. SORRY, COUNCILMEMBER O'KEEFE, YOU ARE COMING QUITE LOUD, THAT'S WHY WE WERE ALL SHOCKED.

>> C. LUNAPARRA: THANK YOU. I FIRST WANT TO SAY I DEEPLY APPRECIATE THE WORK OF THE FIRE DEPARTMENT, THE CITY MANAGER, THE FIRE CHIEF AND YOUR ENTIRE TEAM. THIS WORK AND DILIGENT COMMUNITY OUTREACH ALSO WOULD NOT HAVE BEEN POSSIBLE WITHOUT THE WORK OF COUNCILMEMBER BLACKABY AND MAYOR ISHII AND THEIR TEAMS. I CONTINUE TO SUPPORT THESE PROPOSALS AND I DON'T THINK THERE'S MUCH MORE I CAN ADD THAT HASN'T ALREADY BEEN SAID, BUT I WANT TO MENTION I THINK THERE'S SOMETHING PHILOSOPHICALLY BEAUTIFUL IN WORK LIKE THIS. EVEN THOUGH WE ARE FACING A SYMPTOM OF EXISTENTIAL CLIMATE CHANGE, OUR COMMUNITY IS COMING TOGETHER. WE WILL FORTIFY THOSE VULNERABLE AREAS FROM BECOMING TINDER FOR A FIRE WE CAN NO LONGER PROTECT OURSELVES FROM. IN SUMMARY A SMALL GROUP CAN IMPACT OUR LIVES AND AMELIORATE DEVASTATION IN THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CITY. THAT KIND OF THOUGHT IS FUNDAMENTAL IN BUILDING COMMUNITY AND COLLECT COLLECTIVISM. OUR TEAM AND DISTRICT 7 OFFICE HAS BEEN PUTTING TOGETHER A PLAN TO HELP THE GROUP LIVING HOUSING, INCLUDING COOPERATIVES, SORORITIES IN THE SOUTH SIDE TO COMPLY WITH EMBER, IT'S VITAL WE ALL DO OUR PART AND I LOOK FORWARD TO PARTNERING WITH COUNCILMEMBER BLACKABY.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANKS, I CHANGED THE SETTINGS ON MY MICROPHONE. AM I STILL REALLY LOUD?

>> MAYOR ISHII: KIND OF. BUT THAT'S OKAY.

>> S. O'KEEFE: SORRY. I WILL TRY NOT TO SHOUT. THANK YOU VERY MUCH. I AM HAPPY TO SUPPORT BOTH THE AMENDMENTS AS I DID PREVIOUSLY AS WELL AS THE SUPPLEMENTAL ITEM OF WHICH I'M A CO-SPONSOR. I WANT TO ACKNOWLEDGE HOW MUCH ANGER AND FEAR THERE IS IN THE COMMUNITY. AND I UNDERSTAND THE REASONS FOR IT WELL. IT'S A BIG THING TO CHANGE THE RULES IN A WAY THAT HAS SUBSTANTIAL IMPACT ON PEOPLE'S LIVES. I PROMISE YOU; I WOULD NOT DO THIS IF I DIDN'T GENUINELY BELIEVE IT WAS THE STRONGEST, BEST INTEREST OF OUR COMMUNITY. THE ROLE WE'RE ALL IN UP HERE CARRIES A TREMENDOUS RESPONSIBILITY TO ENSURE OUR CITIZENS AND OUR HOMES ARE AS SAFE AS POSSIBLE. NO SMALL FEAT FOR A CITY BUILT ON AN EARTHQUAKE FAULT ON THE WILD AND URBAN INTERFACE ON THE BUSINESS END OF THE DIABLO WINDS EACH FALL. I FEEL THIS TREMENDOUS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RESPONSIBILITY AND I CARRY IT WITH EXTREME CARE AND THOUGHTFULNESS. I FIRMLY BELIEVE AFTER TALKING TO EXPERTS AND LOOKING AT ALTERNATIVES FOR MANY, MANY MONTHS NOW, THAT MOVING IN THIS DIRECTION IS THE RIGHT THING TO DO FOR OUR CITY. AND FOR ALL OF YOU. ESPECIALLY THOSE OF YOU IN THE HILLS, WHICH BY THE WAY INCLUDES MY OWN PARENTS. FURTHERMORE, I FEEL IT'S IMPORTANT THAT WE PASS IT TONIGHT AND NOT WAIT. CLIMATE CHANGE IS HERE AND IT'S GETTING WORSE AND NOT BETTER. THERE COULD BE A WILDFIRE LATER THIS SUMMER OR FALL. AND UNFORTUNATELY IT'S NOT REALISTIC TO MAKE THESE CHANGES BEFORE THEN, BUT I BELIEVE IF WE PASS THIS AND JUST AS IMPORTANTLY IMPLEMENT, TAKE THESE NEW REGULATIONS SERIOUSLY AND HAVE SUFFICIENT COMMUNITY BUY-IN TO FULLY IMPLEMENT THEM WE COULD GO INTO THE 2026 FIRE SEASON WITH THE BEST PROTECTION AVAILABLE TO US AT THIS TIME. WAITING PUTS US AT GREATER RISK AND I'M A NO TO CHOOSING GREATER RISK. I KNOW THAT WE ARE ASKING A LOT. I KNOW THIS WILL MEAN A HUGE TRANSFORMATION FOR MANY HOMES AND FOR OUR NEIGHBORHOODS IN THE VERY HIGH FIRE ZONES. I SEE THAT. AND WE ARE DOING WHAT WE CAN TO MITIGATE THAT IMPACT, BOTH FINANCIAL AND LOGISTICAL, AND WE WILL DO MORE AND I HOPE THE SUPPLEMENT REPRESENTS A STRONG FIRST STEP IN THAT PROCESS. I ALSO KNOW THAT THIS ALONE WILL NOT PROTECT OUR NEIGHBORHOODS FROM DESTRUCTION. THAT IS NOT THE CORRECT ANALYSIS. THINK OF THIS MORE LIKE MANDATING SEAT BELTS. WILL A

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SEAT BELT GUARANTY YOU WON'T BE INJURED IN A CAR ACCIDENT? NO, THERE'S DRUNK DRIVERS ALL KINDS OF THINGS OUT OF YOUR CONTROL BUT IT'S AN EXCELLENT SAFETY INTERVENTION AND THE GOVERNMENT WAS RIGHT TO MANDATE IT MANY DECADES AGO, OWN THOUGH PEOPLE DIDN'T LIKE IT, IT WAS THE RIGHT THING TO DO, IT KEPT PEOPLE SAFE. AND SOME, I UNDERSTAND THE CONCERNS BUT I'M SORRY, I AM HERE TO MAKE THE TOUGH CALLS TO KEEP MY COMMUNITY SAFE. AND THE CALL I'M MAKING TONIGHT IS TO ADOPT THESE MEASURES. LASTLY, I REALLY WANT TO THANK COUNCILMEMBER BLACKABY FOR HIS STRONG AND HONESTLY INSPIRATIONAL LEADERSHIP ON THIS ISSUE. BRENT, YOU, AND I ARE BEEN ON COUNCIL FOR THE EXACT AMOUNT OF TIME, I WAS TRYING TO REMEMBER WHO WAS SWORN IN FIRST, I CAN'T, WE WILL SAY CALL IT EVEN. I ALREADY LEARNED SO MUCH FROM YOU. IT'S BEEN A REAL HONOR TO PLAY A SUPPORTING ROLE ON THIS PROJECT WITH YOU AND I JUST WANT TO GIVE YOU THE LOUDEST AND STRONGEST POSSIBLE SHOUT OUT FOR ALL THE HARD WORK THAT YOU HAVE DONE. AND I WANT TO THANK OUR FIRE DEPARTMENT LEADERSHIP, CHIEF SPRAGUE AND WINIKER WHO UNDERSTAND ALL TOO WELL. SO I WILL BE SUPPORTING THE ITEM.

>> MAYOR ISHII: THANK YOU. CAN WE GO BACK TO FIVE MINUTES. THANK YOU. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I WANT TO THANK YOU, FIRST, SAY THANK YOU TO THE FIRE DEPARTMENT FOR YOUR HERCULEAN EFFORTS TO KEEP THE COMMUNITY SAFE. DESPITE THE DISAGREEMENTS WE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HAVE HEARD HERE IN THIS ROOM, I REALLY THINK ALL OF US SHARE THE GOAL OF MAKING SURE WE ARE PREPARED FOR WILDFIRES AND THAT WE NEED TO TAKE STEPS TO PREVENT THEM FROM BECOMING URBAN CONFLAGRATION. WE HAVE A WONDERFUL FIRE DEPARTMENT. I ALSO WANT TO THANK COUNCILMEMBER BLACKABY AND HIS STAFF FOR THEIR TIRELESS EFFORTS ON THIS PROPOSAL AND ALL THEIR WORK TO ENGAGE THE COMMUNITY, WHICH HAS BEEN REALLY SUBSTANTIAL. COUNCILMEMBER BLACKABY'S PERFORMANCE IN THIS REGARD, I AGREE WITH COUNCILMEMBER O'KEEFE HAS BEEN INSPIRATIONAL, THANK YOU. AND I ALSO WANT TO THANK COUNCILMEMBER BLACKABY'S PREDECESSOR, COUNCILMEMBER WENGRAF, FOR ALL OF HER WORK ON FIRE SAFETY. SHE SET THE STAGE. I THINK TAKING MORE TIME TO HEAR PEOPLE'S THOUGHTS AND CONCERNS WAS THE RIGHT THING TO DO AND I BELIEVE COUNCILMEMBER BLACKABY'S ITEM SUBSTANTIVELY ADDRESSES FEEDBACK AND CREATES A PROCESS FOR FURTHER REVIEW AND REVISION. I APPRECIATE THAT. I MADE MY PITCH IN FAVOR OF THE DEPARTMENT'S EMBER MEASURE DURING ITS FIRST READING AND I REMAIN FIRMLY IN SUPPORT OF IT. THE SCIENCE IS CLEAR, TO ME, ZONE ZERO IS AN EFFECTIVE WAY TO HELP OR LIMIT OR AT LEAST SLOW THE SPREAD OF EMBER-INDUCED FIRE TO GIVE THE FIRE DEPARTMENT A CHANCE TO INTERVENE. I HAVE LOOKED OVER THE ARTICLES AND STUDIES SENT TO US BY THOSE WHO ARE GENERALLY OPPOSED TO ZONE ZERO REQUIREMENTS. WHILE THERE MAY BE SOME SIGNIFICANCE WITH VEGETATION, THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EVIDENCE REMOVING VEGETATION WITHIN THE FIRST FIVE FEET OF STRUCTURES IS THE SUPERIOR OPTION AND MUCH MORE RELIABLY PREVENTS STRUCTURE IGNITION. TO MAKE ANOTHER SEAT BELT ANALOGY, JUST BECAUSE THERE ARE SOME INSTANCES WHERE SOMEONE WAS NOT WEARING A SEAT BELT BUT THROWN CLEAR WITHOUT INJURY, DOESN'T MEAN IT'S A GOOD IDEA GENERALLY TO FOREGO WEARING SEAT BELTS. WE HAVE SEEN THE DEVASTATION WROUGHT BY SUCH FIRES. WE SOUGHT SEVERAL YEARS AGO? IN SANTA ROSA AND TUBS FIRE, WHERE EMBERS BLEW ACROSS THE 101 AND IGNITED HOUSES. WE SAW MAUI WITH SO MANY TRAGIC DEATHS AND UTTER DESTRUCTION OF SO MANY HOMES. EATON FIRE IN ALTADENA KILLED I THINK 18 PEOPLE AND DESTROYED 9,000 PLUS BUILDINGS. PALISADES DESTROYED 6,000 BUILDINGS. THIS MAY BE OUR FUTURE IF WE DON'T TAKE STEPS TO PREVENT IT. THE WEIGHT OF THE EVIDENCE I'VE SEEN AND POTENTIAL CONSEQUENCES IN MY MIND COMPEL US TO ASK IN THE HIGHEST RISK AREAS OF BERKELEY AND TO ACT THERE FIRST. AS DRASTIC AS THIS MAY SEEM, THE FACT WE ARE CONSTRAINING THE APPLICATION OF THESE REQUIREMENTS TO SUCH A LIMITED AREA AT THIS TIME MEANS WE ARE ACTUALLY TAKING A MORE INCREMENTAL APPROACH THAN WE OTHERWISE COULD OR PERHAPS SHOULD. I INTEND TO SUPPORT ALL THREE OF THESE ITEMS TONIGHT AND LOOK FORWARD TO WORKING WITH THE FIRE DEPARTMENT, THE CITY MANAGER'S OFFICE AND MY FELLOW COUNCILMEMBERS AND THE EVENTUAL REVIEW COMMITTEE TO FINE TUNE THESE REQUIREMENTS AND MOVE FORWARD WITH PUBLIC

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EDUCATION, IMPLEMENTATION AND SUPPORT FOR THE HOMEOWNERS WHO NEED IT. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. JUST TAKING A LOOK AT THE CLOCK, IT'S 10:50, I WOULD LIKE TO SEE IF THERE'S A MOTION TO EXTEND OUR MEETING UNTIL 11:30 JUST TO GIVE US BUFFER.

>> I. TREGUB: SO MOVED.

>> T. TAPLIN: SO MOVED.

>> MAYOR ISHII: THANK YOU, COULD YOU TAKE THE ROLL, PLEASE, CLERK.

>> CITY CLERK: TO EXTEND THE MEETING TO 11:30, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> CITY CLERK: BARTLETT?

>> YES.

>> CITY CLERK: TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> YES.

>> HUMBERT?

>> YES.

>> AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: THANK YOU VERY MUCH. MOVING ONTO COUNCILMEMBER TREGUB?

>> I. TREGUB: THANK YOU. LIKE ALL BEFORE ME, I FIRST WOULD LIKE TO THANK OUR FIRE CHIEFS AND OUR FIRE DEPARTMENT FOR ENGAGING IN MONTHS OF MEETINGS WITH US AND THE COMMUNITY. SHARING THIS PROPOSAL, ITERATING IT, RECEIVING FEEDBACK, ITERATING IT SOME MORE. I WOULD LIKE TO APPLAUD IN THE STRONGEST TERMS COUNCILMEMBER BLACKABY AND HIS STAFF FOR THEIR INCREDIBLE DILIGENCE AND COMMITMENT TO MAKING SURE EVERY VOICE IS HEARD. COUNCILMEMBER, YOU TRULY WENT ABOVE AND BEYOND AND I WAS JUST LOOKING AT ONE OF THE APPENDICES IN 43C, THE SHEER NUMBER OF PUBLIC ENGAGEMENT PROCESSES HAS BEEN SECOND TO NONE. COMPARED TO ANYTHING I HAVE EVER SEEN FROM THIS OR PREVIOUS COUNCILS. TRULY, KUDOS. I WOULD LIKE TO ALSO THANK FORMER COUNCILMEMBER SUSAN WENGRAF FOR HER INCREDIBLE LEADERSHIP OVER MANY YEARS TO HELP US GET TO THE POINT WHERE WE ARE TONIGHT. THE AMENDMENTS OFFERED TODAY CLEARLY REFLECT AND ADDRESS MANY OF THE CONCERNS THAT OUR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DISTRICT TEAM AND I HAVE HEARD. AND AS COUNCILMEMBER BLACKABY SAID, THERE IS MORE WORK TO DO. I'VE HEARD SUGGESTIONS TO INCREASE THE APPEAL TIME. TO LOOK AT REBATES, AND POTENTIALLY USING MEASURE FF, THE FIRE VERSION OF IT, NOT THE INFRASTRUCTURE VERSION OF IT. AND GIVEN WHAT WE HAVE SEEN SO FAR, I KNOW THAT ITERATIVE, VERY COLLABORATIVE PROCESS OF COMMUNITY AND STAKEHOLDER ENGAGEMENT WILL CONTINUE. AS AN ENGINEER, I BELIEVE IN SCIENCE. TO ME, ALL THE EVIDENCE PRESENTED IN SUPPORT OF THIS LEGISLATION IS VERY CONVINCING. DEFENSIBLE SPACE, HOME HARDENING, REMOVING VEGETATION. EMBER HELPS US GET ON ITS WAY TO DOING ALL OF THIS. I SPENT ALMOST 13 YEARS IN THE NUCLEAR SAFETY FIELD. WHEN I HAVE QUESTIONS ABOUT FIRE PROGRESSION, I WOULD CONSULT WITH EXPERTS, THE FIRE PROTECTION ENGINEERS AND THE FIRST RESPONDERS. NOTHING HAS SCARED ME MORE THAN SEEING FOOTAGE OF FIRE PROGRESSION. WILDFIRE PROGRESSION. AND THIS IS EXACTLY WHAT EMBER SEEKS TO MITIGATE AND SHIELD US AGAINST. I ALSO THINK A LOT ABOUT AFFIRMATIVE EXPERIENCE, IN MY YOUTH WHEN I WAS LIVING JUST BELOW SOME HILLS AND A FIRE CAME WITHIN 150 FEET OF OUR HOME. I THINK ABOUT WHEN I VISITED THE TOWN OF PARADISE AFTER EVERYTHING WAS BURNED. THINKING ABOUT THE EERIE IMAGES. IT WILL NEVER LEAVE MY MEMORY. AND I THINK ABOUT IN JANUARY, TRAVELING DOWN TO SOUTHERN CALIFORNIA TO HEAR A FORUM FOR ELECTED OFFICIALS AROUND WILDFIRE MITIGATION. A PANEL THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

INCLUDED A COLLEAGUE OF MINE ON A SCHOOL BOARD WHO LIVED IN PASADENA WHO LOST HIS HOME. HE URGED US AT THAT MEETING TO ACT AND TO ACT SOON. AND TONIGHT, I INTEND TO DO EXACTLY THAT BY VOTING IN SUPPORT OF THIS PROPOSAL, ALONG WITH COUNCILMEMBER BLACKABY'S PROPOSED AMENDMENTS. IN A FEW MONTHS WE CAN REASSESS AND SEE HOW IT'S WORKING AND WHAT MAY NEED TO BE ADJUSTED. BUT THE TIME TO ACT IS NOW AND I LOOK FORWARD TO DOING SO TODAY. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU, MADAM MAYOR. I WANT TO THANK CHIEF SPRAGUE AND THE TEAM FOR INCREDIBLE WORK AND OF COURSE MY COLLEAGUE, COUNCILMEMBER BLACKABY. AMAZING DILIGENT WORK. I GUESS YOU WERE TALKING ABOUT THE MEETINGS YOU HAD, I GET IT NOW, I SHOULD HAVE BEEN THERE FOR YOU. THE MAYOR, THANK YOU SO MUCH AS WELL, AND COUNCILMEMBER O'KEEFE, AND COUNCILMEMBER WENGRAF, GOOD TO SEE YOU, THE ORIGINAL FORMER VICE MAYOR, WENGRAF, GOOD TO SEE YOU. I DO WANT TO SAY THIS TO THE NEIGHBORS WHO SHOWED UP. I DEFINITELY, ABSOLUTELY WAS IMPRESSED BY YOUR CONVICTION. I LEARNED A LOT FROM WHAT YOU SAID AND YOUR DATA POINTS WERE PERSUASIVE AND INFORMATIVE AND ALSO IT'S GOOD TO SEE YOU COME OUT. I LIKE TO SEE PEOPLE ENGAGED IN THE PROCESS WITH THE CITY, ANYTHING TO GET YOU OUT OF THE HOUSE, I SUPPORT. IT'S BEEN SAID BEFORE THROUGHOUT THE NIGHT, THIS NIGHT IN TERMS OF PERFECTION

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

VERSUS MOVING THINGS FORWARD. YOU KNOW, A GOOD FRIEND OF MINE LOST HIS HOUSE IN THE L.A. FIRE RECENTLY, A FEW FRIENDS BUT ONE CLOSE FRIEND. HIS HOUSE WAS ENGULFED BY HIS NEIGHBOR'S HOUSE WHICH WAS SURROUNDED BY LOTS OF SHRUBBERY, LOTS OF WHAT WE ARE ENVISION ISING TONIGHT, PROBLEMATIC GROWTH BETWEEN HIS HOUSE AND EVENTUALLY THE WIND BLEW THE WHOLE HOUSE ON HIS HOUSE, BECAME A FIRE BALL. HE GOT OUT, HIM AND HIS WIFE WITH THEIR LIVES, ESSENTIALLY. THAT BEING SAID, AS MUCH AS WE WOULD LIKE TO GET THIS RIGHT, I DON'T SEE IN GOOD CONSCIENCE HOW WE COULD GAMBLE WITH YOUR LIVES, OR ANYONE ELSE'S BY VOTING TO DELAY WHAT ESSENTIALLY IS A COMMONSENSE MEASURE. AND TO THAT END THOUGH, I DO PLEDGE TO SUPPORT YOU AND HELP YOU AS YOUR COMMUNITY COMES TOGETHER TO FIGURE THIS OUT. AND THE ADDITIVE POINTS, HOW DO YOU PAY FOR IT, HOW DO YOU DO THE HOME HARDENING, HOW TO ENGAGE THE EAST BAY REGIONAL PARKS DISTRICT TO THIN OUT SOME OF THE JUNGLE NEXT TO YOU. YOU HAVE MY SUPPORT. AND THANK YOU FOR COMING.

>> MAYOR ISHII: THANK YOU. [APPLAUSE] VICE MAYOR KESARWANI.

>> R. KESARWANI: THANK YOU VERY MUCH, MADAM MAYOR. THANK YOU TO THE PUBLIC COMMENTERS WHO SHARED THEIR OPINIONS WITH US TONIGHT. AND THANK YOU TO COUNCILMEMBER BLACKABY FOR YOUR LEADERSHIP ON THIS. I KNOW WHAT IT IS TO LEAD ON A TOUGH ISSUE FOR YOUR DISTRICT. SO I WANT TO RECOGNIZE THAT. ALSO, I WANT TO RECOGNIZE COUNCILMEMBER O'KEEFE AND OUR MAYOR. AND FORMER COUNCILMEMBER

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WENGRAF. I KNOW YOU WERE ALL INVOLVED IN THESE MEETINGS TO ENGAGE THE PUBLIC AND YOU KNOW, ANSWER LEGITIMATE QUESTIONS ABOUT HOW PEOPLE CAN ADAPT TO THIS THREAT THAT WE FACE. SO I WANT TO THANK YOU ALL AND RECOGNIZE OUR FIRE CHIEF AND ALL THE MEMBERS OF OUR FIRE DEPARTMENT. WE COULD HAVE SORT OF BURIED OUR HEADS IN THE SAND AFTER WHAT HAPPENED IN L.A. BUT INSTEAD WE TOOK THIS VERY COURAGEOUS STEP TO THINK ABOUT HOW WE COULD BE A MORE RESILIENT COMMUNITY AND BE PREPARED, NOT IF THIS HAPPENS TO US, BUT WHEN IT DOES, RIGHT? WE KNOW THAT THIS IS GOING TO HAPPEN EVENTUALLY. SO WE NEED TO BE PREPARED. I WANT TO APPRECIATE EVERYONE WHO SHARED AND I JUST WANT TO RECOGNIZE, I THINK COUNCILMEMBER LUNAPARRA SPOKE TO THIS. IT'S REALLY A BEAUTIFUL THING TO SEE, YOU KNOW, HOMEOWNERS WHO KNOW THEY WILL BE PERSONALLY IMPACTED SAYING THEY ARE IN SUPPORT OF THIS. THAT THEY WANT TO MAKE THIS SACRIFICE AND THAT WE ARE ALL GOING TO BENEFIT BECAUSE OF IT. THERE WILL BE A COLLECTIVE BENEFIT FOR OUR WHOLE CITY. NONE OF US ON THIS DAIS, WE REPRESENT OUR LITTLE DISTRICTS, DIFFERENT AREAS OF THE CITY, BUT NONE OF US WANTS TO SEE ANY PART OF OUR CITY FACE THE KIND OF DEVASTATION AND DESTRUCTION THAT WE HAVE SEEN JUST NOW BASICALLY TIME AND TIME AGAIN BECAUSE OF OUR CHANGING CLIMATE. I THINK THIS IS VERY IMPORTANT. WE DON'T WANT TO LOOK BACK AND SAY WHAT WE COULD HAVE DONE AND SHOULD HAVE DONE. WE NEED TO DO THOSE THINGS AS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PROMPTLY AS POSSIBLE. I APPRECIATE WHAT I'M HEARING ABOUT CONTINUING TO ITERATE AND IMPROVE AND LOOK FOR WAYS FOR US TO HELP HOMEOWNERS. BECAUSE I THINK THAT'S ALL IMPORTANT, IF WE ARE GOING TO PROCEED ON THIS TOGETHER. SO I'M READY TO VOTE. AND THANK YOU ALL AGAIN SO MUCH.

>> MAYOR ISHII: COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU. IT'S ALL BEEN SAID BUT I WANT TO JOIN MY REMARKS AND CONCUR WITH THE A FORESAID. AND I REALLY WANT TO COMMEND COUNCILMEMBER BLACKABY FOR TACKLING A MAJOR ISSUE RIGHT OUT OF THE GATE. AND REALLY THANK HIM AND HIS OFFICE STAFF FOR THEIR DILIGENCE AND HARD WORK RESPONDING TO THOUSANDS OF EMAILS, HOLDING COUNTLESS TOWN HALLS. REALLY RESPONDING TO ALL OF THE QUESTIONS, CONCERNS AND CRITICISMS AND INCORPORATING ALL OF THE FEEDBACK. I WANT TO THANK OUR FIRE DEPARTMENT AND FIRE CHIEF AND HIS TEAM AND ALSO THE MAYOR. AND I WANT TO ACKNOWLEDGE THAT, YOU KNOW, THIS ISN'T JUST SOMETHING THAT AFFECTS THE HILLS. I THINK IT'S THE RESPONSIBILITY OF ALL OF US TO TAKE THIS ISSUE SERIOUSLY AND COMBAT WILDFIRE. AND I'M READY TO VOTE.

>> MAYOR ISHII: THANK YOU. I JUST HAVE IS SOME COMMENTS BEFORE WE TAKE OUR VOTE. I WANT TO SAY THAT WE CAN'T BE AFRAID TO TAKE ACTION BECAUSE AN ISSUE IS CONTENTIOUS. ESPECIALLY WHEN LIVES ARE AT RISK. THIS ISN'T ABOUT BEING FIRST. WE ARE FIGHTING FOR THIS BECAUSE WE BELIEVE IN THE EMBER PLAN. BECAUSE WE ARE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

LISTENING TO OUR EXPERTS. OUR FIRE DEPARTMENT, ARE OUR EXPERTS ON THIS ISSUE AND WE ARE LISTENING TO OUR CITY ATTORNEY'S OFFICE. OUR CURRENT CITY ATTORNEY WHO WE TRUST, WE TRUST IN THEIR ANALYSES AND INTERPRETATION OF THE LAW, THE SCIENCE YOU ARE BRINGING TO US AND THE HARD WORK YOU HAVE DONE. SO I WANT TO THANK YOU TO THE CHIEF, TO THE FIRE DEPARTMENT, TO COUNCILMEMBER BLACKABY FOR YOUR LEADERSHIP. I HAVE REALLY SEEN HIM BEND OVER BACKWARDS AND DO EVERYTHING, REALLY PUT A LOT OF HIMSELF INTO TRYING TO MAKE THIS WORK. EVEN WHEN PEOPLE ARE YELLING AND SCREAMING AT YOU. YOUR AMAZING STAFF WHO HAS DONE SO MUCH WORK. YEAH. [APPLAUSE] YEAH, THANK YOU, ALSO OF COURSE TO COUNCILMEMBER O'KEEFE AND TO HUMBERT AS WELL FOR WORKING WITH US TO ANSWER QUESTIONS AND ADDRESS CONCERNS WITH THE FIRE DEPARTMENT. THANK YOU ALL. THIS IS REALLY A COMMUNITY EFFORT. I JUST WANT TO EMPHASIZE THAT HERE. EVEN AT THE END OF THE VOTE TODAY WE ARE STILL A COMMUNITY AND WE NEED TO BE ABLE TO WORK TOGETHER ON THIS. I WANT TO APPRECIATE EVERYONE WHO IS ENGAGED WITH US AT THESE DIFFERENT EVENTS. I WANT TO THANK EVERYBODY WHO CAME OUT, THOSE WHO AGREE AND THOSE ALSO WHO DISAGREED. I WANT TO THANK THE FIRE SAFE COUNCIL, FIRE WISE, NEIGHBORS, EVERYONE WHO IS IMPLEMENTING ZONE ZERO AND HOME HARDENING. I WANT TO BRIEFLY ADDRESS THE CEQA CONCERNS BECAUSE I KNOW A FEW FOLKS HAVE BROUGHT THAT UP. THE CITY HAS REVIEWED EMBER AND INTERPLAY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BETWEEN THIS AND ENVIRONMENTAL LAWS AND WE ARE CONFIDENT IN THE CITY COUNCIL'S DETERMINATION, WHEN AN ACTION IS DETERMINED TO BE EXEMPT NO ENVIRONMENTAL REVIEW IS REQUIRED. WE ARE SENSITIVE TO THE VOICES IN THE COMMUNITY AND CONCERNS HOW EMBER WILL IMPACT THE ENVIRONMENT AND BELIEVE THIS ACTION IS PROTECTIVE, NOT DETRIMENTAL TO IT. THIS ORDINANCE IS NOT ABOUT EVADING ENVIRONMENTAL REVIEW, IT'S ABOUT USING THE RIGHT TOOLS ALREADY BUILT INTO THE LAW TO HELP MITIGATE IMPACTS OF CATASTROPHIC FIRES. TO REITERATE THIS IS AN ACTION NECESSARY TO PREVENT OR MITIGATE AN EMERGENCY. THIS IS A BOTH AND NOT AN OR ISSUE. OF COURSE WE WANT OUR NEIGHBORING CITIES AND JURISDICTIONS TO DO MORE, WE ARE WORKING ON THAT, 100%. IT WOULD BE RIDICULOUS IF WE WEREN'T DOING IT OURSELVES. THIS IS 100% A REGIONAL ISSUE. I ALSO WANT TO ADDRESS THE CONCERNS AROUND AFFORDABILITY. WE ARE WORKING ON SECURING THIS FUNDING. WE ALREADY HAVE SOME FUNDING THAT'S AVAILABLE. YOU ALREADY HEARD COUNCILMEMBER BLACKABY SPEAK TO THIS, I DON'T WANT TO GO INTO IT TOO MUCH. MY OFFICE IS ABSOLUTELY COMMITTED IN SUPPORTING PEOPLE DOING THIS WORK. WE HAVE TALKED ABOUT BERKELEY CORPS, WORKING TOGETHER. WE ARE ONE COMMUNITY AT THE END OF THE DAY; I WANT TO THANK YOU SO MUCH. I REALLY APPRECIATE YOU TAKING THE TIME. ALL RIGHT, AND WITH THAT -- [APPLAUSE] THANK YOU. THANKS. AND WITH THAT, CITY CLERK, IF YOU COULD TAKE THE ROLL, PLEASE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: OKAY, TO APPROVE ITEM 43A, WITH THE AMENDMENTS FROM CITY ATTORNEY'S OFFICE, SUPPLEMENTAL MATERIAL FROM THE CITY ATTORNEY'S OFFICE AND ALSO THE REVISIONS THAT THE CHIEF HAD LAID OUT EARLIER. AND THEN ALSO ITEM 43B, THE CALFIRE MAP. AND ITEM 43C, THE EMBER IMPLEMENTATION PLAN FROM COUNCILMEMBER BLACKABY. WE WILL CALL THE ROLL ON THE MOTION. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN?

>> T. TAPLIN: VERY PROUDLY YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: WHAT WAS THAT MOTION AGAIN? JUST KIDDING, JUST KIDDING, THAT WAS WAY TOO LONG. YES.

>> CITY CLERK: COUNCILMEMBER TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: HELL YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR ISHII: THANK YOU. THANK YOU, EVERYONE. OKAY, SO, I JUST WANT TO CHECK AND SEE IF ANYONE HERE HAD COME TO SPEAK TO THE ITEMS THAT WE ARE MOVING TO THE 24TH. BECAUSE I WANT TO GIVE FOLKS TIME TO SPEAK TO THOSE ITEMS. THAT WAS, SORRY, LET ME GO BACK TO MY NOTES HERE. THOSE ARE ITEMS 33, 37, 40 OR 41, FIRE PERMIT INSPECTED MARINA FEE INCREASES, FEE SCHEDULE, OR PUBLIC WORKS TRANSPORTATION FEES. ANYONE HERE TO SPEAK TO THAT. ANYONE ONLINE?

>> CITY CLERK: NO.

>> MAYOR ISHII: IS THERE ANY NON-AGENDA PUBLIC COMMENT REMAINING?

>> CITY CLERK: THERE'S NO RAISED HANDS.

>> MAYOR ISHII: OKAY, IN THAT CASE I WILL ENTERTAIN A MOTION TO ADJOURN.

>> I. TREGUB: SO MOVED.

>> C. LUNAPARRA: SECOND.

>> CITY CLERK: TO ADJOURN, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: NO, JUST KIDDING, AYE.

>> CITY CLERK: O'KEEFE? COUNCILMEMBER O'KEEFE TO ADJOURN?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY? 1Y7B YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII.

>> MAYOR ISHII: YES.

>> CITY CLERK: THANK YOU. MAHALO, EVERYBODY.

>> MAYOR ISHII: COUNCILMEMBER O'KEEFE, ENJOY YOUR VACATION.

>> S. O'KEEFE: THANKS, EVERYONE.

[RECORDING STOPPED] [END 11:09 P.M.]

Unofficial Text File